

Lightnin'

Frank Bacon

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Title: Lightnin'

Author: Frank Bacon

Release date: November 11, 2010 [eBook #34280]

Language: English

Other information and formats: www.gutenberg.org/ebooks/34280

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LIGHTNIN'

BY FRANK BACON

**After the Play of the Same Name by
WINCHELL SMITH and FRANK BACON**

**With Illustrations from
PHOTOGRAPHS OF THE PLAY**

**GROSSET & DUNLAP
PUBLISHERS NEW YORK**

**Copyright 1920, by Harper & Brothers
Printed in the United States of America
Published February, 1920**



**YOU LOOKED INTO LIGHTNIN'S SHREWDLY
HUMOROUS EYES, AND YOU SMILED—SMILED WITH
HIM**

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ILLUSTRATIONS

YOU LOOKED INTO LIGHTNIN'S SHREWDLY HUMOROUS EYES, AND YOU SMILED—
SMILED WITH HIM

"PROMISE ME YOU WON'T SIGN THE DEED" ... BILL HESITATED

LIGHTNIN', IN HIS FADED G. A. R. UNIFORM ... LISTENED ATTENTIVELY

...HE TOOK IT FROM HIS POCKET, SAYING, "MILLIE, I WANT TO SHOW YOU
SOMETHING"

LIGHTNIN'

CHAPTER I

"Him?" the local postmaster of Calivada would say, in reply to your question about the quaint little old man who had just ambled away from the desk with a bundle of letters stuffed in his pocket. "Why, that's Lightnin' Bill Jones! We call him Lightnin' because he ain't. Nature didn't give no speed to Bill. No, sir, far as I know, Lightnin' 'ain't never done a day's work in his life—but there ain't none of us ever thinks any the less of him for that! Bill's got a way with him, an' he kin tell some mighty good yarns. Lightnin's all right!"

And when you met Bill Jones you agreed with the postmaster. You looked into Lightnin's twinkling, shrewdly humorous eyes and you smiled—smiled with him. You thought of the reply he made to a stranger who protested against his indolence.

"Well," Bill said, with that shrewd glance of his, "I ain't keepin' *you* from makin' a million dollars, am I?"

Old Bill was full of remarks like that, and sometimes those about him were not so sure as to his lack of speed, in spite of his aimless, easy-going habits. You never can tell from the feet alone. Those closest to him were not sure at all; he "had them guessing." There was no doubt that his wife, simple, earnest, hard-working woman that she was, loved him. She mothered him and did not seem to worry much about his shiftless ways. He was her husband, and that was enough for her. What Mrs. Jones thought of her husband's mental acumen would be another question, perhaps, but up to the present she had always consulted Bill's wishes and sought his advice. Their adopted daughter, Millie, a pretty, wholesome, brown-haired girl of nineteen, worshiped Bill. Any one who said a word against "daddy" had Millie to deal with. The third person Bill had guessing was John Marvin, a young man who owned a tract of land and a cabin a few miles down the trail. Marvin had a lot on his mind, and was studying law all alone in the cabin at nights into the bargain, but he liked to have Bill drop in, liked to hear him talk. Bill could tell some pretty tall yarns, but he told them so well

you had to swallow them. There was an odd, friendly, understanding bond between the ambitious young fellow and the easy-going, humorous old man. They confided in each other a great deal, and—well, like Mrs. Jones and Millie, Marvin frequently found himself crediting Bill with a semblance of mental speed. But then his mind would picture the ambling, aimless figure of Bill Jones with its shock of disordered gray hair and half-shut eyes, and Marvin would smile to himself and turn his thoughts to something else. But he wondered, nevertheless.

At the present moment, the afternoon of a late summer's day, Bill Jones was doing a little wondering himself, though no one would have suspected it as he ambled lazily up the trail, bound for home. Things were not going well with the Jones family. Mrs. Jones and Millie were worrying, and Bill knew it. Characteristically, he had evaded the issue for several years, content to let each day take care of itself as best it could, but now matters were reaching a crisis and circumstances were forcing Bill to consider it. They had been selling the timber on the land, but that did not help much; and now they were taking summer boarders—when they could get them, for boarders were scarce. Again, this only made more hard work for Millie and Mrs. Jones.

It was of this Bill was thinking as he went along. He had been sent to get the mail and to meet the morning train from San Francisco for the purpose of enticing a few boarders to the Jones establishment if possible. He should have been home hours ago with the mail, and there were some odd jobs awaiting him, but he had dallied in the little local town. This was his usual habit, for, like a good many lonely souls, Bill was also a social one. People liked to buy Bill drinks and cigars in the tavern and listen to his yarns. But to-day Bill was lingering intentionally; he knew that his wife and Millie expected to take him into consultation this afternoon in regard to the critical state of the family affairs. Naturally Bill dreaded such a proceeding, but there was something more than that to it to-day. His old heart, usually full of happy-go-lucky sunshine, was harboring shadows, for he knew that he ought to help and wanted to. But how? As he had turned slowly homeward, Lightnin' hadn't the faintest idea.

Then suddenly, when about a mile from the house, Bill paused in the middle of the trail, chuckled, and then sat down on a fallen tree. He pushed back

his battered old hat, drew a bag of tobacco and a Manila paper from his pocket, and rolled himself a cigarette. All signs and manifestations indicated that Bill Jones was overwhelmed by an idea. He sat puffing the cigarette and grinning to himself for a few minutes; then he arose slowly and ambled on; but now the amble was not so aimless. It had a suggestion of the walk of a man with a purpose, and there was a gleam of satisfaction and humorous self-importance in his half-shut eyes.

Nearing the house, he observed his wife sitting on the broad veranda, rocking to and fro, obviously on the watch for him. From force of habit, Bill tried to make a detour with the intent of entering unseen through the back door; but, knowing his ways, Mrs. Jones was too quick for him. She called to him, and, with the air of one who had no intention whatever of entering by the back door, he came up on the porch and dropped into a chair beside her.

"Well, mother," he said, amiably, "you look all tuckered out. Glad to see you restin'."

"Where you been all day?" she asked, ignoring his remark. Her tone was none too tender, but there was a gentle gleam in her motherly, tired eyes as they sought her husband's, sheepishly hiding behind half-closed lids.

"Just takin' a look at town," Bill drawled. "Just takin' a look." He settled himself comfortably in his chair and rolled a cigarette.

"Don't you know there's some new boarders come?"

"Sure," said Bill, easily. "I sent 'em, didn't I? Told 'em you was the best cook in two states, mother. Guess I ought to know."

Millie, an apron over her neat and simple house dress, came out and drew a chair between her foster-parents. She glanced quickly from one to the other, and then her gentle brown eyes came to rest lovingly on old Bill. He returned her smile.

"What a long time you were, daddy!" she said. "I bet you stayed away just because you knew mother and I wanted to talk to you to-day—own up, daddy!"

Bill grinned delightedly, despite his knowledge of the rather grave situation the girl's smiling comment covered. "Well, Millie," he answered, "I'm here now, ain't I? Guess we can have a little talk before them boarders begin to yell for their supper. I kinder wish as you didn't have to cook for 'em, mother—an' Millie waitin' on 'em. 'Tain't fair."

Mrs. Jones's lips twitched; the weight of a hard day was on her.

"It ain't no use puttin' it off, Bill," she said, wearily. "We got to do somethin'. Mr. Townsend was here this afternoon."

"What o' that?" asked Bill.

"Well, he's pretty shrewd, you know, an' he's thinkin' about us, Bill. He seen how much of the timber's gone. He knows we sold another strip o' land last month for next to nothin'—"

"What's that to him?" Bill queried, rolling another cigarette and apparently completely absorbed in the operation.

"He—he's just worried about us, an' it's nice of him, Bill, him knowin' us all these years. He—he thinks as we might move into—into one o' them little cabins down the trail an'—"

"Lem Townsend's all right," Bill cut in, lazily, "but we ain't goin' to move, mother. An' it ain't nobody's business, neither—not even Lem Townsend's. I hope you told him that."

"Why, Bill!" Mrs. Jones exclaimed, sharply. "I told him no such thing! An' I ain't so sure but what I ain't goin' to take his advice!"

Bill looked at her, a hidden smile in his eyes. "It's your property, mother," he said, quietly.

Tears sprang into the woman's eyes and she made an impulsive gesture.

"You mustn't think that way, Bill!" she cried. "I know you deeded the whole place over to me when we were married—and it was all you had! I wasn't thinkin' o' that—'ceptin' as I always think. You must say *our* place, Bill. It's yours an' mine an' Millie's. We'll stick together. But we got to do *somethin'*."

Bill glanced slyly at the girl, whose brown head was bowed thoughtfully. "What you think, Millie?" he asked.

"I don't know what to say," she replied, slowly. "I could go back to San Francisco and work as I did last year. But maybe we could pull through this winter—if only we could get boarders. I don't mind the work, and—and I'd rather stay home here."

Bill's eyes suddenly twinkled. "What's the matter?" he chuckled. "John Marvin come back from the city to stay at his cabin?"

Millie blushed. "Daddy!" she pouted.

Mrs. Jones did not seem any too pleased at her husband's remark. "John Marvin 'ain't got nothin' to do with it!" she exclaimed. "I don't see what he comes foolin' around here for, anyway—Millie 'ain't got *him* on her mind!"

"I should say not!" Millie echoed, though it occurred to Bill that the softness of her brown eyes belied the petulant toss of her head. "Perhaps, after all, it would be best for me to go back to Mr. Thomas's office!"

Bill turned his half-shut eyes on her quickly, but Millie did not note the expression of genuine concern in them. He sat lost in thought. The last winter had been the most difficult of all for them. Millie, feeling that it was time for her being some help, had studied typewriting and stenography and had obtained a position in the office of Raymond Thomas, a San Francisco lawyer. Presumably on a vacation, Thomas had chanced to spend a week at the Jones place the previous summer. Millie had told him of her design to help the family, and Thomas had suggested that she take the position open in his office.

But that had been a dreary and lonely winter for Bill and his wife. Millie's pretty face and youthful ways had been missed sorely; the girl had come to be all in all to the old couple, and they could not bear to see her go away again for another long winter.

Then, too, Bill had his own reasons for feeling grave and down in the mouth when Millie suggested her returning to work in the office of Raymond Thomas. Bill Jones was not one to analyze, or to voice or explain his thoughts—even to himself—unless he took a notion to, or considered

that the right moment had arrived; it was all too much trouble, anyway. Certain thoughts were running through his mind now, however; running a little at random, to be sure, but they were there. His young friend, John Marvin, had worked in Thomas's office for a time—was working there when Millie entered the office. Indeed, that was how Marvin had met Millie and found, to his delight, that they were neighbors up in Nevada—that she was the pretty daughter his friend Bill Jones was always mentioning.

But Bill was thinking now especially of the fact that Marvin had left Raymond Thomas's office suddenly, and had told Bill precisely why he had left.

"Don't you think it would be best for me to go back, daddy?" Millie questioned, interrupting his random musings. "Maybe mother could manage here, with one or two boarders and the money I shall send her. And there will be your army pension. Mr. Thomas is coming to pay us a visit tomorrow, you know, and I'll ask him at once for my old position. I know it will be all right, for he's always been perfectly splendid! He told me the position would always be open to me. You have no idea how kind and considerate he is, daddy! Then maybe next summer—"

"Next summer we're all goin' to be rich!" said her odd foster-father, unexpectedly. "Yes, sir, meanin' you an' mother, Millie girl, next summer we're goin' to be awful rich. Leastways, you an' mother is. Bein' rich wouldn't mean nothin' to me—I'm above it!"

"Why, daddy!" Millie exclaimed, staring at him. "How—What do you mean, daddy?"

Slumped away down in his chair, Bill's eyes were now all but closed tight and he was grinning.

"Nothin' particular," he answered, softly. "'Cept that maybe Bill Jones ain't called Lightnin' for nothin'."

"Bill," said his wife, "this ain't no time for to be smart! If you have anything to say, I wish to goodness you'd say it!"

Bill half opened his eyes and glanced at her. "Millie ain't goin' back to that tailor-made lawyer's office," he said.

"Daddy, please!" said Millie, flushing.

"You mustn't make fun of Mr. Thomas when—"

"All right, Millie," he stopped her, resting his thin hand on her brown hair for an instant. "I wouldn't say nothin' as would hurt you. But you won't have to go back, my dear—not unless you really want to leave us. I got an idea, mother—that's why I was late gettin' home. Ideas take time, 'specially when they're good ones! I got a good one what'll fix this whole business!"

Bill stuck his thumbs in his faded old shirt comically. Even slumped down in his chair as he was, the suggestion of a harmless swagger was in his manner—the easy swagger of one who, hitherto unconsidered, has astonished the skeptics by giving birth to an idea and solving a problem. There was something about Bill that suppressed the gentle but none the less amused smile that was dimpling Millie's cheeks.

"Out with it, daddy!" she demanded, restraining a desire to pull his ear.

"If Lem Townsend is so anxious to help us," he stated, "he can arrange all the details for you, mother. I 'ain't got time for details—that's what I told Grant once, when we was havin' supper before Petersburg. Got enough to do with the idea. Lem can put the ads. in them Reno papers, an' hire the maids for you, an' things like that." Then Bill suddenly stopped, hugely enjoying the mystification of his two listeners.

His wife sat up. "Bill Jones," she said, "you been drinking again down to town, that's what I think!"

"Go on, daddy!" Millie encouraged, putting her hand on his arm. "I feel that you've thought of something! Tell us!"

Ignoring his wife's accusation, Bill gave Millie a grateful glance and resumed, in his slow drawl:

"I got an idea—sure enough, mother an' Millie! It didn't hit me until I was half-way home to-day, but I got it lookin' at the mornin' train what goes on through to Reno. I've looked at a pile o' trains in my time, but I never got no idea from 'em before. Look here, don't the state line run plumb through the middle o' this house, so's half of it is in California an' the other half in

Nevada? Well, what's the matter with makin' this house a hotel temporary for busted hearts what takes six months to cure? Lots o' them rich folks from the East who goes on down to Reno to git divorced would like to live on the lake, but they can't because they got to live in Nevada for six months. They can live on one side o' this house an' be in Nevada. An' at the same time they gits all the good o' livin' in California! They'd be tickled to death an' they'd be comin' in shoals all year, winter an' summer. An' what they pays ain't nothin' to them—the Reno hotels is so rich off them they don't want to take in no one what 'ain't a busted heart! You better start right away gettin' ready, mother!"

Mrs. Jones and Millie gasped. Bill, however, having spoken at considerable length for him, merely reached for his eternal bag of tobacco and paper and idly rolled himself a cigarette.

Millie clapped her hands. "Why, mother!" she cried, "daddy's right—it is an idea! And so simple!"

"All big things is simple," Bill remarked, with the air of one who ought to know.

Mrs. Jones stared from her husband to Millie. "Oh, Bill," she said, finally, "I really think we can do it! And now I'll tell you somethin'. I—I was goin' to suggest this very thing some time ago, but—but I thought you wouldn't approve of it on account o' Millie. Lem Townsend put the notion in my head when he was talkin' about our sellin' the timber."

Bill looked up. "Lem thought of it, eh? Didn't think Lem had that much sense. Anyways, I bet I thought of it first—I must 'a' been thinkin' of it for a long time without knowin' it. Why shouldn't I approve—on account o' Millie, mother?"

"I—I don't know," said his wife, uncertainly. "I hear some of them divorcers is—is—"

"Shucks, mother," Bill stopped her. "They're human beings, ain't they? An' them as ain't we needn't take. But they're all right. I seen a lot o' them on the trains. Right smart lookers, most o' them! They can't help it if their hearts gets busted, can they? Human beings is human beings. Besides, we gotter

look at it from a business point o' view—as Lincoln said to me about the Civil War. I was a business man once an'—"

Millie laughed, and Bill, remembering that he was in the bosom of his family and that there were certain things he couldn't "get away with" there, subsided.

Evidently Mrs. Jones had been thinking hard during the past few minutes, and now she spoke. "We'll do it, Millie!" she said. "Some o' them Reno hotels got started overnight, just like this, an' we can do the same. It'll be kinder queer at first, turning our home into a hotel, but maybe we can soon make enough to—to make it a home again. Shall we try it, Millie?"

"Of course!" Millie exclaimed. "I think it will be great fun! You're awful clever, daddy, to think of it!"

Bill, who had rolled and lighted another cigarette, arose and stuck his hands carelessly in the pockets of his worn, baggy old trousers. "'Tain't nothin'," he remarked, swaying on his heels and toes. "Nothin' at all! I think o' lots o' things like that, but I don't tell 'em—too busy! Well, mother, as Lem Townsend's comin' over to-night, you better have him fix them details. I got to go an' think some more about the idea!"

He moved away with elaborate unconcern and started to amble down the veranda steps. His wife suddenly remembered several odd jobs he should be attending to, but she did not stop him. Her mind was full of plans—and one is naturally timid about asking a Man with a Big Idea to perform menial tasks.

CHAPTER II

After supper the following evening Bill slipped from the house and ambled through the woods to the lake border, where a young moon, cradled above the western ridge, sent its shafts of silver light across the darkened waters. It was evident that Bill Jones wanted to be alone. He settled down on the trunk of a fallen tree and absently rolled himself a cigarette. When it was satisfactorily lighted he glanced down the shore. It was deserted, but a little way back, on the woodland path, he observed two people strolling in the dim shadows of the pines and cedars. He knew that the girl in the white dress was Millie, and he guessed that the man with her was John Marvin. Bill was not especially romantic, but there was no doubt that the sight of those two together pleased him. He knew that the pair had not seen much of each other of late, and he wondered why. He himself had not seen John Marvin for nearly two weeks. Though he did not indulge in romance personally, he understood much, and he sighed deeply as he watched the dim figure of the girl strolling along the path. His mind wandered off through a vista of past years to the time when Millie had first come to the Tahoe region and to the Jones family, a bit of a girl of three. Sinking into a reverie, Bill failed to note that the pair had finally parted, Marvin striding off up the trail in the direction of his cabin. A pull at his ear brought him back to earth.

"Why, daddy! What are you doing out here all alone?"

Millie sat down beside him, putting an arm around his neck.

"Hello!" said Bill, reaching for his bag of tobacco and papers. "Where's John?" he asked, a humorous gleam in his eyes, as he met hers.

Millie seemed to hesitate before answering: "He's gone back to his place. I told him Mr. Thomas was here and he wouldn't even come in to see him! He says he does not like it. I don't think it is any of his business," she added, giving Bill a hug.

"Why ain't it?" Bill asked.

Again Millie hesitated, then said, "Mr. Thomas is just as nice as he can be daddy, and—"

"His yaller gloves is nice. So's his cane. Must take him an awful long time to dress."

Millie took her arm away and looked at him. She caught the lift of his eyebrows and the peculiar expression of his half-open mouth and half-shut eyes, an expression which always decorated Bill's face when he gave vent to sentiments which Millie had come to regard as "Daddy's intuitions." Bill always used trivial words at such moments, but that did not minimize the effect.

"But, daddy, it seems so hard to make you understand how good Mr. Thomas has been to me! Mother understands. He took such pains with me. I was a perfect greenhorn and didn't know the first thing about office work. No matter what mistakes I made, he was just as patient as he could be. And he says he loves this beautiful country up here! He liked to hear me tell about our wonderful waterfall."

Bill puffed his cigarette, an odd gleam in his eyes, perhaps of amusement, perhaps of wisdom. Millie glanced back toward the house; then her eyes swept the shore and finally came to rest on something barely visible far up on the mountain—John Marvin's cabin. She sighed and continued to gaze in the same direction. Bill stole a look at her.

"Liked to hear about our waterfall, eh?" he remarked. "I thought so."

Millie started. "Thought what, daddy?" she asked, her brown eyes trying to read his face.

"Nothin'. Nothin'," he replied, with a note of finality that she had long learned to know as indicating the futility of further questioning.

"Well," she said, rising, "I think you'd better come up to the house, daddy. I suppose you left Mr. Thomas all alone there on the veranda, didn't you? You might have stayed and entertained him until I got back."

"Guess he entertains himself pretty well," said Bill. "Besides, mother's with him."

"But you ought to be there, too, daddy; you're the head of the house, you know!"

He gave her an amused glance as she cuddled his arm in hers and walked him off. "All right, Millie, but I kinder keep fergettin' that part of it."

Coming up the veranda steps, they found Mrs. Jones sitting there with a handsome, perfectly groomed young man of possibly twenty-seven. Raymond Thomas looked actually too good to be true in that backwoods region. He arose quickly, placed a chair for Millie, and then drew one beside his own, urging Bill to occupy it.

"Please sit right here, Mr. Jones!" he insisted, with an easy, flattering smile. "Where did you disappear to after supper? I've been looking all over for you. I want to hear some more of those famous stories of yours! Tell me how to get him started, Miss Buckley," he added, with mock appeal and turning his dazzling smile on Millie.

"Oh, daddy just starts himself!" she answered, laughing.

Bill dropped into the chair and crossed his legs. Gingerly he took the cigar Thomas offered him.

"I want to hear about some of your experiences in the Civil War," Thomas urged. "Why, I have heard that you were in most of the big battles!"

Bill glanced at his smiling questioner with an odd look. With great deliberation he bit off the end of the cigar. "I was in all them battles but two," he said, finally, holding up the cigar and subjecting it to a minute inspection.

"Yes?" Thomas encouraged. "Allow me to light the cigar, Mr. Jones!"

Bill gave him a quizzical glance at this unusual attention, a glance that apparently was quite lost on Thomas.

"Sure. All but two," said Bill, taking a long pull at the cigar. "I was in Washington on private business when them two was goin' on. I was greatly disappointed."

"I can imagine so!" exclaimed Thomas.

"You can imagine a lot o' things, can't you?" said Bill, unexpectedly. "I often imagine I never saw some people. It makes you feel better. But about them battles. Ye know Grant 'd never won the battle of Lookout Mountain if it hadn't been for me—"

"Indeed!" cried Thomas, in a tone of pleasant surprise.

"Nope. I was the only man he would let look out."

Thomas laughed effusively and gently tapped Bill on the back. "Capital!" he exclaimed. "You must tell me some more later on. And you've got to come to town with me some time, Mr. Jones. But"—and for a moment he turned his brilliant smile on Millie and Mrs. Jones—"I've been thinking ever since supper of that great idea of yours about turning this place into a hotel for the broken-hearted. Really, I've given much serious thought to it, as I was telling your wife just before you and Miss Buckley joined us. I am so interested in you all that I hate to act like a damper, but I have very grave doubts about it being a paying proposition. And then I fear none of you have taken into consideration the vast amount of work, preparation, and alteration the scheme will entail. Now, as you are doing this to—er—well, to improve the financial yield of the establishment—you have flattered me by deeming me worthy of your confidence, Mrs. Jones, so perhaps I need not hesitate over words—it seems to me that we might find some other and easier way of accomplishing the desired object—"

"Hello, Lem! Come an' set down," called Bill, calmly interrupting the above flow of words and addressing a tall, rather impressive and distinguished-looking man of about forty who had come up the veranda steps.

"How's it goin' Lem?" Bill asked. He turned his eyes on Thomas. "Lem's runnin' fer superior judge o' Washoe County at the fall election."

Mrs. Jones and Millie greeted Townsend cordially and the girl placed a chair for him while he turned to shake hands with Thomas, who had recovered his slightly shattered poise and risen gracefully. Townsend shook hands genially, but there was a lurking frown in Raymond Thomas's eyes—more than a suggestion that he was annoyed at the interruption, and, for reasons of his own, resented the presence of another person on the veranda. His dazzling smile was at work, however.

"It is a pleasure to meet the future legal light of Washoe County!" he said.

"That's right—better make yourself solid with him now," said Bill, throwing away the remains of the cigar and bringing out his tobacco and papers. There was something in his voice that somehow did not bring a laugh.

"Why, daddy!" cried Millie. "I don't think that's funny at all!"

Bill merely glanced at her and went on rolling his cigarette. Thomas had given Bill a keen, puzzled look; but no one could ever tell from Lightnin's expression whether or not any special meaning lay back of his words.

Mrs. Jones created a diversion. Eagerly she imparted Bill's great idea to Townsend and their intention of carrying it out at once. Millie joined in and asked him if he would help. He declared himself at their immediate disposal.

"I'm very glad you are going to do it, mother!" he said. "In my judgment, it is an excellent solution of your problem. You will recall that I suggested this —"

"But I beat you to it, Lem!" Bill cut in quickly. "Forethought and execution is the whole carnage!"

Raymond Thomas had been listening closely. If there was disapproval and annoyance at the turn things were taking, it did not show in his face.

"But are you sure this venture will pay these good friends of ours, Mr. Townsend?" he asked, in a tone of grave doubt. "Those divorce people—they are mostly women, you know—are generally on short rations, though they have been used to having a lot of money to spend. I'm afraid they'll demand comforts and luxuries that will run expenses into big figures, and they won't want to pay enough to make a reasonable margin of profit."

"I am certain it will pay splendidly!" replied Townsend. "Look at the Reno hotels! Oh yes, I strongly advise our friends to tackle it!"

Thomas frowned slightly. "Perhaps you are right, Mr. Townsend. I presume you have investigated the matter. But there is another point to consider. I don't think—well, personally, I do not think it is altogether a good plan to—

to bring women of that sort into contact with women like Mrs. Jones and Miss Mildred."

He turned to Millie, his expression one of delicate concern and appeal.

"It's fine of you to speak like that, Mr. Thomas," she said, flushing slightly, "but mother and I have talked over all that. We do not mind. And, besides, I don't think it right for us to feel that way about it. I'm sure most of those women are nice—and maybe they need just the sympathy and care we can give them."

Lemuel Townsend, on hearing Thomas's statement, had sat bolt upright. "Sir," he said, in tones of personal injury, adjusting his glasses and eying Thomas from head to foot, "I think that a rather broad and sweeping statement for you to make. Miss Mildred is perfectly correct in her surmise. I must remind you that I am a Nevada attorney. I have known, in my life, many of these young women, and I have found them most estimable!"

"Ye like 'em, don't you, Lem?" remarked Bill, chuckling.

Townsend flushed; he looked appealingly at Mrs. Jones and Millie, his judicial manner gone. It must be confessed that Millie suppressed something resembling a giggle.

"You old fogies up here in the mountains have the wrong idea!" Townsend said, turning to Bill. "Why should two people be hitched together when they are pulling in different directions? That doesn't get them any place." He rose and reached for his hat on the veranda rail. "Well, I must be off. I'll get to work at once, Mrs. Jones. The Reno papers shall have your ad. to-morrow, and I'll get busy on some other things at once."

The two women rose, profuse in their thanks, which he smilingly waved aside. With a nod to Bill, and a rather formal bow to Thomas, he went down the steps.

Thomas resumed his seat and his dazzling smile; there was nothing in his manner to show that he had been thinking quickly. He crossed his legs easily and drew out another cigar.

"Have you ever thought of selling the place, Mrs. Jones?" he asked, suddenly.

"Why—why, no! Can't say as we have!" she answered, evidently surprised. "An' I don't know as we could if we wanted to. Ain't much call for a place like this, Mr. Thomas!"

"But you can't always tell about these things, my dear lady," said Thomas, addressing himself exclusively to Mrs. Jones. "It might not be so hard to find a purchaser, and at a good price, too."

"I—I don't think Bill would like to sell," she replied, doubtfully. "Would you, Bill?"

Her husband made no reply. He sat gazing straight ahead, his eyes half shut as usual.

"Perhaps Mr. Jones is indifferent on the subject," Thomas resumed. "Now I am sure that if he felt that you and Miss Mildred were well provided—"

"Say, you're kinder full of ideas yourself, ain't you?" Bill interrupted, unexpectedly turning and bringing his thin, unshaven face close to the other man's, quite unwonted force and anger in his manner.

"Daddy!" Millie cried, while his wife stared at him.

The anger left his face and the old, shrewd, humorous light crept back into his eyes.

"I don't believe in more 'n one idea at a time," he said, grinning. "No—I guess mother an' me an' Millie 'll try out that little busted-heart notion o' mine first, afore we tackles any other notions. Guess I'll turn in, mother—had a kinder tall day. Look sorter all in yourself. Better come along. Tirin' business, havin' ideas. If Mr. Thomas 'ain't been entertained ernough, maybe Millie 'll stay down an' keep the show goin'." And he got up slowly, stuck his hands in his pockets, and ambled into the house.

"I think we'd better go in, too, mother," said Millie, rising. "I know you're just fagged out, and it's late, anyway. You won't mind if we leave you to finish your cigar, Mr. Thomas, will you?"

"Not at all! Not at all!" Thomas exclaimed, with his smile. "A thousand pardons for keeping you up so late—it was thoughtless of me!"

He sprang to the screen door, held it open for them, and called a cheery "Good-night!" as they disappeared up the stairs. Then he sat down again and thoughtfully finished his cigar. He appeared to have a lot to think about, to figure out. When finally he went up to his own room a light burned there for an hour longer.

In the morning Bill Jones was up and about unwontedly early. He got himself some breakfast, then went to the little desk where the few boarders habitually left the letters they had written the night before for the outgoing mail, which he took to the post-office. He found some half-dozen letters on the desk this morning, and he examined the addresses deliberately. One in particular seemed to interest him immensely. It was in a handwriting he had seen before and recognized as that of Raymond Thomas. He put a finger to his cheek and gazed up at the ceiling—which is the same as saying that Bill Jones was making a careful mental note of the name and address on that letter. It was addressed to one Everett Hammone, the Golden Gate Land Company, San Francisco. It was quite obvious that Bill Jones had a strong desire to know the contents of that letter; but he dropped it carelessly among the rest, bundled them up with a string and stuffed them in his pocket as he strolled out of the house on his daily journey.

Out on the trail a bit, his ambling feet came to a pause. He took out his tobacco and papers and rolled a cigarette. Lighting it, he turned around and gazed up the mountain, his eyes blinking in the morning sunlight as they rested on the dot that was John Marvin's cabin. For a moment it seemed as if Bill had it in mind to change his direction and go up the mountain.

"I sure would like to have er talk with John," he mused. "Sure would. 'Ain't had a talk with him for some time. But I guess as John is pretty put to it with that there timber proposition—things must be gittin' some excited up there! Maybe I'll go up to-morrer."

And having characteristically decided to do it to-morrow, Bill continued his morning stroll toward the post-office.

CHAPTER III

For reasons obvious and otherwise, Bill Jones did not carry out his intention of visiting John Marvin's cabin "to-morrow." In spite of himself, Bill naturally was drawn into the vortex of work and preparation necessary to turning his home into the Calivada Hotel. The period of change was a nightmare to Bill, the only leaven in his misery being the astonishing fact that he actually evolved quite a number of ideas—ideas which Mrs. Jones, Millie, and Lem Townsend not only O.K.'d, but put into instant execution—and found exceedingly workable. He made many attempts to disappear from the premises, but his wife, or Millie, or Lem always had an eye on him and managed to frustrate his hasty sorties or more subtle schemes to take French leave. This went on day after day, and now Bill had endured nearly six weeks of more or less pleasantly enforced captivity.

In the mean time the mysterious "excitement" up the mountain about which Bill had mused that morning on the trail had come to a head, and John Marvin's little cabin seemed to be the center of it.

It was shortly after sundown one evening that a big, red-headed lumberjack, obviously a Swede, put his head in the door of the cabin and glanced quickly around the one room. Seeing that there was no one inside, he entered, closing the door behind him. Going to the window, he looked out through the thick grove of pines and cedars, but evidently could see no one. He was breathing hard, as if from running, and he sank into a chair.

His rest was short-lived. There was a rap at the door, which was instantly pushed open, and a lanky, sinewy man in sombrero and riding-breeches, with two revolvers at the belt, strode in. The Swede, on his feet in an instant, recognized the intruder as Nevin Blodgett, sheriff of Washoe County.

"What you want?" the lumberjack asked, in his heavy voice.

The sheriff did not answer at once, but took a quick survey of the cabin's contents, his eyes lighting up as they rested upon the unwashed dishes on

the table, telling of a recent meal. There was a self-satisfied swagger about the sheriff as he walked up to the Swede.

"You're John Marvin, ain't you?" he demanded.

"No, sir," replied the Swede, with a heavy frown.

The sheriff looked puzzled for a moment; then it seemed to dawn on him that it was just possible that a big, red-headed Swede was not likely to be John Marvin.

"Well!" he snapped. "Then I guess you're working for him, ain't you?"

The lumberjack shook his head and went close to Blodgett, emphasizing his words, "Who I work for bane my business!" There was no fear in his manner as he stood looking into his interrogator's face with a grin that boded ill for any one looking for trouble.

Blodgett backed away, his eyes following the breadth of the Swede's husky shoulders and the line of his powerful arms.

"None of that!" he said. "You're with the gang that's been chopping down that timber out there. You know well enough that Marvin's stealing that timber, don't you?"

"Stealing?"

"Yes! He's stealing it from the Pacific Railroad Company, and I'm here to arrest him for it!"

"Humph!" The Swede shrugged his shoulders and wheeled around, gazing anxiously out of the window, where the path through the forest was visible.

"You know where he is, don't you?" Blodgett asked.

"He gone away."

"Where?" Blodgett stamped his spurred boot.

"I doan' know."

"When did he go?"

"Maybe—yesterday."

"When's he coming back?"

"I doan' think he coomin' back." The Swede deliberately put a kettle on the stove and whistled indifferently.

Blodgett was evidently torn between a desire to maintain his dignity and authority as sheriff and a rather healthy reluctance to have any trouble with the great, hulking Swede.

"It's going to be hard for you if you're lying—"

He got no farther. The Swede stepped up to him with blazing eyes.

"You call me liar?" he yelled. "I throw you out the door!"

Blodgett backed quickly away—very quickly. His hand sought the latch behind him. "If you threaten me, the next thing you know you'll find yourself in jail!" he cried, shaking his fist.

The Swede's only answer was an ugly grin. Blodgett opened the door, slamming it after him as he went away.

The big lumberjack stood quiet for several minutes, listening to the sounds of retreat beaten by the hoofs of Blodgett's horse. Assured that the sheriff was safely out of the way, he crept to the window, thrust his head over the sill, and gave a low whistle.

There was a stir in the soap-plant outside and Marvin emerged, hurried around to the door, and entered the cabin.

"Good work!" he exclaimed, laughing and clapping the grinning Swede on the back. "You got rid of him very well, Oscar! Now I'll go on with my supper!"

He took off his coat and went over to the stove, where he began to shake the damper to let out the ashes. Oscar came and stood beside him.

"He tell me—"

"I know what he told you," Marvin interrupted, continuing to shake the ashes.

"Do that land belong to the railroad?" There was a slight note of alarm in the Swede's voice.

"It does now, Oscar," Marvin replied, throwing some paper and wood into the stove and lighting it; "but I sold the timber a long time before the railroad got the property, and I'm trying to save the timber for the man who bought it from me."

"Oh!" The Swede turned toward the door, as if to go. "Bane they arrest you for that?"

"Not unless they find me!" Marvin chuckled.

"An' me an' the boys—can they arrest oos?"

"No, Oscar," Marvin laughingly reassured him. "You fellows are working for me and you are not supposed to know anything about my affairs."

"Oh!" The Swede gave a satisfied nod of his head. "I see—you know that from—from your books." He jerked his thumb toward a table in the corner on which some law-books stood.

"Yes," said Marvin, looking into the coffee-pot. "Anyhow, you'll be gone in the morning. The job's done, thanks to you and the boys."

The lumberjack stood for a moment, nodding his red head; then he turned slowly and went out.

Marvin put the coffee-pot on the stove, watched it a minute, and then sank thoughtfully into the shabby but comfortable arm-chair at the end of his reading-table—which also served as a dining-table. He sat there for several minutes—until the coffee, boiling over on the stove, brought him out of his reverie and to his feet. At the same moment he caught the sound of remote but high words coming from that part of his land where the recently cut timber was stacked.

"I tell you he bane gone away!" he heard, in Oscar's heavy, threatening voice.

Hurriedly pushing the coffee-pot on to the back of the stove, he sprang to the door, but before he could reach it it was thrust in against him and he was thrown back into the middle of the room, where he stood, perforce, facing a tall, athletic-looking man in motor togs. The man's strong, intellectual face, undoubtedly pleasant and agreeable ordinarily, was now clouded with anger, his jaw set and grim.

At sight of him, however, Marvin's fists unclenched and he smiled amiably, despite the other's attitude.

"Why, hello, Mr. Harper!" he exclaimed, holding out his hand. "You're just the man I've been looking for! But you seem a bit upset. What's the trouble?"

Ignoring the outstretched hand, Harper threw off his duster and tossed it, with his gloves, on the table.

"Just a minute, young man," he said, with a grim tightening of his jaw and his keen eyes boring into Marvin's. "Just a minute. I came here to have a look for myself and to see precisely where I stand." He turned and carefully closed the door.

Marvin went to the stove and calmly poured himself a cup of coffee. "Well," he remarked, with a laugh, "won't you have a chair and some coffee first—you can shoot just as easily sitting down."

Harper, his hand at his belt, glared at him.

"You don't think I mean business, do you?" he said, grimly. "Or perhaps you think you have beaten me to it, eh? Now what sort of man are you and what nice little game is this you are playing? Here I buy a grove of timber from you, and while my back is turned you sell the property, timber and all, to the railroad! I want an explanation and I want it now!"

"You have the facts a bit mixed up," Marvin replied, still smiling and nodding toward the chair, at the same time placing the coffee on the table. "Sit down and we'll talk it over—and I think you'll decide not to shoot!"

Harper, however, was adamant.

"All right," said Marvin. "In the first place, when I sold you the timber you said you were going to cut it at once—"

"Correct—correct! But something came up and I could not attend to it—and I don't see how that exculpates you in the least!"

"It doesn't," replied Marvin, adding, as he took up his coffee, "if you won't join me, I'll have to go it alone, as this is the first I've had since morning. Well, when I sold you that timber I never thought I would sell any of this property. My mother loved every inch of it. It was our dream that when I received my diploma and established a practice we would make a home here; but she was taken sick—"

"Yes, I remember your telling me about her being in the hospital." Harper's voice softened a bit.

Marvin was silent a moment. "I took her to San Francisco. She died there."

Harper fumbled with the buckle of his belt. His heart went out to the younger man; yet he felt that right was on his side. He picked up a picture of Mrs. Marvin that stood in a small frame on the table. "I'm deeply sorry," he said, softly. "I did not know."

"There is no need to apologize," Marvin answered, quietly. "You have a perfect right to demand an explanation about that timber." With a last swallow of coffee, he put down his cup and stood squarely facing Harper, and his own expression was grim as he continued:

"When we got to San Francisco—mother and I—a lawyer in whose office I had been a student came to the hospital and got into her good graces. He had taken a great interest in me and I would have taken an oath as to his integrity. But when I came up here to sell you the timber—and mother and I needed the money desperately at the time—this man took advantage of my absence to persuade mother to deed him fifty acres, nearly the whole of the property! It was to be a pleasant surprise for me when I returned! Instead of cash, he gave her a batch of stock in the Golden Gate Land Company, stock of which I have been unable to dispose. And the next day he resold the property to the Pacific Railroad Company for three or four times the price represented by the stock he gave mother. I found that out later, of course. Well, after mother's death I hurried up here, only to discover that you had

not cut the timber I sold you *before* the property was sold. I got busy at once and have been staying on here until the gang out there finished cutting it and piling it on what is left to me of the property. Your timber is ready for you, Mr. Harper, any time you are ready to haul it away."

It was Harper's turn to put out his hand. "I'm mighty sorry I misunderstood you, Marvin!" he exclaimed, as the latter returned the clasp. "But look here! Can't you do anything about this fellow, this lawyer? What's the rascal's name?"

"Raymond Thomas. He's up in these parts quite frequently of late. Made himself solid with some dear friends of mine, I'm sorry to say, and I'm worried about it. I can't help believing that he's up to some new game, though I can't just see what it is. He's a remarkably smooth customer. It's very hard to pin anything on him. I'm going to make him disgorge my property if I can, but I shall have a difficult legal fight on my hands."

Harper nodded understandingly. "I see, I see—covered himself cleverly. I don't know the gentleman, but I'll be only too glad to do anything to help you, Marvin." He took a turn about the room, while Marvin leaned against the table. "I'll have the timber hauled away at once. I didn't have it cut, myself, because—well, I've had a lot of trouble myself. Had a strike at the mill, and—oh, hang it all! It's my wife, Marvin! She's packed up in a hurry and left me!"

He flung himself into the chair and stared ruefully, comically, at the younger man, who, not knowing what to say, said nothing.

"I didn't mind the strike so much, nor this timber mix-up!" Harper rushed on, with the air of a man who must tell some one or explode. "It was my wife, young man! It's her being so unreasonable that makes me sore. I bought her a present when I was East and had it shipped to the office. It happened to arrive about the time Mrs. Harper was to come to the office in the machine to take me home, and she walked in just as I was showing it to my stenographer. Of course my wife thought I bought it for Miss Robbins, and—well, what's the use of talking about it?"

With a gesture of dismissal for the subject, he stood up and took out a wallet.

"How much do I owe you?" he asked. "I figured it would cost about eight hundred dollars to do that job out there—"

Marvin put up a deprecatory hand. "I can't take it now, Mr. Harper," he interrupted. "You haven't got that timber yet, and—"

"The railroad will have some job on its hands to get it away from me!" said Harper. "And unless they do I owe you eight hundred dollars—do you understand?"

A faint noise outside broke into their conversation. With a warning gesture, Marvin tiptoed to the door and put his ear against it. Harper, thinking that it might be a railroad employee who had come to eavesdrop in order to report their plans, stood with his jaw set, his hand on the revolver at his belt. With a quick movement Marvin jerked open the door.

Instead of a railroad employee, or the sheriff, it was only Lightnin' Bill Jones who stood there, leaning idly against the doorframe, his hands in his pockets. He ambled silently into the middle of the room, his half-shut eyes blinking in the sudden light.

"I guess I must 'a' been out there some time, come to think of it," he remarked, meditatively, and addressing himself to the ceiling, quite as if he were alone. Then he turned carelessly to Marvin.

"I knocked, too—but I guess maybe you wasn't expectin' me."

CHAPTER IV

With a laugh, Marvin shut the door. "It's all right," he said, winking at Harper. Smiling, he went up to Bill and swung him around to face him.

"Hello, Lightnin'!" he exclaimed. "I'm mighty glad to see you. What do you mean by staying away from me all this time? And you were so quiet and mysterious outside there that we thought some one was spying on us!"

"I was a spy once—with Buffalo Bill," said Lightnin', conversationally. He stared interestedly at Harper. "Friend of yours, John?"

"This is Lightnin' Bill Jones, Mr. Harper. This is the gentleman I sold that timber to, Bill." The two men acknowledged the introduction.

"Have you had any supper, Bill?" Marvin asked, resuming operations at the stove. "If not, you'd better stop and have it with me."

Bill shook his head with an air of importance. "No; can't stop. Got to be home at the hotel at supper-time to see that everythin's goin' right. What time is it now?"

"Seven o'clock."

Bill shrugged his shoulders nonchalantly, meditated, and announced: "Well, maybe they can get along without me. I got everythin' sys-sys-matized."

Marvin glanced at him quickly. "Bill, I'm afraid you've been having a drink or two?"

"Nope. Nope!" Bill repeated, with the debonair innocence of a mischievous and prevaricating school-boy. "I was just sayin' good-by to the boys out there." He signified with a jerk of his head that the lumberjacks were responsible if he seemed in any way elated. "You see, they're breakin' up camp—an' I didn't want to hurt their feelin's, as they're all friends o' mine."

Harper, who had resumed his seat in the chair, glanced at Marvin.

"Does our friend Bill know—what we were talking about?"

"Everything!" said Marvin, readily. "Rest easy, Mr. Harper—you'll never find a better friend, nor a more trustworthy one, than Lightnin'. But, surely, you have heard of his hotel, haven't you?"

"I'm afraid not."

"Then I guess you're the only man what 'ain't!" said Bill, emphatically, and gazing at the ceiling and thoroughly enjoying the fact that he was the subject of the conversation.

Rapidly Marvin sketched the conception and success of the Calivada Hotel. "It was a real idea—"

"It was my idea," put in Bill, conversationally.

"It certainly was, Bill!" Marvin went on. "And the new hotel is a big success! You see, the state line runs right through the middle of the house—through the center of the lobby, in fact! There are two separate desks, one on the California side and one on the Nevada side. Women began to arrive, and they all wanted rooms on the Nevada side—and they wanted them for six months!"

Harper roared with laughter. "The Reno divorce brigade!" he exclaimed.

Bill fairly beamed at the attention his affairs were drawing. He sat down on the corner of the table and grinned at Harper, while Marvin went on:

"Exactly! Everybody knows what a woman goes to Reno for, but at Bill's hotel she can get a room on the Nevada side and still make her friends believe that she is at a California resort!"

Again Harper laughed. "A corking good business idea!" he said. "And so it was your idea, Mr. Jones? I congratulate you! I suppose you have been out West here a long time?"

"Sure—came out in the gold excitement," replied Bill, calmly.

Harper stole an amused glance at Marvin. "Why, the gold excitement was away back in forty-nine!"

"Well, they was still excited when I got here!" Bill gazed up at the ceiling, his half-shut eyes hiding their twinkle.

"It's too bad you didn't happen to be one of the lucky ones," Harper consoled him, arising from his chair.

"Lucky?" Bill scratched his head under his ragged slouch-hat. "Say, I located more claims than any man what ever came out here! I been a civil engineer."

The table was not a sufficient throne for Bill, so he slipped down from it and went close to Harper, peering up at him.

"You ought to be a rich man, Mr. Jones!"

"Always cheated out of my share." Bill shook his head sadly. "Crooked partners was the reason."

"Couldn't you do anything to them?"

"I shot some, put all the others in the penitentiary—all but one."

"What happened to him?"

"He died before I got him."

"Died of fright, perhaps?"

"I guess so."

Harper took his hat from the table, clapped Bill on the back, and said, laughingly, "I think I'll get out before you tell me any more!"

Marvin urged him to have a bite of supper, but Harper declined, explaining, as he went to the door, that he had to be in Truckee in two hours, and that it would take him fully that time to make it in his car. Bill, anxious to retain his audience, added his entreaty to Marvin's. That failing, he followed Harper to the door, searching for an excuse to hinder his leaving.

Harper paused at the door. "Well, Marvin," he said, "I'm going to send the trucks down here to-morrow and start hauling. And you might as well disappear from here for a while; then, if there's any kick, no one here will

know anything about it. I'll keep you posted. Are you sure you don't want that eight hundred now?" He took out his wallet and again tried to make Marvin take the money, but again Marvin refused.

Bill had been listening to every word. Now he seemed to have hit on a way to detain Harper and at the same time prove his own personal importance. As Harper shook hands with Marvin, Bill took an envelop from his pocket. Drawing a paper from it, he offered it to Harper.

"If you want to get rid of some of that money," he remarked, easily, "maybe you'd cash that check for me."

Harper, examining it, saw that it was a government check. "Oh, a pension check! So you were in the war?"

"First man to enlist!"

Smiling, Harper handed him the check to "indorse"—which happened to be a new word on Bill.

"Write your name on the back of it," said Harper.

"I always do that," said Bill, as he complied. Then he held the check up to the light, pointing to the signatures on its face. "See all them names," he asked, "Secretary of the Treasury, and all of 'em?"

Harper nodded wonderingly.

"Well, they ain't no good at all—not unless I sign it!" said Bill, triumphantly.

Harper laughed; handed Bill the money for the check, and, with a final "Good-night!" hurried out of the door. Bill poked his head out, watching him crank his machine and drive away in the moonlight.

When the car was out of sight Bill turned back into the middle of the room and stood watching Marvin, who had sat down and was eating his delayed supper.

"Better join me, Bill," Marvin again invited, and at the same time noting a change in the old man's manner, now that they were alone.

"No," Bill said; "I had mine with the boys outside, as I told you—but I'll have a drink with you, John," he added, hesitatingly, knowing Marvin's disapproval of his drinking.

"I haven't anything in the house, Bill," said Marvin, as he went on eating. "You know that."

Bill edged slowly toward the table, his hand in the back pocket of his baggy, slouchy trousers. "Yes, you have," he remarked, producing a half-filled flask.

"You mean you have," Marvin replied, trying not to smile. "And you've had enough for to-night. Put it away, Bill, and promise me not to drink any more to-night."

"All right, John," said Bill, unconcernedly, and putting the flask back in his pocket. "I promise—an' I 'ain't never broke a promise yet! I'll keep this for—for emergencies. Say, Oscar told me the railroad had the sheriff after you. You remember the last promise what I give you?"

"What was that, Lightnin'?"

"That if they goes to court, I'll come an' be a witness. I can swear them trees was cut when you sold the property, an' I'll—"

"No, Bill!" said Marvin, putting down his knife and fork and staring at the old man, whose half-shut eyes had the suggestion of a flash in them. "No; I couldn't let you swear to anything like that."

"You can't help yourself—I got a right to swear to anythin' I want!" There was an unexpected finality in Bill's usually drawling voice.

"But I haven't got to prove when those trees were cut," said Marvin.

"I know it," Bill responded; then, catching the smiling doubt in the other's eyes, he added, "I was a lawyer once."

"Then why don't you practise?" asked Marvin, inwardly chuckling.

"Don't need no practice." And Bill resorted to his bag of tobacco and papers, rolling himself a cigarette. By this time Marvin had finished his

meal.

"Look here, Lightnin'," he said, as he cleared the table, "you seem to have something on your mind. How are things going up at your place? Anybody at home know that you are here?"

"Not unless they're mind-readers."

"I thought so. Well?"

"It's a wonder you 'ain't come up to take a look yourself," Bill countered. "You 'ain't even been up to—to see Millie," he added, thoughtfully.

Marvin flushed. "That's true, Bill," he said, slowly. "But I've been mighty busy with this timber here, as you know; and, besides—well, Millie seems to be a bit interested elsewhere."

"That's just the trouble, I guess," said Bill, settling himself on the corner of the table.

Marvin looked at him quickly. "What do you mean, Bill?" he demanded.

Lightnin' crossed his legs, took a final puff of his cigarette, and let it drop from his fingers.

"Oh, there ain't nothin' much to that, John!" he replied. "Nothin' to worry about. But it's what lays back o' that."

"For the Lord's sake stop talking in riddles, Lightnin'!" Marvin exclaimed. "What lies back of what?"

"Well," said Bill, looking up shrewdly, "this here Thomas has shown his hand—an' we gotter admit, John, that he plays a mighty smooth an' slick game! He wants to buy our place, waterfall an' all."

"So that's it!" Marvin knew that Thomas had been buying up property in the section, and he knew from experience what sort of treatment the sellers were likely to get. That old Bill and his family should now be involved filled him with concern and anger.

"But surely you're not going to sell, Bill!"

Lightnin' looked up, then down. "The property belongs to mother, John; an' this here Thomas person sure knows how to go after what he wants! He made himself solid with mother an' Millie some time ago, as you know. They think he's Santa Claus, or somethin'. Why, he's got mother an' Millie all het up so's they don't know whether they're standin' on their head or feet! Mother's kinder simple about some things, John—but Millie oughter have more sense! He's been tellin' them that this here hotel idea won't pay for long, an' that he's willin' to buy the place at once for a good price. He tells 'em as how they can enjoy themselves an' live comfortable on the proceeds—an' I can have a nice, easy old age! He 'ain't said much to me, o' course—I don't give him a chance to find me around, much. But he's got the womenfolk all fed up, eatin' out o' his yaller gloves, an' crazy to sell. An'—an' mother an' Millie is kinder sore at me 'cause I ain't takin' much interest in the proposition. Say, what was the name o' that feller what acted as agent for the railroad an' bought your property from Thomas when he done you out of it?"

"Hammond, Everett Hammond," said Marvin. "Go on, Bill—I'm listening!"

"Hammond, eh? To—be—sure. Well, Mister Everett Hammond is up at the hotel now, John, with Thomas—Hammond come up in a hurry, an' they got a deed to the property all ready fer mother an' me to sign. Mother's crazy to sign, but I ain't—not yet. An' it seems they gotter have my name on it, to make sure."

"What—you mean to say it has gone that far!" exclaimed Marvin.

"Sure thing," said Bill, rolling another cigarette. "An' say, I happen to think them two—Hammond an' Thomas—has been in cahoots fer some time—got an idea they is actually partners."

"What makes you think that?"

"I was a detective once," said Bill, with a sudden return to his usual manner, as he lighted the cigarette.

Marvin made an impatient gesture. "Hang it! This is really too bad, Bill! Look here, I'll see if I can do anything! I'm going to come up to the hotel tomorrow as soon as I can get away from here! You're not going to sign that deed, are you, Lightnin'?"

"No," replied Bill, slowly, a little nervously; "no—but mother an' Millie is kinder hot on my trail fer to make me do it. Them two fellers has sure got 'em goin', John! Well, I guess as they'll all be in bed by the time I gets back now, so I'll be gettin' along. You'll be up to-morrow, John?"

"I'll come—don't worry, Lightnin'," said Marvin. "Better go now, Bill; you've got a long walk ahead of you, you know."

He dropped into his chair and reached thoughtfully for one of his law-books. Bill opened the door; then turned back for a moment.

"Studyin' them books?" he inquired.

"Trying to," Marvin remarked, turning a page.

"That's right—that's how I got *my* start!" said Bill, as he went out.

CHAPTER V

The following morning, rising at dawn, Mrs. Jones again tried to awaken her husband to a full sense of his shortcomings anent his foolish reluctance to sign the deed to the property. Bill, however, merely turned on the pillow, gave her a brief smile, and dropped quickly into a gentle snore. After several more attempts to awaken him and impress on him the fact that his absence the day before had kept Thomas and Hammond on a day longer when they had important business calling them to the city, she gave up in despair and went below to look after breakfast, taking with her the packet of letters that should have been in the hands of the guests the afternoon previous.

The morning was a busy one for Mrs. Jones and Millie. Bill, coming down unexpectedly, escaped them, calling through the door, on his way out, that he was going for the mail. When noon came and Bill did not turn up, Mrs. Jones's anxiety reached fever pitch, and she sought Millie in the hope that she could offer some solution of the problem of forcing the deed through Bill's unwilling hands.

At breakfast, Thomas and Hammond again had painted to her and Millie golden pictures of the ease and even luxury that would be theirs as a result of the sale of the property. Trembling with anticipation, Mrs. Jones had then and there put her name to the deed which disposed of her last bit of land; and she was determined that, no matter what it cost her in seeming coldness and harshness toward him, Bill should be made to place his name directly under hers. She made up her mind that he should be brought to terms as soon as he got back; hence her extreme annoyance as the morning went by without his showing up.

As she went about the house, looking for Millie, her determination took on a hard and bitter aspect which was only softened when she caught the sound of Raymond Thomas's voice. He was speaking softly to Millie in the lobby. Mrs. Jones belonged to a generation not so long past when eavesdropping was not considered a wholly unworthy occupation if it tended to place the

culprit in a position to know the inner secrets of those bound by the tie of relationship. For some time, so cleverly did he manage her, Mrs. Jones had felt a motherly tenderness for Thomas springing up within her, and she hoped and dreamed that her affection would have a chance to express itself. That Thomas was in love with Millie she had fully decided on. It was for this reason that the very sight of John Marvin, whom she knew to be a poor young man with no particular prospects, filled her with displeasure. Then, too, she did not approve of her husband's friendship with Marvin, having a strong suspicion that Marvin was influencing Bill against Thomas, and an intuition that Bill, in his unworldliness, would stand back of Marvin's love for Millie.

And so it was that the sight of Millie smiling up at Thomas as he looked earnestly down into the girl's brown eyes set Mrs. Jones's heart beating hopefully—and sent her behind a curtain to listen to what was being said.

Thomas had just come in from the veranda, where he had begged to be excused from accompanying two prospective widows on a walk to see the waterfall at the edge of the place. He was smiling with affected indifference when he met Mildred, who had just come down one of the stairways, of which there were two, one leading to the Nevada side of the house and the other to the California side. "It's a shame to miss a stroll with them!" belying his words with a sneering toss of the head and shrug of the shoulders.

Millie's brow was drawn thoughtfully into wrinkles and there was a wistful pucker to her mouth.

At once he was all attention. "What is the matter, Millie?" he asked, a note bordering on tenderness in his voice.

"It's daddy again. He did not get back until midnight, and he was off again this morning before mother or I could prevent him. I just heard the boarders complaining about the mail service. It's all so hard on mother, and yet"—she hesitated, her mind reverting to her foster-father's kindness to her through all the years of her babyhood and girlhood—"and yet," she went on, "he's really so good and kind at heart, he really would feel dreadfully if he understood what he puts us through." She stood by the newel-post, her eyes pleading for advice.

Thomas took her hand and looked at it thoughtfully.

For a moment Millie let it lie in his; then her lids dropped and she blushed, withdrawing her hand and walking slowly toward one of the desks, of which there were also two, one on each side of the hall.

Thomas followed her, bending down and looking into her face. "I would not let his absence bother you. I'm going up-stairs to pack my grips. As soon as I finish I'll go after him," he said, soothingly, as, one hand in pocket, he let the other flip a pack of cards on the table.

"Oh, you've been too kind already," Millie protested, again meeting his eyes and turning away, her lips quivering.

"Oh, I'm not so kind as you think!" He laughed, an honest humor rising to infrequent expression. "I've got to see Lightnin' myself before I go. He hasn't signed the deed yet, and—"

"I really can't see what he's got to do with it!" Millie interrupted. "The place is mother's. Oh, well"—she sighed and shook her head in despair—"I suppose to be safe his signature must be obtained. I do hope he'll turn up before you leave. It's too bad—"

"Well, if he doesn't, maybe you and Mrs. Jones can make him see the light. I'll leave the papers with you, and when he signs them you can send for me and I'll be up and—"

"You don't know how much I appreciate all you've done for us. Now don't say it's nothing." Millie turned and put her hand on his arm, her eyes resting intently on his.

He bent over her for a minute, then straightened up as he heard a slight movement in the portière, a gleam of wisdom illuminating his face. He smiled with a nonchalant disregard of his former intention and backed away from the girl.

Millie's color mounted her forehead. Shyly she withdrew her hand from his arm and fumbled with the bunch of keys about her neck. After an awkward silence she continued:

"You've been so good to us. When mother and I've been in such distress that we did not know where to turn and mother was nearly frantic, you come forward and in no time arrange everything so that mother and daddy are going to be better off than they ever dreamed of. For years, you know, mother and I have worried about her and daddy's old age. Piece by piece we've sold the land and the timber. Even if this place does pay it will only be running expenses, with nothing saved up, as you said. And then the Nevada divorce laws might change. Oh! You've been so kind," she breathed, in deep sincerity.

"Now don't make me ashamed," Thomas coaxed in his soothing way, backing slowly toward the stairs on the California side. "What I've done is just the simplest thing in the world. I grew to be very fond of you when you were in my office, Millie, and I'm glad to be of what service I can."

As he was half-way up the stairs, Mrs. Jones emerged from behind the portière. He stopped and bent in a nattering bow, a twinkle in his eye. "Why, good morning, Mrs. Jones!" he called down.

"Oh, excuse me!" Mrs. Jones, a guilty conscience bringing his courtly sarcasm, which would otherwise have escaped her gullible nature, into notice, stepped back, turning to the kitchen, whence she had come when she stopped to listen. But Millie followed her, and, with arm around her waist, drew her into the room and seated her near the table.

"You're not going into that hot kitchen again to-day," remonstrated Millie, planting a daughterly kiss on her cheek. "You've been out there working like a slave for three mortal hours."

Mrs. Jones hid her hands awkwardly under her apron and reddened as she glanced up at Thomas, who had come back from above-stairs.

"I don't look presentable," she murmured, fidgeting in the chair.

"Come now, you mustn't mind me," said Thomas, Millie adding her word to his: "Please stay there just for a few minutes, mother. You look ready to drop."

"She's always tellin' me that." Mrs. Jones showed her pleasure in Millie's concern by beaming knowingly from one to the other, an act which sent

Millie to the desk, where she pretended to look at the register.

Thomas smiled. "Millie's right," he responded. "You do work a great deal too hard; but it won't be long now before you can say good-bye to hard work for the rest of your life."

"Oh, Mr. Thomas!" Mrs. Jones arose, forgetting the red, hardened hands she had been endeavoring to hide behind the blue and white checked apron, and hastened to Thomas, holding them toward him in a gesture half of gratitude, half of pleading. "I can scarcely realize that all this is going to come true and we owe it all to you. I only wish I could tell you how grateful I am."

Thomas was quite determined to escape further enthusiasm, either on Millie's or on Mrs. Jones's part. His game nearly played, he wished to withdraw gracefully and without detriment to a certain lurking decency which had not quite been swept away. Thwarting Mrs. Jones's attempt to wring his hand in gratitude, he took two light bounds up the stairs, stopping to laugh back: "Well, I'm going to get out for fear you'll spoil me with a thankfulness I don't deserve. Hang on to her, Millie." He directed a gleam toward the young girl as she went up to her mother. "Make her take a rest."

"Oh dear! Do you think I've driven him away?" There was genuine concern in Mrs. Jones's voice as she sank back into the chair and gazed anxiously after Thomas.

"No, you haven't." Millie smoothed the brown hair which was fast streaking with gray from her brow, damp with excitement. "He is going up-stairs to pack. He's arranged everything about selling the place, and there's nothing more for him to stay—"

"You're here, ain't you?" Mrs. Jones folded her arms stiffly across her chest and assumed a rigid position in her chair as she questioned Millie with eyes suddenly grown fierce with the look of an angry hen when she thinks her brood has been disturbed.

"Oh, mother!" The girl pursed her lips into a pouting smile as she leaned over the back of the chair, an affectionate arm on Mrs. Jones's shoulder. "Please get that foolish idea out of your head. You know—"

"Know nothin'." Mrs. Jones's head jerked vehemently while she insisted: "Every letter you wrote home all the time you was workin' in his office showed that he cared for you."

"I never wrote anything of the sort!" Millie drew a surprised breath as her mouth was drawn into a tiny O of expostulation. "Never!" she reiterated, with a slight stamp of her foot, as she went to the California desk and became absorbed in the register.

"Oh, I could read between the lines! I ain't that stupid. If he isn't in love with you, why is he plannin' for us to come and live in San Francisco? Oh, won't it be grand!" Mrs. Jones, carried away by the recollection of a long-ago visit to the city, and by a dream of what a permanent life there would be, resumed her own hearty enthusiasm. "I want to live in the city real bad, but I'm just skeered to death I won't know how to dress. I want to get a lot o' pretty things 'n' be like the women I saw when I was at the Palace. Do ye think Bill 'll think I'm getting crazy?"

An indulgent smile from Millie met her uneasy but smiling gaze, and she went on: "I know I've talked about the city ever since I can remember, but now that it's in sight I'm awful afraid I'll be out o' place."

"Well, you'll not," answered Millie, going behind the counter to look at the letter-rack, almost empty. "I'm going to see that you have just as nice things as any of the women stopping here."

There was a silence as both of the women smiled in contented anticipation. Mrs. Jones was the first to speak, a sudden doubt expressing itself in an anxious frown and a narrowing of the eyes. "But there's Bill," she said, with a start. "I'm so afraid of the way he'll act!"

"Daddy 'll be all right, I'm sure."

Mrs. Jones composed herself and began planning. "When his pension comes, you must take him to town and buy him some new clothes. Them others we got before didn't fit a bit good."

Millie turned quickly at the mention of her father's pension, remembering that it was time for it to arrive. She reminded her mother of this fact.

Mrs. Jones's gaiety had brief life after Millie's remark. "He ain't back with the mail! I'll bet—"

"Oh, mother!" Millie, deeply concerned, came from behind the desk and went up to the older woman, questioning, "You don't suppose his pension has come?"

"I think it's gone!" Mrs. Jones bowed emphatically in a rising voice and hurried to the desk on the Nevada side, where she took a cursory but none the less exhaustive look at the mail indexes. "I found him hanging around this desk this morning, and when I come in he beat it, sayin', before I could stop him, that he was goin' after the mail. I wonder—" She stopped and gave a deep groan of acquiescence. "Huh! Huh!" She had opened up the top of the desk to find a half-filled flask. "There!" she exclaimed, holding it to the light. "He was waiting for a chance to get this when I shoed him away!"

Millie put her arm around her and drew her into the middle of the room, trying to soothe her. "Anyway, don't let's blame him for anything until we're sure. He may come home perfectly all right. You know he loves the woods and the lake and the autumn coloring which is so wonderful now. He always lingers like this. Please go up-stairs and have a good rest." Millie tried to lead her mother toward the stairs, but Mrs. Jones gently shook the girl's arm from about her waist and went toward the kitchen.

"Where are you going?" Millie asked, standing still, a puzzled frown giving place to an understanding laugh as Mrs. Jones hesitated and looked at the floor, answering in a manner half ashamed: "Why—well—I thought—" she stammered, "he might come home soon, an' he's used to findin' somethin' good kept warm—though he don't deserve it!"

She hesitated, her kindly, better nature shining in her eyes, battling for expression. "Yes—please set a place for him, Millie!" And Mrs. Jones hastily disappeared into the kitchen to avoid the girl's rippling laugh of gentle amusement. Smiling to herself, Millie crossed the lobby and went into the dining-room.

The moment she had left the lobby the street door of the hotel was pushed open cautiously and an inquiring head thrust itself in. The head was that of

Bill Jones. Evidently satisfied that the coast was clear, Bill came slowly into the lobby. Looking warily up at the stairs on either side, and toward the dining-room and kitchen doors, he eased himself softly over to the Nevada desk, raised the top and fumbled expectantly inside.

CHAPTER VI

As Bill reached the desk and lifted the top, another gray-haired old man, possibly the same age as Lightnin', though larger and huskier in build, stole in through the street door and stood there doubtfully, puffing a cigar. He looked about fearfully, evidently ready to decamp at an instant's notice; but his glance, traveling back to the figure at the desk, bespoke a childlike trustfulness in Bill Jones. This gentleman's clothes were as disreputable as might be, as was his battered slouch-hat. His face was very red and very unshaven, and his expression was a comical mixture of uncertainty as to his welcome on the premises and maudlin kindness toward the world at large. He rejoiced in the name of "Zeb," and was a down-and-out prospector, a relic of the past. His only reason for existence these days seemed to be that he was a crony and devout satellite of Bill's—to the great aggravation of Mrs. Jones. There was a legend in the district that Zeb and Bill had spent many years together in the old days, up and down the trails. There seemed to be considerable truth in the story. Anyway, no efforts of Mrs. Jones's or of anybody else's could make Bill forget his pal. Zeb was always sure of a meal, or a drink and a cigar, provided Lightnin' could find a way of producing those necessities of a broken-down prospector's life.

Bill felt around in the desk for a minute, while Zeb watched, fearfully, hopefully; then Lightnin' turned around, disappointment in his face. But before he could break the sad news regarding the strange disappearance of a half-filled flask, Zeb held up a warning finger and began to back through the door. His ear, ever keen for the swish of Mrs. Jones's skirts, reported danger.

"What's the matter, Zeb?" Bill asked. "Aw, come back. What ye 'fraid of?" With a disgusted motion he beckoned Zeb into the room again.

But Zeb, answering the warning that had never failed him, stayed close to the door, whispering back to Bill, "Where's your old woman?"

"That's all right. Come on in. She ain't here now." Bill, determined in his search, lifted the lid a second time and began to take out the contents of the

drawer.

Zeb, taking heart, tiptoed up to him and, looking over his shoulder, murmured, contemptuously, "I don't believe you've got a drop."

"I'll show ye!" Looking intently under the lid, Bill's voice was half smothered. It stopped short when the kitchen door flew open and Mrs. Jones burst with emphatic and quick tread into the room.

She did not pay heed to Bill at once. Zeb received the full force of her mood. "Clear out now!" she called, in no gentle tone, as she swept up to him—an unnecessary action, as Zeb, catching one glance of the irate woman, made double-quick time in getting out of the door and down the steps of the veranda.

Zeb disposed of, Mrs. Jones turned her attention to her errant husband. Both arms akimbo, she stood still in the middle of the floor and concentrated her glare upon him.

"Bill Jones," she asked, in a loud, rasping tone, "where have you been?"

Bill had put down the lid at the first hint of her entrance. While she was addressing Zeb he had quietly slipped behind the desk and busied himself with the mail which he had drawn from the back pocket of his trousers. Whistling softly to himself, he sorted the letters, placing them in their proper pigeonholes.

He did not answer Mrs. Jones at once, but went on whistling. After a second in which he decided that a soft answer might draw the sting from her wrath, he stood still and, without looking around, said, gently, "Hello, mother." Without waiting for a reply, he went on sorting the mail.

The fire in Mrs. Jones's eye flamed brighter. Nothing exasperated her as did Bill's refusal to take her tempers seriously. It was not easy to do all of the fighting—one reason why Bill usually succeeded in carrying his idleness with a high hand. But this time she was not going to be ignored. The conference with Hammond and Thomas, the knowledge that he had been looking for his flask—that he was looking for it more for Zeb's sake than his own, this time, made no difference—as well as complaints by the guests

because of Bill's tardiness with the mail, had exhausted her patience and whetted her into bringing Bill to quick order.

"Do you know what time it is?" She took a step closer to Bill, her voice retaining its hard ring.

Bill paid no attention to the question, but went on whistling and sorting the mail.

"It's after two o'clock!" She stamped her foot and glared at him.

Her glare fell on unseeing eyes, her tones on unheeding ears, for the uneven tenor of Bill's whistle kept up and the spasmodic sorting of the mail went on.

"Let's see," he said, softly, to himself, "Mrs. Taft's letter—she's in Number Four, ain't she?" he addressed his wife. Receiving no answer himself this time, he kept on with his soliloquy, changing the letter to its proper place. "There! that's right. This one," he said, holding the envelop to the light and studying it, "is for Mr. Thomas." He hesitated and looked at it more closely. Placing the other letters on the desk, he came from behind it and went toward Mrs. Jones.

Noting that Mrs. Jones was interested in the letter and that she had made a quick move toward him, he changed his mind and sauntered to the other side of the room, still scrutinizing the letter in his hand. As he paused, he placed the envelop close to his eyes and read, "Raymond Thomas Es-Q."

Mrs. Jones, her arms folded across her adamant breast, narrowed her eyes into a quizzical stare. Satisfied that her estimate of Bill's condition was correct, she hastened to verify it. Going close to him, she demanded, "Bill, have you been drinkin'?"

For once in his life Bill could prove his innocence. He was quick to avail himself of the opportunity, and, much to her surprise, he turned and blew his blameless breath at her.

Mrs. Jones relaxed, exclaiming, in tones of relief, "Thank the Lord!"

"What's He got to do with it?" Bill asked, quickly.

Mrs. Jones smiled. For the time being her manner was mollified. She followed him to the desk behind which he had returned to the mail-rack. "You know," she explained, "it's 'way past dinner-time, and if you won't work, the least you can do is to be on time for your meals."

"I been workin'," Bill chirped, as he placed the last letter in its box and went toward the dining-room door.

Mrs. Jones placed herself in the middle of the room and in such a way that Bill could not reach his goal without passing her. "What work have you been doin'?" The sarcasm in the glance which pierced Bill's shifting gaze did not pierce his good humor. He continued to chirp. "I got the mail."

"The mail?" There was contempt in his wife's question and in the answer she gave to it. "The mail came at ten o'clock."

"I got it, didn't I?" Bill registered another cheerful quip.

Suddenly Mrs. Jones's mind recurred to the day of the month. Her contempt gave place to anxiety and she stepped close to her husband and looked into his face again. "Bill, was there a letter for you?" she asked.

Bill did not answer her with words. Instead he looked away from her and shook his head slowly.

"Bill Jones," his wife persisted, her tones reverting to their former clear coldness, "didn't your pension come to-day?"

"To-day?" Bill smiled a self-congratulatory smile for the word which gave him the loophole of escape. Had his wife omitted that one word he would have, for his honor's sake, been forced to admit that he had it. For it was a part of his peculiar code that under no circumstances was "mother" ever to be lied to. Prevarications, yes, but downright, indisputable lies, no. And that with vigorous emphasis. But now she had mentioned the day. The pension had not come to-day. It had reposed in his pocket since yesterday, where, true to his promise to John Marvin, it should remain until he had made up his mind to hand it over to his family. So he felt the coins in his pocket and looked up at her with a half-guilty grin, drawing out his words one by one, in halting tones. "Not—to—day."

"Well, when it does come," she said, pleasantly, "Millie's going to go to Truckee with you and buy you some clothes. You gotta have some new ones for when we goes to the city."

It was on the tip of Bill's tongue to reaffirm, as he had countless times, that he was never going to the city as long as he lived; but he had begun to realize in the last few days that tact must enter into his negotiations with his dissatisfied spouse. So he responded, mildly, "I got clothes enough."

Mrs. Jones made an impatient gesture and tossed her head in dismay. "I don't know what's got into you, Bill Jones. When you came courtin' me you had good clothes."

"This is the same suit." Bill's jest might have brought further nagging upon his shoulders, but Millie's entrance from the dining-room turned Mrs. Jones's attention to her.

"Oh, daddy, you're back!" Millie went quickly to her foster-father and attempted to put her arms about his neck.

He drew away from her, asking, quickly, "What of it?"

"Are you all right?" Her tones were anxious and her gaze not less so. Whereupon Bill proved his sobriety just as he had proved it to her mother.

"Now are you satisfied?" he asked, as she smiled at him.

Kissing him, Millie reminded him gently that it was past dinner-time and that he had better go into the dining-room, where something hot awaited him.

"Please come now, daddy," she added. "The girls want to get their work done."

Bill hesitated. He glanced surreptitiously over at the Nevada desk, where, to the best of his knowledge, he had deposited a half-filled flask the night previous. His wife's eye, however, was on him. Suddenly she stepped up to him and took him firmly by the arm.

"Bill Jones," she said, "you're comin' right inside now an' eat! Whatever else is on your mind can wait—an' it might be a waste o' time, anyway!"

Finding himself propelled toward the dining-room, Lightnin' cast an appealing, whimsical glance at Millie, but she covertly shook her head to indicate that even she could not gainsay Mrs. Jones just then.

Left alone, Millie busied herself at the desk with some accounts which she wanted to finish before the arrival of a fresh contingent of guests, due that afternoon. She put down her pencil after a few minutes of work, however, and leaned her elbows on the desk, her chin in her hands thoughtfully. She had a well-defined suspicion as to where Lightnin' had been the night previous, and—well, Millie was curious about it.

Her reflections were interrupted by the entrance of Lemuel Townsend. There was an air of importance about him. He was frock-coated and altogether spick and span.

"Hello, Millie!" he said, walking up to the desk and shaking hands with her. "I've been trying to get around here all week, but I'm mighty pressed for time these days, you know! How is everything? You're all filled up, I suppose?"

"Nevada is full," Millie answered, smiling; "it always is, but the California side is often empty. Oh, it's great fun—I call it the Hotel Lopside! Sometimes I'm sorry that we're giving it up."

"Oh! Then you've really decided to put through the idea of selling the place!"

"Yes. Mother made up her mind this morning, and I more than approve it, all things considered. Daddy hasn't—hasn't quite agreed, though, but it's for his own good. I don't quite understand daddy's objections. I wanted to talk to him this morning about it, but I didn't get a chance. There's been something mysterious in his manner lately."

"Something mysterious—about Lightnin'?"

"Yes," said Millie, thoughtfully. "Mother hasn't noticed it, of course, being so busy and worried—and outwardly daddy is his usual easy-going, amiable self. But I have a feeling that he has—or thinks he has—something up his sleeve. Daddy can't hide things from me, you know! Another thing, he

doesn't seem to like Mr. Thomas at all—is downright rude to him at times. I can't understand it, for it isn't like daddy!"

Townsend frowned in a puzzled way. "Perhaps you're taking some of dear old Lightnin's notions too seriously, Millie," he remarked. "Though I must say that I have a great deal of faith in Bill. I've been a little out of touch with the situation lately," he went on, judicially, "but from what you and mother have told me about the proposed sale, and from the one or two talks I have had with Mr. Thomas, I am inclined to agree with you and mother that this sale is an excellent idea. So far as I can judge, it is a sound investment and all for the best."

"Of course it is!" said Millie. "But now—how about yourself? How is the campaign going, Mr. Townsend?"

"Splendidly! But it's rather trying, as I have to do most of the campaigning myself—even the odd jobs!"

He looked down at a bundle of large, printed placards which he carried under his arm. Withdrawing one, he held it up for her inspection. Millie read, "Vote for Lemuel Townsend for Superior Judge of the Second Judicial District."

"Would you mind if I tacked up some of these in the lobby?" he asked, joining in her laugh.

"Not at all!" Millie exclaimed. "I've a hammer and tacks right here in the desk. Let me help you—and I do so hope you'll win!"

Chatting, they proceeded to embellish the lobby with Lem Townsend's name and ambition. Their operations were brought to a pause by the arrival of the expected new guests.

CHAPTER VII

As the motor-stage drew up to the door, Millie ran out on the veranda to deliver a few commissions to the driver to execute when he got back to town. She noted that Sheriff Blodgett was a passenger, and that he jumped down and preceded the guests into the lobby.

The first of the new arrivals to step out of the stage and enter the hotel was a chic little woman of about twenty-four, with big brown eyes and auburn hair, dressed in a bright blue outing-flannel coat and skirt and a tiny red hat from which hung a heavy veil. It was obvious that she was suffering from great embarrassment, as she walked quickly about the lobby, going from one register to the other, while a maid followed her with an armful of bundles. The woman looked helplessly from wall to wall and desk to desk. The presence of Blodgett and Townsend seemed to add to her embarrassment, a condition still further aggravated by the appearance of a third man, Everett Hammond, who chanced to come strolling down from up-stairs at the moment. She fluttered up to Millie as the girl came in from the veranda.

"Would you like to register?" Millie asked.

"How do you do," was the reply, uttered in a timid treble. "I am Mrs. Harper. I understand—" Her head turned from side to side as she hesitated. She clasped her hands and gazed pleadingly at Millie. "I've been told—" Again she hesitated nervously, tears in her eyes. She noticed Blodgett and Hammond gazing at her. In desperation, her blushes showing under the heavy veil, she whispered, quaveringly, "Could I speak to you privately?"

"Certainly," said Millie, hiding her amusement. "Just step into this room," and she led the little woman away.

As they left the room, followed by the faithful maid, another guest entered, an attractive woman of thirty. She was highly colored as to hair and complexion, and she had about her an air far removed from the chic, haughty member of the millionaire divorce colony that centered about the

Reno hotels. In type she was not unlike Mrs. Harper, except that she did not show any special evidence of timidity. On the contrary, she seemed perfectly at home. But she came in with the aid of a crutch and leaning on the arm of the stage-driver. Her eyes took a calm inventory of the lobby—including Townsend, on whom she smiled coquettishly as she sighed with relief and sank into a chair.

Townsend was leaning against the California desk, and he had been watching Blodgett and Hammond, who, conversing in low tones, had strolled out to the veranda. He was surprised to note that the pair had met before and seemed to know each other quite well. His attention, however, was now drawn to the attractive new guest. Her smile was not without effect. She turned to the driver.

"I'm all right now, thank you," she drawled, though her voice was soft and pleasant. "Just drop my bag here." Fumbling in her purse for change that did not seem to be there, she directed a glance toward Townsend and smiled again. "Will you change five dollars for me?" she asked.

Townsend drew out his wallet and examined its contents, but put it back again disappointedly. "I'm afraid I can't," he said, with obvious regret.

"Well, then," said the attractive woman, with a frown, "pay the driver, please."

Townsend gave a slight start of chagrin, feeling that his standing as a candidate for a judgeship was suffering by her lack of discernment. Then, as the truth of the situation dawned on him, he suppressed a chuckle. Without a word, he handed some change to the driver.

"Charge it to my account," she ordered, settling herself comfortably in the chair, extending one foot which was bound in a heavy bandage about the ankle and clad in a soft slipper.

Townsend, still smiling, began: "Well—er—"

"I'm Mrs. Davis," she interrupted, ignoring his embarrassment. "Mrs. Margaret Davis." She turned her wide blue eyes full upon him as she switched in her chair, the movement bringing a twinge of pain to her face.

Townsend left the desk and came toward her. "I'm very glad to meet you." He extended an affable hand. "I'm Lemuel Townsend, and I—"

Mrs. Davis did not offer him her hand at once, but gave him an inquisitive glance. "Will you show me to my room?" she asked.

"I don't know where it is," he said, laughing. By this time his ruffled dignity was assuaged by the twinkle in Mrs. Davis's eye and the deep dimple in her chin.

"Why, weren't you expecting me?" she asked, in astonishment, her mind as yet refusing to grasp the situation.

"No, I wasn't." He was bending over her, a courtly flattery in his gaze.

"But I wrote you!" She turned clear about on her chair, forgetting for the moment the pain in her foot, her eyes and mouth wide open with surprise at the thought that she could be thus forgotten.

"No, you didn't write me. You see, I'm only a guest, just as you are."

Here they both laughed, while Townsend placed a chair close to hers and sat down beside her.

Mrs. Davis prolonged her giggle and bent her head, her eyes seeking his under her heavily beaded lashes. "And I said—Oh!" She put her two hands to her mouth and sidled, "I took you for the clerk."

He nodded indulgently.

"Oh, and I made you pay the driver! I couldn't allow that. Just as soon as somebody comes I'll return it. I hope you'll forgive me." By this time her manner was as friendly as Townsend's feminine-loving soul could wish. She sidled her chair a little closer to his, still holding him with her eyes, wide as the innocent stare of a baby.

"I'm glad it happened," said Townsend.

"Will you allow me to introduce myself properly?"

She nodded, and he got up and went to the desk, returning with one of his campaign cards and handing it to her. "Permit me," he said, "my card." As

she took it from him he explained, "I'm candidate for judge at the next election."

Immediately Mrs. Davis's interest was aroused to fever pitch. With a knowing look she leaned forward, placing a hand on his arm, while she slowly and attentively dwelt upon the words on the card. "Oh, really?" she drawled. "Where will you be judge?"

"If I'm elected—in Reno."

"Will you try divorce cases?" the question was snapped out.

He nodded.

"Oh, I'm awfully glad to meet you!" she gushed, shaking his arm.

"The pleasure is mutual, believe me," he responded, placing his hand on top of hers. As she withdrew hers with a giggle, he went on, unabashed, "Do you intend remaining here long?"

"I'm in for six months." She sighed like a hurt baby.

He was all sympathy as he leaned toward her and apologized: "Oh, I'm very sorry for you, Mrs. Davis—If—"

"Oh, my case doesn't call for sympathy. Congratulations! Congratulations!" she emphasized with a long-drawn-out inflection.

"Oh!!!" he shook his head wisely, adding, laughingly, "It's that way?"

A twinge from the invalid ankle concentrated Mrs. Davis's full attention as she lifted her foot, adjusting it against the crutch, thinking to stop the pain. When it had subsided she smiled up at Townsend again, pointed to it and said, with an ingénue turn of the head, "I'd probably never have been able to get a divorce if it had not been for this."

"You don't mean that your husband was brute enough to—" Townsend was shocked at the thought, but was not allowed to deliver himself of his full sympathy. Mrs. Davis was just getting into the lines of her part and she was quick to catch her cues.

"Oh, heavens, no!" she broke in upon his condolences. "This was an accident. It's a sprain, and it is quite serious, as I'm a dancer." She beamed up at him and wriggled in the chair, continuing her explanation. "It's probably all for the best. Of course it'll break into my engagements. I'm in vaudeville, you know. I've wanted a divorce for years, but I'm always booked solid and I never stay in one place long enough to get one. When this happened I saw my chance to get a good long rest, and my freedom in the bargain." Her eyes begged his for understanding and received it.

While she had been talking Townsend had been drinking in every word she said. Her variety of attractiveness was a new one to him. It appealed to his small-town idea of being a gay blade. He had often cast longing eyes at the Eastern wives sojourning in Reno for the six months necessary to establish a residence and therefore their right to a quick freedom which brought with it no restrictions in the matter of remarrying. The majority of these prospective divorcées were of a larger world and reckoned in figures of which Lemuel Townsend did not know the simplest rules. The only notice he had received for his ambitions being a smile to his face and a snicker at his back. But here was some one who not only was taking notice of him, but was actually meeting his advances half-way. Besides, she was pretty, and he could never withstand a pretty woman. As she finished the first lap of her story he exclaimed, "That certainly is a scheme!"

"It's nice of you to listen to it all," she murmured, apologetically, moving her idle crutch up and down as if writing her mood in invisible letters on the floor.

"I'm glad you told it to me. Do you know—" and he sidled in his chair, while a sugar-laden approval beamed at her in a steady flow from over the top of his glasses, "from the minute I saw you enter the door I was worried about you—I was afraid—Well, it was a great relief to find that you had two good—" he halted in hopeless confusion, as his eyes sought her ankle. He took his handkerchief from his pocket and blew his nose furiously, hoping to hide the real reason for a blush that seemed to have come to stay, having settled in a deep crimson even from the nape of his neck to the top of a head whose sparse hair refused to hide his embarrassment.

But Margaret Davis, seeing no reason for shyness, just smiled graciously upon him and hastened to standardize her reputation. "Any one who has seen me dance can inform you about—well—about—*them*," she said seriously, adding by way of flavor to her remark another languishing droop of her eyelids. There was a moment of coy silence for the two of them. Then Mrs. Davis asked, "Are you stopping here for pleasure or are you doing time?"

"I'm a bachelor."

"How nice!" she replied, in honeyed accents, as she leaned toward him and put a soft hand on his arm. Undoubtedly in Lem Townsend she saw the possibility of an easy divorce trial. Besides, Townsend was by no means without personal attractions. Mrs. Davis gazed at him, her languishing smile concealing the feminine appraisal in her eyes. She decided to cultivate the possibility, and was about to say something in furtherance of her object when she was startled by a gentle voice coming from directly behind her and inquiring, pleasantly, "Rheumatism?"

Bill Jones had entered the lobby unobserved by the pair and was leaning over the desk idly, looking at his new guest with kindly interest. Townsend introduced Bill, and Mrs. Davis, with Lem's assistance, rose and took up a pen.

"No," she said; "I have not acquired rheumatism as yet, Mr. Jones. I'll register—you're reserving a room for me."

"How long you here for?" Bill asked.

"The usual," she sighed, and rolled her eyes toward Townsend.

"Eh?" Bill grinned and walked slowly from behind the desk.

"Six months," she drawled, wearily.

Politely staying her hand and taking the pen from her, Bill pointed to the other desk. "This is the six months' side—over here," he said, sauntering to the back of the Nevada desk.

When the lady was at last settled in her room, and Townsend had left—having made an arrangement to dine with Mrs. Davis that evening—Bill

found himself strangely alone for the moment. Instantly he seized on the opportunity to make a thorough investigation into the mysterious disappearance of a half-filled flask. After turning the Nevada desk inside out, at last he was convinced that the disappearance was a fact and not a matter of imagination. "Guess mother has sequestered it," he remarked, to himself. "Not that I'm hankerin' after it so much myself, but I told Zeb I had it, an' when he finds that I 'ain't, the moral effect on Zeb will sure be bad."

As Bill, rolling a cigarette, meditated on this, Mrs. Harper, followed by her maid and still casting about like a frightened bird in search of cover, tiptoed into the lobby, went uncertainly to the California desk and took up a pen.

Wisdom twitching at the corners of his mouth, Bill was beside her at once.

"Is either o' you ladies gettin' a divorce?" he inquired, in a helpful tone, his question including the indignant maid. "'Cause, if you are," he explained, "I just wanted to let you know that you are flockin' round the wrong desk."

Mrs. Harper fluttered some more. "Oh, I—er—but—where—"

"This way, my dears," Bill said, in a gentle, fatherly tone, as he led them to the Nevada desk.

Mrs. Harper signed her name. As Bill read it he looked up at her with sudden interest. He put a detaining hand on her arm before she could flutter away, and at the same time, turning to the maid, he directed her to have a chair for a moment—at the other side of the lobby, out of earshot.

When the maid had complied Bill looked down at the register. "Mrs. Harper, Truckee," he repeated. Then, glancing up at the surprised and startled little woman, he asked, "Does your husband happen to drive a green automobile, ma'am?"

Mrs. Harper stared at him with the big, frightened eyes of a child. "Why—er—yes. But—why do you ask?"

"I met him last night," said Bill. "He's a fast driver, ain't he? Gets to Truckee in two hours!"

The color rose to the little woman's face. "I don't see—"

"He's a mighty fine feller!" Bill went on, calmly. "Got a pile o' money, too, an' I bet he's some generous with it—specially to them what he loves. People is always makin' fool mistakes. Say, you ain't really goin' to git a divorce, are you?"

Now the astonished little woman's eyes filled with angry tears. "Oh!" she gasped. "Oh! How dare you speak to me like this! It's none of your business!"

"Sure it is," said Lightnin', his voice kindly, confidential. "I know all about it. He didn't git that present for his stenographer."

"How do you know?" she snapped.

"I heard him tellin' all about it to Marvin, the boy what sold him that timber up yonder. I knocked," Bill explained, whimsically, "but they didn't seem to hear, an' I was kinder forced to listen in from the outside. Your husband was all het up an' near committin' suicide 'cause you thought he done what he didn't. He told Marvin he bought that present for you when he was in Noo York. He was just a-showin' it to his office lady when you walked in."

"Nonsense!"

"No, it ain't. It's truth. There's some things I don't go wrong on, an' this is one, Mrs. Harper. Your husband's a mighty fine feller an'—"

With a stamp of her foot, the little woman flung away from the desk and, followed by the faithful maid, hurried up-stairs, where—and perhaps Bill suspected this—she buried her head in a pillow and cried and cried.

Bill stood at the desk with his head cocked on one side, idly tapping his ear with a pen. He heard the door of Mrs. Harper's room slam and he grinned amiably.

"Eatin' her heart out for him," he mused. "Just eatin' her heart out, but too spunky to back down!"

He gazed thoughtfully at the ceiling for a few minutes; then slowly he reached into the drawer and took out a telegram blank. His eyes twinkled as he wrote a brief message. He folded up the blank, stuffed it into his pocket, and was turning away from the desk with the intention of seeking the

telegraph-office, when Hammond and Sheriff Blodgett came strolling back into the lobby.

"Oh, so you're actually here, are you?" exclaimed Hammond, glaring at Bill. "Have you signed that deed yet?"

Hammond, direct, bulldozing, totally lacking in Thomas's smooth diplomacy, had lost all patience with Bill Jones. That morning he had decided that the only way to handle Bill was to ride over him rough-shod. "Have you signed that deed?" he repeated, loudly.

"Deed?" remarked Lightnin', carelessly. "Oh, I'd kinder forgot about that little matter. Nope. 'Ain't had time, old top—nope!" Ignoring the glares of the two men, he started to amble toward the door.

"Look here," Hammond called after him, "is Mr. Thomas in?"

"I guess so," replied Bill, pausing directly in front of Hammond and gazing up at him with a calm, shrewd light in his half-shut eyes. "He seems to stick around pretty close."

"Well," said Hammond, with a heavy frown, "just be good enough to step up and tell him that Sheriff Blodgett and I would like to see him!"

"Step up yourself," said old Bill, quietly, without shifting either his gaze or his position. "You ain't crippled, be you? An' I don't think as your friend Thomas'll fall off'n his chair with surprise if you drop in on him unexpected."

Without waiting for a reply, Bill turned away and ambled out of the lobby. Hammond swore; then strode angrily up-stairs, followed by Blodgett.

CHAPTER VIII

A few minutes after Lightnin' disappeared down the trail, headed for the local telegraph-office, John Marvin approached the hotel from the opposite direction. He paused when some distance away and viewed the place. It was his first visit in many weeks, and naturally his first since the great transformation. It could be surmised, however, that this visit was not one of idle curiosity; neither was his pause due to a mere desire to observe the various changes recently made. He watched the establishment closely for a minute; then came on slowly, keeping a sharp eye on his surroundings. As he reached the steps Millie came out on the veranda. She was engaged in what, these days, had become one of the chief occupations of nearly every one in the Hotel Calivada—searching for Lightnin' Bill Jones, whose persistent faculty of being absent when most wanted was fast assuming the dimensions of a public aggravation.

"Why, hello, stranger!" Millie exclaimed, with a welcoming smile. "I thought you had forgotten all about us! You haven't been here for ever so long!"

Marvin came up the steps and seized both her hands, which she let him hold for a moment.

"I haven't forgotten *you*, Millie," he said, gently, smiling down into her brown eyes. "But—well, you know I went away last time with an idea that you didn't care to see me."

"Silly boy!" Her tone was gaily impersonal, but her red lips puckered into a pretty pout as she walked to a chair in the corner of the veranda and sat down.

"I thought that maybe you had returned to Mr. Thomas's office," he remarked, following her and standing beside her chair.

"No; I'm not going back, not now," said Millie, thoughtfully. She did not look up at him, but fixed her gaze on her hands, folded in her lap. "What a

tremendous student you were in his office! I never saw any one work so hard as you did."

"Except when you were in the room—then I was looking at you, most of the time!" Marvin bent over her, but she gave no sign that she read his attitude.

"If you'd been looking at me, I'd have seen you." She smiled and raised her eyes. "You've not given up the study of law, have you?" There was concern in the lift of her brow.

"Oh no! But I'm not going back into Mr. Thomas's office. Why did you leave him, Millie? Was there any trouble?"

"Trouble? Of course not! How could any one have trouble with Mr. Thomas?" Surprise and annoyance stood in her eyes.

Marvin did not reply at once, but drew up another chair and sat down facing her. He leaned forward, his eyes searching hers as he questioned, "You like Mr. Thomas—like him very much, don't you, Millie?"

"I more than like him!" An angry color suffused her cheeks as she looked Marvin up and down. "I adore him!" she added. "You've no idea how fine he is!"

Marvin started at this—naturally. The situation was going to be more difficult than he had anticipated. Could it be that Millie was really in love with Raymond Thomas? Or had he merely convinced her that his business motives were all that they should be? Perhaps it was both! Anyway, it was obvious that the girl had Thomas up on some sort of pedestal; she was in a spunky mood, and Marvin saw that he was going to have his hands full trying to convince her that the feet on the pedestal were made of clay. Marvin flushed himself; he did not relish his position; he shrank from seemingly disparaging another man behind his back, especially to a girl. If there had been only himself to consider, he would not have spoken at all. Neither was it altogether for Millie's sake. She was young, capable, quick-witted; she would see through Thomas of her own accord, soon enough—if she were not actually in love with him! But Marvin was thinking of the old people, of hard-working, simple Mrs. Jones, and of amiable, careless Bill. Millie was the young, strong member of the Jones household, and it was

Millie who must be convinced and won over, if possible. Thus ran Marvin's thoughts—but quite honestly he admitted to himself that his love for the girl might be coloring his logic and his motives just a little.

"I'd like to tell you something I know about Thomas—"

"Oh, I know!" Millie interrupted, quickly. "He sold some property for your mother, isn't that it?"

"Yes; he sold it to the railroad—for a big price."

"I know—he told me all about it. He's a splendid business man! Why, that's exactly what he is doing for us! Hasn't daddy told you about it?" She glanced at him quickly, but he gave no sign of having heard this wonderful news. "I should think you'd like to see Mr. Thomas. He's up-stairs packing, now. He's leaving this evening. He came all the way from San Francisco just to help me—to help us all!"

"To help you?" Marvin asked.

Millie clasped her hands over her knees and went on, enthusiastically: "Why, this hotel idea has turned out splendidly, you know. But a week or two ago, Mr. Thomas wrote to mother, saying that he had heard that the railroad company had got wind of our success and contemplated putting up a rival hotel just back of us. Mother was nearly crazy at the news, and I wrote to Mr. Thomas, asking him his advice. He telegraphed that he would be right out to see us! Wasn't that just like him?"

"Exactly," said Marvin, dryly. "And I presume that when Mr. Thomas arrived he suggested that you let him persuade the railroad to buy this place and erect the new hotel here, instead of next door!"

"Why, John—aren't you clever!" Millie exclaimed. "How did you guess it? That is exactly what he suggested, and now it's all arranged! And they're going to pay enough to make mother and daddy comfortable for the rest of their lives!"

With a hopeless gesture, Marvin got to his feet and took a pace or two up and down the veranda. The girl watched him, puzzled.

"Are they going to pay cash?" Marvin asked, pausing in front of her.

"It's much better than cash! It's shares of stock that pay ten per cent. a year! It seems almost too good to be true."

"It does—it certainly does!" came from Marvin.

The girl had risen, glowing with enthusiasm. Quite naturally she put her hand on his arm and looked up at him happily, intimately, naïvely seeking his approval.

In the midst of his perplexity Marvin's heart gave a bound. That naïve touch on his arm and the intimate light in the brown eyes told him that, in one respect at least, all was not lost—not yet! He was about to take her hands and break into a rush of words when the girl suddenly turned her attention from him, remarking, eagerly: "Here comes daddy. We were afraid he'd deserted again!"

Marvin swung around. Much as he wanted to see Lightnin' to-day, he wished, just then, that Bill could have seen fit to delay his appearance a few minutes longer. Bill Jones, however, came serenely up the steps and stood with his hands in his pockets, shrewdly and humorously inspecting the pair.

"Sorry to interrupt the billin' an' cooin'," he remarked. "But say, John, ain't you takin' some chances round here? Did you know that Blodgett's here? I seen him go up-stairs when I went out."

Millie had flushed and turned away at her foster-father's first words, but now she looked curiously from one to the other.

"What on earth do you mean, daddy?" she questioned.

"He's just *helping me*, Millie," said Marvin, grinning at Bill. "Thanks for the tip, Lightnin', but I wanted to see you particularly to-day, so I—"

He stopped abruptly, for Bill had raised a warning hand.

Marvin recognized a familiar voice talking in the lobby. Glancing in, he saw Raymond Thomas standing in the center of the room, holding Mrs. Jones in conversation. Hammond and Blodgett had just come down the stairs and were joining the other two.

"Better beat it, John!" Lightnin' whispered.

But Marvin stood there. He was thinking quickly. He had caught a word or two of what Thomas was saying, and he gathered that matters were coming to a climax. Suddenly his expression cleared and he grinned.

"Never mind about that, Lightnin'," he said, mechanically opening the door for Millie, who, seeing that they were ignoring her, tripped in with a petulant toss of her head. "I think I have a little scheme that will fool our friend Blodgett. But first—Bill, promise me that you won't sign that deed without consulting me!"

"All right," said Lightnin', slowly. "I promise. But you better be careful, John, an'—"

"Come on!" Marvin interrupted, leading the way himself. "I've a great desire to be in on these proceedings!"

Seeing that the young man was not to be stopped, Bill said no more as he slid through the door and ambled after him into the lobby.

CHAPTER IX

"I think it is only fair to tell you, Mrs. Jones," Thomas was saying, a delicate, apologetic note creeping into his voice as he caught sight of Millie, "that this Marvin is not a proper person for your daughter to see. I fully believed that he was a fine young man myself once, and you cannot imagine my surprise when I discovered that he is the head of a gang of thieves who are going all over this part of the country, stealing timber."

"Mercy me!" cried Mrs. Jones. "A thief, no less!" Then, seeing Marvin unexpectedly present in person, she glared at him. "Somethin' always warned me against you, John Marvin! Oh, Millie, Millie! How many times have I told you you was makin' a terrible mistake lettin' him annoy you!"

Millie was evidently too astonished and puzzled to say anything. Meanwhile, Thomas had flushed deeply on finding himself confronted by the man he was in the act of damning. Instinctively he took a step back. Blodgett made a quick move toward Marvin, but Hammond seized his arm and stopped him.

"Hold on a minute, Blodgett," he whispered. "You can nab him later—he can't very well get away from us now. I want to have a word, first—I'm going to show this young cub just where he stands!"

Meanwhile, though the sheriff's move did not escape him, Marvin, a grim smile on his face, was gazing steadily at Thomas.

"Go on, Thomas," he said, quietly. "I'm interested! What else were you going to say to Mrs. Jones?"

Indifferently he strolled over beside Lightnin', who was in front of the California desk, his hands in his pockets, his half-shut eyes roving from one to another of the group. To look at him, one would not imagine that Bill Jones had any special interest in the proceedings. He drew out his bag of tobacco and papers and idly rolled a cigarette.

Thomas, having regained his poise again, turned to Mrs. Jones with his dazzling smile. "I'm really very glad that the young man chanced to present himself at this moment, Mrs. Jones, because—"

"That's all right, Thomas!" Hammond interrupted, suddenly thrusting himself forward and waving the other aside. "But we have something much more important on hand. Let's get to it! I can't monkey around here any longer.

"Mrs. Jones," he went on, "I've been trying to get you all together before I left, but you seem such busy people that it is as if I wouldn't have this opportunity. I wanted to tell you that the company for which I am acting has just wired me to close the transaction, and so I am ready to take over the property at once!"

Mrs. Jones, bewildered by his briskness and the swift sequence of events, stared at him, then transferred a gaze no less confounded to Thomas. "You mean," she questioned, "that—that you want us to leave at once?"

"Oh no! That's not necessary. But now that you have put your signature to the deed, the transfer will be made at once and we'll take over the management, allowing you to remain on until you have made your arrangements for the future."

With a sharp nod to her and an insolent sneer directed at Bill, Hammond swung on his heel and busied himself with a portfolio of papers he had dropped on the Nevada desk.

"I'm sure you can have no objections to these arrangements, Mrs. Jones," said Thomas, his voice as smooth as glass, though there was a slight quiver of his eyelids as he avoided Marvin's steady gaze and caught a strange gleam that emanated from Bill's puckered-up eyes.

Mrs. Jones had forgotten all about Bill and his part in the signing of the deed. But a multitude of thoughts were running through her mind, confused as it was. All that she could think of now was the simplest answer to Thomas's question. She stepped up to him and put a hand of confidence on his arm.

"Certainly I do not mind," she said. "I'm delighted and relieved that it is all settled!" Turning to Hammond, she added: "I want to leave the whole matter in Mr. Thomas's hands. I'll do just as he advises."

"All right, Hammond," said Thomas, deliberately turning his back on old Bill. "We shall deliver the deed to you at once, and you can take charge of the place immediately. I presume you will want to have—"

"Hold on there, young feller!" Lightnin's usual lackadaisical monotone was raised to a degree which bespoke a greater interest than his careless attitude indicated. He stepped forward and stood in front of Thomas, looking up at him with his shrewd gaze. When he felt that the man was ready to give him sufficient attention, Bill returned to his customary drawl.

"We ain't goin' to sell this place, my boy," he said. "Not until I consult my lawyer!"

His words brought his wife to his side instantly, her eyes blazing. "Bill Jones," she cried, "you just be quiet! What in the world's the matter with you—tryin' to throw away a chance to be nice and comfortable the rest o' your life! Are you crazy?"

"Nope. I'm the only one that ain't—'cept John, here."

Bill's steady, quiet grin exasperated Hammond and Thomas to white heat, but they were too near their goal to miss it by a step. They knew that under ordinary conditions Bill, in spite of his many shortcomings, held first place in Mrs. Jones's affections, and that any show of harshness toward him on their part might rally her unexpectedly to his support. So they smothered their rage. Hammond leaned an elbow on the desk and nonchalantly twirled his watch-chain, his mouth drawn into an ugly sneer. Thomas continued his air of deference toward Mrs. Jones, leaning over her with an appealing smile. Reacting to it, she took Bill by the arm and shook it roughly.

"You just got to listen to reason, Bill!" she said, transfixing him with angry eyes. "I set my heart on sellin' the place an' goin' to the city, as you oughter know by now. An', besides, it's 'most all fixed up, anyways—all but you signin' that deed. You got to do it, Bill!"

"You're all het up, mother," replied Bill, gazing at her with kindly eyes. "Ease up a bit! Nope. I ain't goin' to sign no deed for them two scamps—leastways not until I consult my lawyer!" And Bill pushed back his battered slouch-hat and stuck his thumbs in his faded vest.

"Scamps—!"

But before Mrs. Jones could complete her sentence Marvin stepped forward and put a friendly arm over Bill's shoulder.

"Bill's right, Mrs. Jones," he said, gently, though there was a fighting light in his eyes as he met those of Thomas. "Lightnin' has no need to apologize for anything he may say about these two men. This sale is a nice little scheme of theirs. They are trying to rob you."

Millie, who had been listening to it all, amazed and abashed, now stared at Marvin defiantly. "How dare you say that?" she blazed. "What right have you to interfere?" She rallied to Mrs. Jones's side and placed an affectionate arm around her waist.

Mrs. Jones was crying by this time. She wiped her eyes on her apron and looked at Marvin. "So it's you who's been puttin' Bill up to this!" she exclaimed. "I might have known—it's right in line with what we just heard about you! Well, he don't need none o' your advice—you just leave Bill alone!"

Marvin held out a deprecating hand. "But, Mrs. Jones, you don't understand —"

Blodgett, at a sign from Hammond, strode up to Marvin and put a hand on his shoulder. Marvin shook him off.

"Don't interrupt me now!" he said. "I've something more important to—"

"I'll show you how important it is!" said Blodgett, jingling a pair of handcuffs in front of Marvin. "I got a warrant for your arrest for stealin' timber! Put out your hands!"

Mrs. Jones and Millie stood by, bewildered, while Thomas, with supercilious satisfaction in his smile, sank into a chair and crossed his legs with an air. Hammond laughed coarsely.

Bill, his arm drawn through Marvin's, looked on, his enigmatic grin between his half-closed eyes and half-open mouth betokening an unswerving confidence in the ultimate.

"I can't be bothered with you now," said Marvin, addressing Blodgett. "Bill needs—"

"None o' your lip!" Blodgett grabbed him roughly and attempted to place a handcuff on one of his wrists, but Marvin flung him off and the sheriff went sprawling. Marvin stepped back a pace or two as Blodgett got up and came at him again, bawling, "Now you're worse off than ever—resisting an officer of the law!"

Marvin, however, did not seem to be worried. He faced Blodgett with an amused smile and pointed to the floor, where an uncovered space left between two rugs indicated the now famous state line.

"Law?" Marvin echoed. "Why, Blodgett, old boy, don't you know any more about law than to try to serve me with a Nevada warrant when I'm in the state of California?"

"By jiminy, he's right!" cried Lightnin', clapping Marvin on the back. "You got 'em where—where the rugs is short, John. Guess I didn't build this house on the state line for nothin'!"

Blodgett started back with a howl of disgust, while Thomas and Hammond looked at each other, making no effort to hide their chagrin. Millie had given an exclamation—an exclamation that sounded very much like one of relief, when she saw the sudden turn of the tables; but if it was an expression of her inner and secret feelings, she quickly smothered it. Mrs. Jones glared at Marvin with keen disgust and disappointment.

Lightnin', grinning, evidently was enjoying the scene hugely. Cocking his old hat over one ear, he struck a pose of comic nonchalance against the California desk and looked across the lobby at the furious Hammond.

"Hello, Hammond, old top!" he called, airily. "How's everythin' in Nevada? Come on over to California, an'—an' have a glass o' water!"

CHAPTER X

The unexpected dénouement between Marvin and Sheriff Blodgett brought consternation to those who had contrived toward his apprehension. Everett Hammond, in consultation with Thomas, would have taken the young man by force—for Hammond was a strapping six feet two or thereabouts, and Marvin was but a stripling in strength. But Thomas, cool and controlled, and always an advocate of keeping within the letter of the law, counseled him against any such hot-headed procedure, explaining that it might militate against them in a court where outside operators in land or mining stocks were not looked upon with any too friendly a spirit. Mrs. Jones and Millie, astounded and uncomfortable in a situation far afield from their uneventful lives, were too perplexed to speak, contenting themselves with staring at Marvin in unbridled disgust. Millie felt something of compassion for his predicament, but the thought that any one she knew should be accused of theft filled her with horror. Besides, it was he who was preventing her foster-father from signing the deed which would place them all in easy circumstances as against the difficulties of the present. Whatever of pity she had quickly disappeared. With one long look of disdain toward Marvin, she led Mrs. Jones up-stairs.

Blodgett, after his first surprise, was overcome with rage at the knowledge that a whippersnapper such as he considered Marvin should have placed him in such a ludicrous position. He, too, like Hammond, would have liked to have tried force, but he knew that Marvin stood well among the lumbermen in Washoe County and his attempt at re-election was too close at hand to permit of his taking any chances when those to gain by them were strangers without a voice in the politics of the section.

With a covert eye he watched Marvin, who stood a few feet from the line and smiled down at Bill, the latter grinning up at him, warming to the affectionate arm placed about his shoulder. As the two women went up the stairs, Marvin watched them, a half-shadow in his eyes as he caught Millie's disdainful glance. Giving Bill a good-by pat, Marvin, hat in hand, made a sweeping bow which took in Hammond, Thomas, and Blodgett.

"Good evening, gentlemen," he laughed ironically. Sidling with his back to the California desk, he reached the door, where he waved his hand at his astonished persecutors and slid out upon the veranda and down the steps, where he wandered off in the twilight.

Blodgett walked to the door and looked after him. "Guess I'll stick 'round a bit," he grumbled to Thomas, who had followed him to the door and was gazing after Marvin.

Hammond remained where he was, leaning up against the desk, watching Thomas and Blodgett with surly eyes. "You two are a nice pair of mollycoddles," he sneered, "letting him make a get-away like that. If either of you had any gumption you'd have knocked him over the line."

"Yes?" drawled the sheriff. "'N' be arrested for assault. My jurisdiction stops on this side of the line." He was silent, while he took a piece of tobacco from his pocket and cut off a bite. After a minute he grunted: "Humph! He'ain't gone yet. I'm goin' to stay here 'til to-morrow mornin'. By that time he'll be home, for he 'ain't got no place else to go. Then I'll nab him good 'n' quick."

All this time Bill had stood in the middle of the floor, listening to all that was said, saying never a word himself. Now he went slowly to one side of the room, took a chair that stood against the California wall and placed it in front of the table, close to the dividing line. Blodgett, thinking there was reason for his act, so deliberate was it, took a chair from its place near the Nevada wall and placed it parallel with Bill's, seating himself in it.

The two men contemplated each other in silence. Thomas and Hammond stood in short consultation, and then the latter went to his room on the California side of the hotel, Thomas sauntering to a rocking-chair on the veranda. He lighted a cigar and sat looking out over the lake, where the moon was rising over the rim of the bordering Sierras.

There was scrutiny in the eye with which Blodgett viewed Bill. There was distrust in the steady look which thrust itself between Bill's half-open lids and struck straight in the center of Blodgett's pupil. The latter opened his mouth to speak, but shut it again, as steps were heard on the veranda and Rodney Harper entered the lobby.

"Do you know where I can find John Marvin?" he asked of the two men whose backs he faced. Both immediately turned in their chairs, the sheriff alert for any news he might obtain of the habits and customs of the man he was pursuing. Bill, when he saw who it was, arose and slowly went toward him, holding out his hand.

"Oh! Hello, old chap! I got your telegram, also one from Marvin. Where is he?" Harper grasped Bill's hand and gave it a hearty shake, glancing anxiously about the lobby.

Bill ignored the last question, keeping a slanting eye on Blodgett. "Your wife's up-stairs," he whispered, with a nod toward the Nevada up-stairs hallway.

"Where?" Harper turned in the direction of Bill's nod.

"In Nevada," Bill drawled, with a slow grin.

Harper shrugged his shoulders and smiled at Bill, continuing with his subject, "What's the number of her room?"

"You'd better go slow." Bill thrust his hands in his pockets, assuming an air of counselor. "I told her I thought you'd be here."

"What did she say?" Harper was at the register and going quickly down the list. He came to his wife's name, letting his finger run across the page until he came to the number of her room; then he swept past Bill and had his foot on the first step when Bill stopped him.

"Ye'll spoil it all, if ye ain't careful." The old man drew the younger one's head close to his mouth, speaking in low tones.

"What makes you say that? In your telegram you made me believe everything was all right," Harper said, as he leaned against the newel-post.

"So 'twill be if you listen to some one that knows summat 'bout women. If you chase chickens they run like wild-fire 'n' ye can't catch 'em unless you get 'em in a corner. But if you holds out your hand with a little feed, by 'n' by they eat right out of it."

Harper laughed. "That's what you think, is it?"

"I know," Bill chuckled. "You oughter heard what she said to me." Bill loved to think that he knew something the other fellow would like to know. Even his sympathy with Harper and his desire to see all well between him and his wife could not contain him when it came to holding out in a matter of mere curiosity. "I was goin' to tell you, but I'd better not," he added, with a wise look. "'Twan't very encouragin'," he added.

Harper walked away from the stairway, his arm through Bill's. "Don't you think you'd better tell me?" There was real concern in Harper's voice and Bill knew it was the expression of the anxiety in his heart. Too, Bill knew that it required tact to approach Mrs. Harper in her present hysterical mood.

So he answered, with a brusque shake of his head, "Nope."

"Well, of all the damned-fool things!" Harper stood still, letting go of Bill's arm.

"I wouldn't call her that," Bill remonstrated, moving away from Harper with a quick look of astonishment.

"Who's calling her that?" Harper paced up and down, a scowl on his face. "I mean the whole situation. It's such a silly mistake. And yet she won't believe it."

"Same here." There was a warm sense of comradeship in the same sad cause in the air with which Bill made his last remark. It brought Harper to a standstill. With a smile he listened to the old man's explanation. "Folks don't believe nothin' I tell 'em. Women never do believe you when you tell 'em the truth, but tell 'em a lie 'n' they swallows it hook 'n' bait. Why don't you write her a letter? Ef she knows yer here 'n' ain't too anxious ye got a good chance."

"I believe I'll do that. It sounds like a good scheme. Give her a chance to think things over instead of running in on her all of a sudden. Have you got a room?" Harper went to the Nevada desk and took up the pen to register, but Bill interrupted him.

"Come on over here," Bill nodded to the California desk, following his own gesture to a place back of the counter. "We always got plenty of room on this side."

"Where's the bar?"

At this question put by Harper, Bill's head struck an interesting and inquisitive attitude. "Down to the saloon," he said.

But he was doomed to disappointment. "Never mind, then," was Harper's disheartening reply.

Bill's interest slackened, but was quickly revived as Harper, in the middle of scribbling a note to his wife, looked up long enough to add, "I've got a flask in my bag."

It did not take Bill long to get from behind the desk. That bag was a friend. He had promised Marvin that he would not spend his pension, and Mrs. Jones had carefully removed the flask from its corner in the Nevada desk. "I'll show you right up," he exclaimed, making an undue and unaccustomed haste toward the stairs, bag in hand.

At the top of the stairs he stood, waiting for Harper to seal the envelop.

Harper came up the stairs, two at a time, and handed the letter to Bill, offering to take the bag from Bill as he did so. But Bill shook his hand loose. "I'd better take the bag to the room for you first. Ye must be pretty tired." There was a hidden implication in the monotone in which the last speech was delivered.

Rodney Harper was too possessed of his own affairs to feel it, and with an impatient gesture he stooped to take his bag from Bill, pleading, "Please, old man, won't you deliver the letter?"

But Bill, attuned to a rare occasion, had quickly evaded Harper's outstretched hand and was down the hallway with the bag. He opened the door of Harper's room and went in first, depositing the bag on the floor. Then he went up to the frowning guest, caught hold of his arm, and whispered:

"Marvin's here, but I didn't want them folks down-stairs to know it. They come to git him fer cuttin' down your timber, but he jumped over the California line. He'll be back by 'n' by, I'm thinkin'."

Harper was interested in the news and asked Bill to let him know when Marvin was about again, but he was not interested enough to make him forget what was his present paramount concern. He gave a desperate glance toward the letter in Bill's hand.

But Bill had no intention of leaving until his own possessive intention was fulfilled. He backed away from the bed where he had placed the bag, slowly retreating until he came to the door, which Harper had left open for Bill's exit. When he reached the sill he grasped the knob with one hand, half closing it, while he stood in front of it on the inside. The anxiety in Harper's contracted brow met the slow grin that wrinkled about Bill's eyes and mouth. A question started from Harper's tongue.

Bill forestalled it. "I'm sorry," he said, slowly and gently, but with a wise twinkle in his blue eyes, "thet there ain't no bar. Mother she doesn't like drink." He paused a moment to see what effect his words were having. As he saw his intention was slowly penetrating through Harper's absorption in his own affairs, Bill made his final coup. "She lifted my flask from the desk, or I could be askin' you to have a swig."

Harper threw back his head and laughed. "So that's it!" he exclaimed, hurriedly opening his bag and extracting the flask. "Well, I tell you what I'll do. If you'll beat it in quick time with that note I'll treat you to the whole darned flask."

Bill needed no second bidding. With flask secure in his back pocket he lost no time in descending the California stairs and mounting the flight to the Nevada half of the hotel and leaving the letter with Mrs. Harper. On the way back to the lobby he slightly diminished the contents of the flask.

He entered the lobby with a smile whose target was the whole world and threw himself whole-heartedly into the pleasure of tormenting Blodgett. He knew that Blodgett was furious at the manner of Marvin's escape as much as at the fact itself. So he dropped into the chair next to the sheriff, drawling, "You goin' over to Truckee to get a California warrant?"

Blodgett gave Bill a mean look, sneering, as he sniffed at the air, "Say, you're collecting something, ain't you?"

"I didn't get nothin' from you," Bill answered, shortly. Which answer was not without its point, Blodgett's reputation as one of the closest men in Washoe County not being unknown to Bill.

"Don't get sore. I wished I was in your place," said Blodgett, as he fidgeted about in his chair and looked through the doorway.

Thomas, who had been on the veranda all this time, came indoors just as Blodgett finished his remark.

Bill caught it quickly, his smile flashing into a gleam of humor toward Thomas.

"In my place?" asked Bill, with a twinkle. With a nod toward Thomas, he added, "You're like that other fellow."

Thomas flushed, but ignored the innuendo. Taking a paper from his pocket, he looked through it. At the California desk he stopped to sign his name at the end of it. Then he called to Bill, "Did you tell your wife we were waiting for her?"

"No, I didn't. I've been up visiting my friend Harper. He's a big millionaire. Havin' trouble with his wife. Patched it up. Told him to write her a note 'n' I brought it to her. He gimme this fer the idea." Bill produced the flask from his pocket and extended it toward Blodgett, but when it was half-way on its journey he jerked it back, just as Mrs. Harper emerged from between the portières of the Nevada upper hallway.

Clad in a fluffy, silken negligée, she tiptoed half-way down the stairs before she saw Thomas, who had left the desk and was standing in the doorway with his face toward the moonlit lake. She gave a smothered cry and was about to turn back. Bill held up a warning finger toward Blodgett, who quickly obeyed the injunction to look straight ahead.

Arising from his seat, the old man made a friendly motion toward the frightened little creature on the stairs and she came down to where he stood in the middle of the floor, casting bewildered glances to right and left and trembling as he whispered in her ear:

"He's in Number Four. Hurry now, before any one catches on."

"Do they all know he's my husband?" she flittered as she sped lightly up the California stairs.

"I won't say nothin' about it." Bill could not resist a wink, which met with a toss of Mrs. Harper's pretty head as she glided between the portières toward her husband's room.

Bill went back to his chair again. Everett Hammond came into the room from the porch outside. Laying his hat on the California desk, he went around behind the counter and turned the pages of the register.

Bill did not sit down, but wandered over to the desk where Hammond stood and gazed at him through half-open eyes. "Oh, you runnin' the place now?" he questioned.

Hammond did not answer him at once, but kept on running over the names on the list. But there was a compelling force in the mild gaze of the old man which made Hammond stop to reckon with him. "Yes," he said, brusquely, while he frowned at Bill. "I've just settled everything with your wife. All that's needed now is for you to sign that deed."

There was no answer forthcoming from Bill. Instead, he slowly took the flask from his pocket and held it in front of him. "I'll take a drink with you," he said, with a slow smile.

Hammond did not glance up, but answered, with a half-smile, "I'm sorry, but I, haven't got anything."

"I have," said Bill, shuffling toward him with the flask.

Blodgett twisted about in his chair and called, "You look and act as if you'd had enough."

Bill left the desk and seated himself beside Blodgett again. "I don't want it for myself," he said, putting the spurned flask back in his pocket; "it's just for social—ability. I don't drink."

"Don't tell me that," scoffed the sheriff. "You're a booze-fighter."

"No, I ain't," Bill answered, quickly.

Then seeing a chance for romance, he added, "I'm an Indian-fighter."

"Is that so?" Blodgett drew out his answer in an accent that spoke of disbelief.

"You bet it's so. Did you ever know Buffalo Bill?" Bill leaned forward so he could see what impression he was making upon the sheriff.

Out of the corner of his eyes Blodgett was watching Bill. "Yes, I knew him well," said the sheriff, gruffly.

Bill leaned closer to Blodgett and looked squarely into his eyes, which showed the same doubt as his own. "I learned him all he knew about killing Indians. Did he ever tell you about the duel I fought with Settin' Bull?"

"Settin' Bull?" The sheriff sat up straight and let his glance travel the length of Bill's body and back again to the old man's eyes, which were not quivering a lash.

"He was standin' when I shot him," grinned Bill. "I never took advantage of nobody, not even an Indian."

The sheriff relaxed contemptuously into his chair again. "You've got a bee in your bonnet, 'ain't you?"

"What do you know 'bout bees?" Bill started to roll a cigarette.

"Not much. Do you?" was Blodgett's reply as he looked straight ahead.

Bill slowly rolled the weed, put it in his mouth, and chewed on the end of it. Then he made slow answer, halting between sentences, his eyes slanting toward Blodgett to gather the effect of his words:

"I know all about 'em. I used to be in the bee business. Drove a swarm of bees across the plains in the dead of winter once. And never lost a bee. Got stung twice."

The sheriff jumped to his feet and directed a scornful glance Bill's way as he straightened his coat about his shoulders, twisted his belt, and started for the door, taking his chair and putting it in its place against the wall on his way. "I got enough. I'm going outside."

Hammond, who had been busy going over the register all this while, now came from behind the desk and walked toward Bill. "Now look here, Mr. Jones—"

"Won't do no good fer you to talk," Bill interrupted him, but did not even glance up, remaining seated in the middle of the lobby. "I ain't goin' to sign nothin'—understand that," he said, not ungently.

Hammond planted himself squarely in front of Bill, setting his doubled fists on his hips. "Well, if you don't," he snarled in a loud voice, "you'll find yourself without a home. You understand that—if you're not too drunk." He delivered the last remark with a sneer that was almost a bark.

"Do you think I'm drunk?" Bill went close to Hammond, his head thrown back the better to look into his opponent's shifting eyes.

But Hammond made him no answer, for just then Mrs. Jones, dressed in an evening gown of the latest cut, appeared on the stairs leading from the California side and walked self-consciously down on the arm of Thomas.

At first Bill did not recognize her. He thought it was some one of the boarders, who often wore evening dress for dinner. He hurried toward the Nevada desk, asking, as his eyes began at Mrs. Jones's feet incased in shining silver slippers and wandered slowly up the folds of handsome yellow brocade to the wide expanse of bare neck and shoulder, "Do you want your key?"

Mrs. Jones blushed, and the tears sprang to her eyes, as she wrapped the lace scarf flung over her shoulders closer across her bosom. Turning toward Bill, she did not answer him, but took up the pen and pointed to the paper which Hammond had placed on the desk, ready for them both to sign.

By this time Bill's glance had reached her face. For a moment he stared in astonishment. Then he gave a gasp and stood back, his arms limp at his sides. "Mother, 'tain't you?" he gasped.

"Yes, it's me," Mrs. Jones replied, angrily, as she gulped to keep back the tears which were forcing themselves to the surface, part in timidity and part in rage at her spouse, who she thought was making fun of her.

Bill straightened himself and, with a droll nod of his head, replied to Hammond, "You're right, I'm drunk."

Thomas stifled the smile that rose to his lips in spite of himself. He was standing on the other side of Mrs. Jones. Now he came around and stood in front of Bill. "Don't you approve, Lightnin'?" he asked, pleasantly. "She's dressed in the height of fashion."

"Looks higher 'n that to me," Bill drawled, as his eyes twinkled at the eight inches of bare ankle between Mrs. Jones's skirt edge and her silver pumps.

Mrs. Jones, with an insulted toss of her head, dropped the pen with which she had signed the paper and hurried across the lobby to the dining-room door. She was crying, but Bill did not see her tears. His eyes were still fastened upon her ankles. "The mosquitoes 'll give you hell in that this summer," he called out as she slammed the door behind her.

Thomas shrugged his shoulders and smiled indulgently. He had made up his mind to leave matters entirely in Hammond's hands now; so he went up the California stairs, calling out to Bill, "You'll get yourself disliked around here, if you don't look out."

"So'll you," Bill called back as he shambled to the same stairway.

But he got no farther than the first step. Hammond laid a detaining hand on his arm, pulling him around in front of him. "See here, Jones," he said, harshly, "I've taken over the management of this place and I don't propose to stand any more nonsense from you, and unless you do as your wife tells you to, sign this deed, I'll kick you out."

Bill pulled himself loose from Hammond and stood facing him, a defiant grin antagonizing Hammond to greater fury. "No, you won't!" Bill laughed, never flinching in the half-open eyes with which he held Hammond's eyes.

"What's the reason I won't?" Hammond asked, making a threatening move.

Still Bill remained unmoved. "'Cause you talk too much about it."

Hammond stood and looked in fury at Bill. But he knew that any harsh treatment on his part might spoil the whole game, which he now felt to be near an end, which meant victory for his plans, so he smothered his desire

to lay hands on the old man, and with sudden impulse, born of a desire to end the discussion, he hurried up-stairs to his room, calling back, "You'll see whether I will or not."

CHAPTER XI

When Bill was once more alone he meandered slowly to the Nevada desk and leaned against it, looking abstractedly toward the veranda. Outside, the moon was shining in long shafts of silver light through the branches of the tall cedars. Beyond the lake lay, itself a moon of silver on the floor of the valley. He could hear the hoot of a hundred billy owls. Unthinkingly he went to the door and stood there, sniffing at the fragrance of the pines. Then he went back to the desk again.

As Mrs. Jones had closed the dining-room door behind her, he had seen that she was crying. Her tears had acted like a knife on his obstinacy. If there was one method of bringing Bill to a realization of his shortcomings, it was the knowledge that he had brought his wife to tears. No matter what the occasion, through the years of his many omissions, he had never failed to awaken to a sense of duty at the slightest hint of a sob on her part. And now remorse was gnawing heavily at his heart. He knew that she was sorely tried by his laziness. He knew that ever since she had come from the city she had longed for some of the luxuries which she had tasted for the first and only time in those few brief days when Thomas had given her a bit of every woman's paradise. And as he looked out he wondered in his slow, but none the less logical, way what it mattered, after all, if the place did go, just so long as mother was happy. To be sure, the place was worth much more than Hammond was willing to pay them. But it was enough for their humble needs. From the door beyond he could hear the sound of her sobs. He went half-way across the room. "Yes," he reasoned with himself, "after all, the property is hers. I gave her my part of it to do as she pleased with." And a sudden resolve to do her will possessed him.

But as he reached the middle of the lobby he heard some one on tiptoe behind him. He turned to see Marvin, crouched down by the desk, so that any one coming from up-stairs could not see him.

"Sh!" Bill put up a warning hand. "Blodgett's outside there some place."

"He's snoring in his buggy," Marvin whispered back, with a half-smile. "Bill," he added, quickly, "I've been outside and I've heard every word they've been saying to you. I haven't time to tell you all I want to just now. Promise me again that you won't sign that deed until you've talked further with me about it."



**"PROMISE ME YOU WON'T SIGN THE DEED." ... BILL
HESITATED**

Bill hesitated. "Well, mother wants to awful bad," he answered, slowly.

From the dining-room voices could be heard. "Ye'd better get out," said Bill.

"Not until you promise," persisted Marvin.

Bill wavered an instant. He wanted mother to be happy, and yet, another day did not make so much difference—especially when Marvin was in

danger. The door in back of him swung open. Leaning quickly down to Marvin, as the latter crept toward the outer door, he whispered: "All right. I promise."

Mrs. Jones walked into the room with a swagger, half of indignation, half of sorrow. She was still wiping the tears from her eyes. The deed and the pen were in her hand.

Bill went to her, placing an affectionate hand on her bare arm. "Mother, ain't you cold?" He could not resist another tilt at her unusual costume.

"No." She stamped her foot at him, withdrawing her arm from his hand. "I'm hot all over at you, insulting me before those gentlemen." Hurrying to the California desk, she buried her head on her crossed arms and began to cry. "Makin' fun of me," she sobbed, "because I try to look presentable for once in my life."

Following her to the desk, Bill patted her gently on the back. "It's gettin' late, mother," he coaxed. "You're tired and you've been working hard. You're all tuckered out. Now you go up-stairs and put on some clothes and go to bed."

Mrs. Jones shook him from her and went to the other desk, where she stood facing him, her face red and swollen from her tears. "Oh!" she wrung her hands as she looked at him with blazing eyes. "You ought to be ashamed of yourself with the gentlemen here to buy the place and you around the office drinking liquor."

"No, I ain't." Bill answered her outburst mildly, backing away from her lest she should discover the flask in his back pocket.

He was too late. Her eye, accustomed to just such investigations, had detected the lines of the flask as it protruded from his back pocket. Taking hold of him, she put her hand in his pocket and produced the flask, holding it, half empty, to the light.

"That belongs to Mr. Harper," was Bill's ready excuse, given in the monotone which invariably masked a world of guilt. Seeing the doubt in his wife's eye, he added, "You can go up-stairs and ask him, if you don't believe it."

Mrs. Jones did not reply to his last remark. Instead of which she went back to the California desk, where she set down the flask, taking up the deed and holding it out to him. "Now, Bill," she said, in a coaxing voice, "I want you to put your name to this paper." She smiled kindly upon him for the first time in many hours.

Bill wavered before her smile. It was difficult for him to withstand it, especially as he knew how sorely he had tried her. But a promise was a promise with Bill, and his one pride was that he had kept intact through all the years of his digressions this one principle—he never broke his word. He had told Marvin he would not sign the deed without consulting him further, so he turned his eyes from his wife's face and answered, in a low voice, "I can't, mother."

"What's the reason you can't?" Mrs. Jones planted herself in front of him, determined that he should not evade her this time.

"Because I promised my lawyer I wouldn't," he answered, his head turned away from her.

Mrs. Jones took him by the arm and swung him into line with her gaze. "Now see here, Bill," she snapped, "I've been working my fingers to the bone and I'm entitled to a rest and you sha'n't stop my having it. Mr. Thomas is going to take Millie and me to the city to live. If you sign that you can come with us. If you don't you've got to look out for yourself for a while."

Bill had not paid much heed to Hammond's threat delivered a few minutes back. But now something in his wife's tone brought it, recurrent, to his mind. He wondered if, after all, there was some truth behind it.

Pausing to gather his points together, Bill nodded toward the stairs. "Mother, that fellow, Hammond, said he'd throw me out. Do you want me to get out? Is that what you mean?"

It was not what Mrs. Jones had meant at all. But the events of the day had strained her nerves to breaking-point. Since daylight Thomas and Hammond had been after her to force Bill to do as she wished him to. To their suggestions that she teach him a lesson by leaving him for a while she had turned a deaf ear. But now they came surging back and, in answer to

her call for a method of persuasion, clamored for recognition. Before she had time to stifle them they had their way. "I mean just that, Bill." There was silence as she thrust the words from her mouth. Bill stood still, gazing steadily at her.

She lowered her lids.

Then he came closer and looked up under her eyes, in the hope that he would find a relenting gleam there. But she turned away from him.

"All right, mother—I'll go."

Without another word he turned and walked toward the door. Mrs. Jones took a quick step forward, then paused. "Where'll you go?" she asked, half in surprise, half in defiance, for she had not believed that he would accept her challenge.

"Oh, 'most anywhere," he said, gaily, forcing a whistle, though his lips quivered. "I'll be all right, mother."

His wife stepped forward again, extending a staying hand, but her resentment had her in its grip. Her hand fell back to her side.

"Well," she called out to him as suddenly she turned from him and hurried up the stairs, "I mean every word I've said! It's one thing or the other! Either you make up your mind to sign this," and she tapped the paper in her hand, "or I'm through with you!" Without a backward glance—fearing, perhaps, that she might weaken—she disappeared along the upper hallway.

Bill took his hand from the door and came slowly back into the room. He strolled to the California desk, pushed back his old hat, and stood there with his hands in his pockets, thoughtfully. Of a sudden his absent eyes lighted on the flask resting on the desk, where Mrs. Jones had put it down. Bill stroked his stubbled chin and gazed at the flask. It seemed to suggest an idea to him. Satisfying himself that there was no one around at the moment, he strolled to the door, poked his head out, and gave a peculiar whistle; then he walked back to the desk and leaned against it, waiting.

In a few minutes Zeb's unkempt visage silently framed itself in the softly opened door. Lightnin' jerked his head as a sign to enter. Stealthily, with

many a wary glance to right and left, his disreputable partner of the past eased himself across the lobby and stood before Bill, childlike, trustful inquiry in his eyes.

"What's the idee, Lightnin'?" he rumbled, puffing at the frayed remains of a cigar.

With a gesture of calm triumph Bill pointed to the flask on the desk.

"I said I had it, Zeb," he remarked, in the tone one uses when confronting and confounding a skeptic with ocular proof, "an' there it is!"

"Why, so it be!" said Zeb, reaching out for the prize.

But Lightnin' stopped him. "Hold on a minute, partner. The evidence ain't to be absorbed just yet. In fact, brother, we better keep it intact for future use, 'cause you're goin' on a long journey, Zeb. You an' me is goin' to hit the trail again, old-timer!"

"Gosh! You mean it, Lightnin'?" Zeb showed almost human delight and anticipation. "But for why? You had a row with your old woman?"

"Nope," Bill replied. "Can't call it that, exactly. You needn't worry them brains o' yours about why we're goin', Zeb. It's just that I got a notion to teach some people 'round here a lesson, an'—an' maybe I can bring poor mother to her senses," he added, gently.

"When we goin'?" Zeb questioned, his eyes on the flask.

"Right away—this here minute, in fact," said Bill.

Zeb looked at him dazedly. "Just as we is? Where 're we hittin' fer?"

"I ain't telling that just yet," said Bill, slowly. "Where we are goin' is a secret."

"Oh," Zeb answered, with a nod of wisdom. "I—see. You ain't tellin' 'em you be goin'—not even your old woman, eh?"

"Them brains o' yours is pickin' up a bit, ain't they, Zeb?" Bill commented, with encouraging approval. "Well, you hit it, all right! Nope, we ain't tellin' nobody. We're goin' to kinder disappear completely for a pretty good space.

Mother ain't to be able to locate me a-tall. There's some others as 'll likely find out, but I ain't worryin' about them—they want to get rid o' me, an' they ain't likely to exhaust themselves any tryin' to find me. I got a object, Zeb. It ain't none o' your business what that object is—by which I merely mean to say, old-timer, that you wouldn't have no particular interest in it. Come on—let's get out now, afore they begins to gather 'round me again!"

Picking up the flask and sliding it into his coat pocket, Lightnin' walked away toward the door. Nodding wisely, Zeb followed, eyes hopefully on the pleasant bulge in his old partner's coat.

CHAPTER XII

"Well!" Millie, appearing with a tray of late supper to take up-stairs to one of the guests' rooms along about ten o'clock that evening, almost ran into Marvin, who had returned to the hotel in the hope of seeing Bill and giving him the full reason for his not being a party to the sale of the place. The lights in the lobby were turned low and he had managed to evade the sheriff, who was sitting in his buck-board outside, waiting for Lemuel Townsend, who was to return to Reno with him.

Millie's exclamation, because of her surprise in seeing Marvin again, escaped her in pleasant tones, but her memory asserted itself and the smile rapidly faded from her face and she gave a haughty toss of her head, saying, as he stepped in front of her when she started for the stairs, "Will you please let me pass?"

But Marvin had wanted to see her quite as much as he did Bill, the impression she had given him of her liking for Thomas having cut deeper than the events of the earlier part of the day had given him time to realize. Ignoring her request, he removed his hat and said, as he searched her eyes for some play of the old light that had often gladdened his heart in the days when they were together in Thomas's office in San Francisco, "I suppose you are surprised to find me here still?"

Millie swayed toward the Nevada desk, depositing her tray upon it. She faced him, her eyes flashing, her cheeks flushed. Her first impulse was not to answer him. She could not understand his interference in the matter of the deed. Neither did she believe one word he had uttered against Hammond and Thomas. On the contrary, Thomas's apparent interest in her and her mother and his constant flattery and attentions had attained their end. She believed in him implicitly and therefore had given credence to every word he had said against Marvin. Nevertheless, the charge that he was not honest could not quite overcome the quickening of her interest which had manifested itself lately in a heart that ran far ahead of itself at his approach.

After a silence in which she stared at him steadily, his eyes answering hers with an unflinching candor mixed with a vague wistfulness, she answered him. "I don't think anything you could do would surprise me, after all that has happened to-day and all that I've been told about you."

"Millie!" Marvin awkwardly rolled his hat in his hands, while his speech faltered. "I've been waiting around here now for two hours in the hope that I could explain to you why I wanted to stop that sale. And I cannot bear to have you believe that I am a thief and—"

Millie was touched by his attitude. Her hand left her hip and started toward his arm in friendly contact. But again returned the whole picture of the afternoon's events and she coolly turned from him and went to take up her tray again.

"Will you please let me pass?" she asked a second time, as he tried to prevail upon her by taking the tray from her and setting it down again. "I wish to have nothing to say to you. I do not believe your excuses. Mr. Thomas is the best friend I have in the world. I won't listen to a word against him, and I am sure he is too fine a gentleman to say anything about any one unless he were sure that it was true." As she came to the last words she swallowed to keep back the tears, for although they were uttered in perfect faith, her words burned into her own heart with as much bitterness as they were directed toward Marvin.

He was too filled with his mission and too sure that Millie's interest in him was gone to notice the catch in her voice or to attribute it to any sense of affection for him, had he noticed it. He took her hands in his and shook them gently in an endeavor to get her to look into his eyes again. "Millie, please listen to me! I know what I'm talking about when I say that Mrs. Jones is being cheated and robbed—"

She broke away from him, and stood glaring at him, as she stamped her foot. "Don't you dare to say another word about Raymond Thomas to me! Anyway, it is none of your business if he is cheating us!"

"Millie, Millie." Marvin's voice was full of pleading as he persisted, going close to her again and shaking his head sadly. "Why do you allow yourself to be taken in this way? Don't you know that the only reason I am

concerned is because I care—Oh, well." He turned away with a sigh and went over to the Nevada desk and took up the tray. "I won't say any more. Will you let me carry the tray up-stairs for you? I'll go then, and you won't be bothered with me any more."

The glare in her eyes melted and she made a gesture as if she would call him to her side again. But she could not forget so easily, and she said, without turning to look at him, in tones less sharp, "Why didn't you tell me before that you suspected him?"

"How could I? You told me how much you thought of Raymond Thomas. I hadn't realized that before—" He put the tray down and came to her side once more.

"Do you mean to say," Millie was again angered, "that I told you I loved Mr. Thomas?"

"That's what I understood," Marvin replied.

The two stood there, Millie glancing at him in contempt, while his whole heart went out to her from his eyes.

He was the first to break the silence. Almost touching her hand with his, he said, softly, "You mean you don't love him?"

Millie snatched her hand away and went back to the desk. "You're always wrong! I told you he was my best friend and he is. I never said I loved him."

If Marvin had not been attracted by the arabesque of the faded rose-garlanded rug at that moment, he would have found some solace in the lowered lids and half-smile which Millie vouchsafed him. But he did not see it. Slowly he followed her back to the desk, this time standing aside as she made her way toward the stairs. "Well, say it now—I mean"—he hesitated, embarrassed, then went on—"I mean—say you don't care for him. And then if you'll only give me time I'll find out what their game is."

Millie stood at the newel-post, steadying the tray against it. Looking down at him, the hard gleam returned to her eyes as she replied, emphatically: "Oh, I don't want you to find out anything about it! I know you're mistaken

and you're not going to prevent mother's selling the place, because it's already sold. As soon as daddy's name is signed to it we get the money."

"Well, you sha'n't have that, Millie." Marvin swung his hat against the post without looking up at her. Through the window he traced the moonbeams as they filtered through the pines outside. Above the hoot of an owl the swish of the lake came in to them. They both stood there, gazing out to where so few weeks ago they had walked in the happiness of an unconscious awakening.

It was within Millie's heart to relax as she saw him sigh. From above just then came the sound of Mrs. Jones's voice. It brought back her concern for the tired woman above-stairs. With it returned her anger at Marvin. "You're trying to prevent this sale just to hurt Mr. Thomas in my eyes!" she snapped.

He turned and met her with the question, "Thomas told you that, didn't he?"

She nodded.

"Just the same, Millie," and here Marvin mounted the step and stood close to her as he looked squarely in her eyes, "I'll never let Bill sign that deed. Some day you'll thank me for it."

This was more than her patience could stand. In her anger she almost dropped the tray, but she managed to hold it taut against the balustrade as she frowned at him and stamped her foot.

"Thank you?" she asked, in no gentle voice. "I shall always hate and despise you for it. Always! I hope I shall never see you again, and if I do I shall never notice you—nor speak to you the longest day I live!" Exhausted with her temper, she turned to mount the stairs, when she looked out toward the veranda and saw a figure slowly and stealthily coming up the steps. She recognized it at once and shrieked out, just as the sheriff entered the door, "John, look out!"

But Marvin had been watching her, and the fear in her eyes as she saw Blodgett had been warning enough for him. He gave three quick skips to the other side of the lobby, making mock obeisance toward her, laughter in

his voice because of her betrayal of her solicitude in spite of all that she had said.

"Thank you, Miss Buckley," he called as he went up the California stairs to the hall above, just as the sheriff had reached out for him, "thank you, Miss Buckley! I shall be grateful to you—always!"

CHAPTER XIII

Bill's disappearance brought quick changes to the little hotel at Calivada. His ready acceptance of Mrs. Jones's alternative was a complete surprise, and it was several days before she and Millie realized that he had taken her at her word. Even then they thought he had gone off on one of his temporary jaunts in the hills. When the days grew into a fortnight and he did not return they instituted a search among the near-by villages and mining-camps. Everett Hammond and Raymond Thomas were solicitous aids in the inquiry, not for the two women they were defrauding, nor because they felt any concern for Bill's welfare. Rather was their full attention turned toward securing a deed which the Pacific Railroad would consider law-proof. Had the property been entirely within the state of Nevada, Bill's signature would not have been imperative, but the California laws regarding the sale of property were evadable by numerous small technicalities, and shrewd counsel demanded that bona-fide deeds must appear as freewill transfers from both the husband and wife. It was for this reason that Bill's disappearance was a matter of deep satisfaction to both Hammond and Thomas. They had begun to despair of his putting his name to the deed. Now, should he not return within six months, they evolved a new scheme and one which would be law-proof if it could be carried through.

If Mrs. Jones could be persuaded into a divorce, and the decree obtained with full rights to the property, the deed would be legal without Bill's name. It was for this reason that Hammond and Thomas put themselves at Mrs. Jones's service and did everything in their power to discover Bill's whereabouts. It was several weeks before they traced him to Sacramento and from there to the veterans' home at Yountville. By this time Mrs. Jones was quite beside herself, for, in spite of Bill's shiftlessness, which was quite enough to wear away the patience of the average woman, she felt a deep affection for the generous-hearted, whimsical old creature and his companionship through fifteen years, and at a time when her father's death had left her desolate had relieved the monotony of a life which had had little else but hard work. Millie, too, missed her foster-father, whose

frequent sallies kept humor alive when work and poverty pressed hard. In reverent and grateful memory she held the thought of his care for her when she had been left a waif by her own father's death. And so, together, Millie and Mrs. Jones pressed Thomas for news of Bill.

He knew that if they learned his whereabouts they would not rest until they had brought him home again. Mrs. Jones's persistent melancholy since Bill's departure told Thomas that in order to get Bill back, the deed itself would be abrogated by her, should that be one of his conditions of return. Therefore both he and Hammond determined that they would not let the two women know of Bill's whereabouts. Instead, they said they had traced him as far as Placerville, known to old-timers as the Hangtown of the gold days, and that from there he had taken the trail up over the Georgetown Divide, where he said he was going to find work in the mines. Search throughout the entire district, Hammond and Thomas informed her, had failed to locate him, and they assured her and Millie that inquiry should be kept up until he was found.

Winter came, bringing with it no news from Bill, and Mrs. Jones settled into a melancholy resignation wherein she seldom smiled and where she spent most of her time in the rocking-chair by the front window, gazing down the path up which Bill had usually zigzagged his recalcitrant way. Thomas was quick to recognize her symptoms and he resolved upon his master-stroke.

One day toward the end of March when a heavy storm had blown up from the lake and the entire forest was torn and twisted by a wind in high and angry mood, Mrs. Jones sat crying in front of the window, wondering where Bill was and beset with the fear that some place beyond the ridge in that vast ocean of mountain billows Bill might be homeless and cold and without food. A sudden gust shook the hillside, bringing down a grizzled pine that had stood close to the house. The crash of its falling resounded down the slope and Mrs. Jones, keyed to high pitch by her vigil of three months, was brought to a sudden burst of despair just as Thomas, who had come to Calivada to superintend the wiring of the house which was now to be put on modern basis, came down the stairs. It was his chance and he took it.

"Mrs. Jones!" There was a surcharge of pity in his voice as he glided across the room and stood over her chair, placing a gentle hand upon her shoulder. "I hate to see you upset. We've done everything in our power to find Mr. Jones and we will leave no stone unturned until we succeed. In the mean time you must think of yourself and Millie."

"It was thinking of myself and Millie that drove him out of his home." Mrs. Jones buried her head on her hand and leaned against the window-sill. The wind, with renewed shock, beat the sleet against the window-pane. "He may be out this minute wandering the hills with no place to go," she sobbed, "and he ain't young no more, neither."

"Of course, I thought all along," she went on, "that by selling the place I could take care of him in his old age, and now he ain't here and the place can't be sold."

"The place can be sold, Mrs. Jones, and you will then have enough money to institute a real search for Mr. Jones." Thomas's emphasis of the possibility of a sale without Bill's signature relaxed Mrs. Jones's mood and she sat up straight in her chair, lifting questioning eyes toward him.

"There is a way." He answered her unspoken inquiry with calm deliberation, while he scrutinized her for the least sign of encouragement or of antagonism as his plan unfolded. "It is a difficult way and one which you may balk at pursuing, but it will justify itself in the end."

"Oh, what is it, Mr. Thomas?" Mrs. Jones's brown eyes widened and hope returned to them as she smoothed out an imaginary wrinkle in her gingham apron and folded her arms across her waist, rocking expectantly back and forth. "I'd do 'most anything if I thought it'd bring Bill back," she exclaimed, raising her voice to an enthusiastic pitch.

Thomas brought an arm-chair from the center-table and sat down beside her. Clasping his hands, he leaned forward, "You can get a divorce, and—"

"Oh, I could never do that!" Mrs. Jones protested and stopped rocking as she lifted up her hands in horror. "He 'ain't never done anything; and besides—"

"That's not the question." Thomas was quick to interrupt her flow of excuses. "I know he has done nothing, Mrs. Jones. But as things stand at present you have neither Bill nor the money for the place. You can't give a clear title to the place while you are married to Mr. Jones unless it bears his signature. You have not the money to find him. A divorce will straighten all this out. You can sell the place for enough money to find Bill. You can remarry him and you will both have a comfortable old age."

"Oh!!!" Mrs. Jones drew the word out with a long inflection of surprise, and she shook her head in the wisdom of a new light. "I see what ye mean." After a moment's abstraction in which she pondered Thomas's suggestion, she continued, "Some way or 'nuther it don't seem straight by Bill."

"It's the only way I see to settle matters. But I sha'n't try to persuade you against your will, Mrs. Jones." Thomas brought to bear on the situation his finest modulations, both in voice and manner, as he sat nonchalantly in his chair, one knee cocked over the other and his foot swinging listlessly back and forth, portraying a personal indifference which Mrs. Jones's simple mind could not penetrate.

"It does seem a good way," she mused aloud, adding, in little spurts, "but I guess—maybe—Well—I think I'll talk it over with Millie."

Mrs. Jones did talk it over with Millie. Also, she had several prolonged interviews with Thomas on the subject, and three days later she put her name to the petition which asked for a divorce from Bill Jones without so much as giving the document a thorough reading. Whatever Thomas proposed was to her, by the very fact of its being his idea, a thing worthy to be done. Millie, being of the same turn of mind, aided her in accepting his decision. And it was only when the first publication of summons appeared in the Reno papers that her heart sank at the words which characterized Bill as a drunkard and a man who was cruel to his wife—lies which Thomas justified as necessary to strengthen the one truthful ground for the divorce—that of failure to provide. Even that Mrs. Jones felt was beside the truth, for although Bill had never exerted himself needlessly, he had performed the chores, gone after the mail, made beds, and, by his gift to her on their marriage day of his three hundred and twenty acres, which were far the better portion of the property, he had made some slight concession to his

responsibilities. Bill's digressions had been those of omission rather than those of commission, and Mrs. Jones's misgivings were frequent during the three months that followed.

In the mean time, Thomas and Hammond were quick to inaugurate a new regime at the hotel. Mrs. Jones and Millie remained on in the capacity of guests, while a clerk and a housekeeper were brought from the city to take over the management. Modern improvements and equipment soon turned it into a hostelry that verged on the fashionable. With the early spring freshet augmenting the waterfall and the stream into a cataract whose potential horse-power did not escape Everett Hammond, he made a hurried trip from San Francisco with an official of the Pacific Railroad and succeeded in persuading the company to advance a comfortable sum of money for an option on the Jones property. Mrs. Jones and Millie, fretting under the suspense and without funds, were given a small amount to tide them over until the sale should be consummated, when they were to receive a large block of certificates in the Golden Gate Land Company.

All would have been well with Thomas, who saw life spreading before him in a panorama of ease and elegance, had it not been for two people—Lemuel Townsend and John Marvin. Lemuel Townsend had been placed by the November elections on the list of Superior Court judges, where he immediately came into his own as presiding judge in the majority of divorce cases in Reno. Thomas, unable to withstand the rôle of popular and irresistible Beau Brummell among the prospective divorcées at the hotel, had run against Townsend's displeasure two days before the election, when he had dared to play interloper in Lemuel Townsend's attentions to Mrs. Margaret Davis. With Townsend, it had been love at first sight. With Mrs. Davis it was something less, her only idea at that time being a quick snatch at freedom and a hurried trip back to Broadway, where she hoped to sign up for the summer circuit. Lem Townsend did well enough to pass the time, and it was her own diversion rather than any feeling for him which bade her accept his attentions. Thomas on frequent trips had scattered his flatteries between Millie and the various divorcées. Mrs. Davis came in for her full share and several times there had been clashes between the two men, Thomas invariably stepping aside, but only after verbal skirmishes with Townsend.

Marvin had not been seen in the neighborhood since a few days after Bill Jones had disappeared. He had returned to his cabin, after having established himself in an office in San Francisco with the intention of taking Bill back with him. During the days spent on the trails in search of the old man he had successfully evaded Sheriff Blodgett and had gone back to his office, where he had received a forwarded letter from Bill at the veterans' home at Yountville. He had taken one trip to the home with the purpose of persuading Bill to return with him to the city. But when he saw how comfortable Bill was there in the hillside country, surrounded by the old veterans who vied with one another in recounting their past prowess, he decided to let him alone until such time as he could effect a reconciliation between Bill and Mrs. Jones.

This, he trusted, would be at the termination of the case brought against him by the Pacific Railroad to recover the timber which he had sold to Rodney Harper previous to the sale of his timber-land to the Golden Gate Land Company by Mrs. Marvin. Then, too, he hoped the way would be made straight for him and Millie, although he had half lost hope under his realization of Thomas's superior eligibility.

These things, known to the latter, destroyed his composure and made the lapse between the filing of Mrs. Jones's divorce suit and the termination of its three months' summons by publication, required by law, a period of anxiety. He knew that if Marvin were vindicated before Mrs. Jones could secure her divorce his whole framework would collapse, as Millie and Mrs. Jones, straightforward as they were, would brook no hint of dishonesty on his part. Once discovered as unworthy of trust, their confidence in him would be broken and Marvin would be restored to full standing, not only in Millie's affections, but in Mrs. Jones's approval.

In the latter part of March he took a hurried trip to Reno, where, in conference with Blodgett, who had never been able to forgive Marvin's evasion of arrest, maneuvers to have the two suits tried at the same time sent him back to San Francisco rejoicing in the anticipation that his days of discomfort would soon be over and he could return to his own world again.

CHAPTER XIV

Mid-April came with its arabesque days of sunlight and shadow and its fragile broiery of new leaf and timid blossom. It was as if its coming had stirred anew the life in Reno's divorce colony. All winter the courts had been dull, most of the men and women seeking divorces arriving in the early fall and biding their time of six months by hibernating through the long, cold season. But now there was a renewed activity in divorce circles. The court calendars were full and there was a steady stream of gaily clad applicants making their way in and out of the Washoe County court-house, going in with nervous, hasty, anxious tread and coming out with a gait which spoke of a new freedom and a smile that bespoke life as once again worth living.

It was one morning just after the flux of spring divorces had begun that Sheriff Blodgett stood looking over the calendar in Judge Lemuel Townsend's court-room. He scowled as he read the words announcing that the first case was that of the Railroad Company versus John Marvin. He patted the warrant which still occupied the waiting list in his pocket. Placing a chair close to the court-room door, he waited for the crowd to begin to file in. He knew that he could not arrest a man in the court-room, but he intended to keep his eye on the corridor, and to that end had propped one of the doors open with a chair so that he could see clear to the swinging doors that led in from the street. If Marvin put in an appearance, he intended to arrest him at once. The thought gave him satisfaction and he sat twirling his long, drooping mustache with one hand and fondling the handcuffs in his coat pocket with the other. Revenge at last would play its part to-day, for, even if Marvin failed to appear and therefore balked him again, the railroad company would get judgment, anyway.

It was at this point in his reverie that Thomas entered the court-room, greeting the sheriff with a genial, "Oh, hello there, Blodgett! I guess our day's come."

With a patronizing pat on Blodgett's shoulder, Thomas passed and went to the clerk, where he procured a list of the day's cases. He, too, nodded in satisfaction, as he saw that the Pacific Railroad case, in which he was attorney, was to come up first. Running his finger down the line, he stopped at another close to the end, smiled again, and turned to the sheriff.

"The Marvin case is first," he observed.

The sheriff nodded and a frown slowly puckered his brow. He walked slowly up to Thomas, who stood at the clerk's desk just within the railing. He hesitated, clearing his throat, and found the courage to ask, with a slight timidity in his voice and manner, "You ain't a-goin' to bring up the old story of my serving the warrant at Calivada, are you?"

Thomas laughed. "No," he replied; "I don't think I'll have to go into that. But I will ask you about the time you went to Marvin's camp."

Blodgett heaved his shoulders in relief, and, with hands in his pockets, went back to his station at the door. "That's all right!" He exhaled a full breath once again.

Thomas turned the leaves of the calendar, looked ahead for a day or two, without noticing much that he saw, then turned the leaves back again to the day's list. He went to the court-room window and looked out upon the valley that ran from Reno up toward the foothills. He sniffed the keen, cool air that was blown up to him. He stood contemplating the rushing waters of the Truckee River below. After several minutes' thought he faced Blodgett again.

"I'm going to ask you what time you were at Marvin's camp, for I want to show he was taking down the timber," he announced.

"I didn't get out where the timber was," the sheriff replied.

"But you know he had a gang of lumbermen there?" In Thomas's tone and in the gleam on his cold, blue eyes the sheriff caught the message of persuasion.

"Oh, sure." He nodded with the air of a man who understood what was wanted of him.

"And they drove you off by force?"

Blodgett nodded again.

"And you remember the date?"

"I guess I won't fergit it." There was emphasis in Blodgett's answer and he arose impatiently from his chair and stood, his arms akimbo, peering down the corridor. "Do you think Marvin'll be here to-day?" This time he was interlocutor. "I got a notion he won't," he added, fathering his disappointment by admitting the possibility of frustration in the one desire that had held him ever since Marvin had foiled him by the technicality of the state boundary-line. He was bound, however, that there should be no opportunity for escape this time.

"I don't care whether he turns up or not," Thomas answered, going to the lawyers' table, opening his brief-case, and setting them out before him as he swung gracefully into a chair. "The case is a cinch," he emphasized, with a grin that found reflection in Blodgett's eyes.

With a warning to the clerk to keep an eye on things until he should return, Blodgett left the court-room and swaggered up the corridor, stopping at the door of the other rooms and taking a frowning survey of the occupants, hoping that Marvin had entered one of them by mistake. If John Marvin was in Reno he was not going to escape arrest this day. With this comforting conclusion in mind, he took up his stand just outside of the court-house door at the top of the steps.

In the mean time Everett Hammond, escorting Mrs. Jones and Millie Buckley, entered Judge Townsend's court-room and were greeted effusively by Thomas.

"Oh, good morning!" He bowed low over Mrs. Jones's hand, which he held in his. "I'm glad to see you." Staring at Millie, who looked very fetching in a trim blue serge tailor suit, he beamed. "How fine you look this morning; quite irresistible, I assure you!"

Millie blushed and looked with frightened glance from the judge's bench to the lawyers' table, and from there to the witness-stand and back toward the door, for all the world as if she were contemplating a rapid escape. She took

a deep breath. "I don't feel irresistible," she said. "I feel just as if I wanted to cry and run away." She pouted at Thomas, with entreaty in her pretty eyes.

Thomas laughed, put his hand on her arm in deprecation, and shrugged her fears away. "Oh, the trial won't amount to anything, little lady. What do you say to that, Mrs. Jones?"

The older woman's brown eyes were staring straight ahead, as if she saw a real horror and was without power to controvert it. "All I can say," she replied, in a high-pitched, high-strung voice, "is that I'm here." She waited for a moment, casting furtive glances at Hammond and Thomas, who stood one on each side of her. Having found the courage to assert herself, she burst out, "And I wish I wasn't!"

"Now, now, Mrs. Jones!" There was banter in Hammond's voice, but there was concern in the wise direction of his eyes toward Thomas. "You're a mighty brave woman and I know you're going through with this, for it means that you'll be in a much better position to find your husband and look out for your old age after you get the money for the place."

Mrs. Jones made no response, but cast anxious eyes about the room, and she folded her hands in resignation across her ample waist-line.

"It's like going to the dentist. The worst part is making up your mind to it." Thomas leaned over Mrs. Jones and smiled his most engaging smile. He received no answer to it, so he turned to Millie, who stood at the other side of him.

Before he could speak, the girl rid herself of the question that had been ever present in her mind now for six months, and one which she had never failed to ask him every time she saw him or wrote to him.

"Have you heard anything of daddy?"

Thomas's smile disappeared. He left the little group of four in the middle of the space inside of the rails and sat down again at the table, annoyance in the slump with which he threw himself into his chair. "No, we haven't been able to locate him." He would have been sullen had he dared, but his game was too nearly played and he did not wish to foozle at the last, so he

controlled his mood and forced a smile as he thought of a method of getting away from his client's importunity for awhile.

"It must be distasteful for you two women to remain in here any longer than possible," he said, rising from his chair again and pointing to a door at one side of the court-room. "Lennon," he called to the clerk, "my clients can wait in there, can't they?"

The clerk acquiescing, he and Hammond courteously escorted Mrs. Jones and Millie to the door and showed them into a small room which had been fitted up for hysterical women overcome with the proceeding in their cases, or for those who, like Mrs. Jones and Millie, wished to avoid the embarrassment of a long wait in the court-room.

As the two women went through the door, Thomas turned to Hammond and advised, in a low voice: "You better go, too, Hammond. Keep them cheered up."

With bad grace in his shrug and in his eyes, he followed Thomas's suggestion, first murmuring in his partner's ear: "I'll be damn glad when this day is over. All I've been doing this last week is to keep these darned women from backing out."

CHAPTER XV

By this time the court-room was filling up with its usual motley crowd of interested parties and spectators. There were the seekers after freedom, a heterogeneous collection of them, in all sorts and conditions of clothes, of all ages and of all kinds of faces and figures. There were the women from the millionaire colonies of the East, chic, sleek, and composed. They retired into a far corner with their attorneys, conferring in low tones, or else sitting, apparently unperturbed, while waiting for their cases to be called. There were always the adventuress types, chic, too, but made up with an eye to future conquest, their skirts always tighter or wider or shorter or longer than the style decreed, their hair a little more so-so, their lips redder, their cheeks rosier, and their faces whiter than their more conservative sisters of a narrower way. There were tired women from far states not allowing divorces for cruelty or desertion. They sat, in nondescript clothes, most of them, with eyes heavy-lidded, as if they were too weary to care much what happened to them. There were gay young creatures, dancers and small-time vaudeville actresses, who refused to take life seriously and who availed themselves of a dull season to make themselves free for another venture. There was a sprinkling of men, one of them a lumber magnate from an Eastern state, another a noted cabaret entertainer. They sat around, restlessly out of place, but at the same time taking an interest in those about them.

Supplementing these were the spectators. Among them were tourists who came to Reno for the express purpose of attending the divorce trials. Inquisitive folk, regular residents of the town, dropped in to pass an hour's time and to gather gossip for the afternoon tea-table. Club-women, anxious to find food for reform, took up their seats close to the railing, determined that no word of the testimony or proceedings should escape them. And there were the usual hangers-on, old men and women with nothing to do, who found entertainment in listening to the human dramas unfolded from the witness-stand.

Raymond Thomas, before taking his seat at the lawyers' table, took a comprehensive view of his audience. Lifting the skirt of his frock-coat, he

sat down, viewing the world and himself complacently. He heard the court-room door swing to, and, looking up, he saw the sheriff coming toward him with Mrs. Margaret Davis by his side.

Mrs. Davis's six months' residence in Nevada had been established and she had come over from Calivada, where she had become quite one of the Jones family, to get her decree. She had expected to meet Mrs. Jones at the Riverside Hotel, but she had been late and had hurried over, her effort flushing her cheeks even beyond the heavy coat of peach-bloom with which she hid the natural roses of her cheeks. She had been scurrying like a chicken around the corridors when she had caught sight of Sheriff Blodgett and importuned him to see her safely to a seat in the court-room.

As soon as she saw Thomas she dismissed the sheriff summarily, while Thomas arose and went forward, opening the swinging gates that admitted the lawyers and witnesses behind the railing. Their greeting was effusive, and Thomas held Mrs. Davis's hand for a moment. She blushed vigorously and simpered:

"Oh, Mr. Thomas, my case comes up to-day, and I'm just worried sick about it. Do you think I could see Lem—" she stopped, hung her head, and looked coquettishly up at Thomas as she bit her lip, correcting herself, "I mean Judge Townsend?"

Thomas looked around to see if any one were listening. "I'm afraid you can't see him just now," he replied, leading her to a chair just under the judge's desk, which was set upon a high platform. "Is there anything I can do?" he asked, in his smooth, bland voice.

"I don't know." Mrs. Davis whined and twisted in her chair. "My lawyer's sick. I telephoned his doctor, who was just as mean as could be and said he couldn't come to court to-day. If I could only tell the judge—" She gave Thomas a look laden with understanding.

"There shouldn't be any trouble about that," laughed Thomas, dropping easily into the chair beside her. "You can explain the circumstances to the judge when your case is called, and—"

"But I don't want it postponed! A court-room scares me just half to death. I'll die if I have to put it off and go through screwing up my courage again. I

just will!" She nodded her head emphatically until the bright blue plumes that fell from the back of her enormous picture-hat threatened Thomas's eyes.

He moved away from them, offering, after a moment's thought: "Well, I'll be very glad to represent you if you care to have me. There's nothing to your case, anyhow. The judge is a friend of yours, isn't he?"

Mrs. Davis hesitated and rolled her baby-blue eyes at him from under her heavily beaded lashes as she giggled. "Oh yes—he's a friend," and then, thinking better of her confidence, she ended, with a sigh, "that is, I know him—slightly."

Thomas smiled to himself, reassuring her. "Then don't give it a thought. Just leave everything to me."

A grateful hand was laid upon his arm and she looked up at him with fervid admiration. "You are so smart and so kind, Mr. Thomas. You've taken such a load off my mind. If anything went wrong after waiting all these months I'd just die—that's all there is about it."

At this moment the door of the judge's chambers opened and Lemuel Townsend appeared, clad in a Prince Albert suit and beaming on Mrs. Davis, who arose and walked well into the middle of the floor so that she should not escape his immediate attention.

This was a moment of great satisfaction for Thomas, who looked about the court-room, scrutinizing every man in it, his face brightening as he saw that John Marvin had not put in an appearance. When the sheriff had finished opening court he arose from his place at the lawyers' table, for he knew that the case of the railroad against John Marvin was the first upon the day's calendar. He pulled his revers together with a pompous gesture and opened his mouth to speak. Before he could do so Judge Townsend called to the clerk, whose desk was at one side of the bench, and suggested in low tones:

"I think this first case can go over—"

Thomas caught the words and disappointment drove the self-satisfaction from his face. He ventured to address the court: "If it please your Honor,

this is an action for the wrongful taking of timber, and I've come a long way and I would like to get home—"

Townsend had not been listening to a word, his attention being concentrated on the tip of an upstanding feather on Mrs. Davis's hat, which could barely be seen over the top of his desk. "Eh? What's that?" he asked, sharply, not too pleased to be interrupted in his endeavor to catch further sight of Mrs. Davis.

Marvin not having put in an appearance, Thomas's hopes of winning the case for the railroad by default were high. He did not think Marvin would appear, but every delay might be fatal and it took an effort on his part to appear unperturbed. However, he managed to answer in urbane tones, "I was saying, your Honor, that—"

"Oh yes." Townsend bent his head and looked down with severe eyes over the top of his glasses. "Just a moment, please," he added, as Thomas would have finished his plea. Turning to the clerk, he ordered, "Let me see the list."

The list was handed to him and he ran down it, finally remarking to the clerk, "I think I will dispose of these short cases first." Half rising in his chair, he looked over the top of his desk to where Mrs. Davis was twisting and turning in her chair in an effort to get a look at him.

"Mrs. Davis," he called in gentle tones, "are you ready?"

She hurriedly precipitated herself into the middle of the space in front of the platform. "Why, yes," she answered, looking about as if she did not know where to turn and gathering her sealskin cape about her.

"I'll take your case at two o'clock," the judge said to Thomas, who shrugged his shoulders, but did not sit down as Townsend had expected him to do.

As the clerk called the case, "*Davis versus Davis*," Thomas moved close to the bench, exclaiming, "If it please your Honor—"

He was interrupted by a glower from Townsend, who said, "This case is *Davis versus Davis*, Mr. Thomas," his eyes wrinkling into a broad smile as

he again turned his attention to Mrs. Davis, who stood, bewildered, not knowing whether to laugh or cry.

"I am quite aware that it is the Davis case, your Honor," Thomas answered, not without a note of triumph in his voice and demeanor. "I am the attorney for Mrs. Davis."

Thomas's announcement shocked Townsend into dropping a document he held in his hand. It fell on the desk and was blown by the strong east wind that came in from the window clear across the room. "*You* are?" he asked, with a mouth fallen half open from surprise and annoyance, his spectacles tilting to the end of his nose.

Thomas did not answer at once, but flushed, turning, for the sake of a few moments in which to think, toward the clerk, who was scrambling after the paper. His glance on its way back to the judge met that of Blodgett, which had both a warning and an "I-told-you-so" quality in it.

"Well?" The judge's question was drawn into a length which further embarrassed Thomas. Being a young man of poise, however, he straightened the revers of his coat and settled them with a shake upon his shoulder, replying, graciously, "Mrs. Davis has appointed me in the place of Mr. Adams."

Townsend continued to stare most ungraciously at the young man in front of him, but Thomas, unabashed, went on: "Your Honor, I believe, is familiar with the complaint and has gone over the depositions submitted by the plaintiff. As the defendant has neither entered a denial, put in an appearance, nor been represented in court, I move that the plaintiff be granted an absolute separation from the defendant."

Swift shafts of indignation bolted from Townsend's eyes back and forth between Thomas and Margaret Davis. He saw that consternation was plainly written on the latter's baby face and that tears were gathering in her big blue eyes now pleadingly uplifted to his. His jaw relaxed and a smile played at the corners of his mouth. But Thomas' complacency at the softening in the judge's attitude was too much, and Townsend snapped out, "The motion is denied."

From her chair directly in front of the judge's desk Margaret Davis immediately jumped up, her eyes opening into large, round, moist orbs which threatened to grow moister as she asked, in a voice that fear had robbed of its ingenuousness, "Does that mean I can't get a divorce?"

Thomas was about to reassure her, when he was again interrupted by the judge, whose voice flattened as he looked away from her, afraid to trust the melting effect of her coy glances. "It means that the motion of your counsel is unusual and that I have good and sufficient reasons for denying it," he said, with emphasis.

Margaret put her handkerchief to her eyes to stem the threatening tide, while Thomas hastened to forestall the avalanche by informing her, as he placed a comforting hand on her arm, that he would be able, at least, to try the case.

Had Lem Townsend been able to prevent the latter, he would have done so, but he was too young as a jurist to allow criticism of his knowledge of points of law, and he reluctantly gave consent to the trial of the case.

It was with a beating heart and a jaw set against the impending quiver of a not too slender frame that she held up her hand for the oath and took her place upon the stand, looking about with a terror that was new born in eyes heretofore ungiven to everything but treacle. Her lips trembled an almost inaudible reply to the clerk's question.

She was still standing, and Thomas, noticing this, motioned her to be seated, beginning at the same time her examination.

"Mrs. Davis, where do you live?" he asked. His own tones were of no certain quality, for the firm pressure of Townsend's white lips and his obvious intention of steering clear of any attempt at honeyed coercion on Margaret Davis's part were not encouraging.

In vain she cast her eyes about in an effort to inveigle the sympathy of Lem Townsend. He stared straight ahead at the paper in front of him, although he saw not a word. Her answer to Thomas's question came with a gasp. "New York." Then realizing that her case was lost and her entire six months' sojourn at Calivada was as nothing unless she immediately corrected her mistake, she gasped a second time as she drew the folds of her blue-velvet

cape about her. "Oh no! I don't mean that at all. I live here—I live here in Nevada and I've lived here long enough to get a divorce. The judge—" and here she stopped for breath, making another attempt to corral his stubborn favor—"his Honor—" she jerked, with a quick breath, "can tell—you that."

But the judge did not smile and his eyes remained rigid in their sockets as they glared at the paper in his hand.

"Just answer the questions, please, Mrs. Davis," Thomas cautioned her pleasantly, although as a witness she was disconcerting.

"Well," she drawled, fidgeting in her chair, "that's not easy when you're sworn to tell the truth."

A titter ran through the court-room and was brought to an abrupt end by the sheriff's gavel.

Thomas resumed his examination. "You are the wife of Gerald Davis, are you not?"

She nodded.

"And when and where were you married to him?"

"Seven years ago, October fifth—in Peoria." She glanced about at the sea of smiling faces, again seeking sympathy from the judge.

Again he was adamant.

"You were living in Peoria?"

The insinuation that anything less than a metropolis should be her abiding-place was more than she could bear and in turbulent leaps, broken by her gasps for breath, she blurted, her lips quivering and her eyes filling with tears: "I should—say—not! My husband and I were playing there. We were partners doing a dancing act—"

Thomas tried to interrupt her and succeeded with half a question. "When did your husband first show signs of not loving you and—"

He got no farther, for she went on, determined to get over the disagreeable business of being truthful. "He stopped loving me about a year before we

were married."

This time a storm of laughter surged through the court-room and it took several taps of Blodgett's gavel to regain quiet. Undaunted, she finished her story. "It's really hard to explain why we were married. You see"—she hesitated and resumed jerkily—"we were in Peoria—and we were partners—and—and—it rained all week—Well, somehow it seemed a good idea at the time."

At this point it became necessary for Townsend, in order to maintain the dignity of the bench, to caution the spectators that if there were any more such outbursts of joy he would have the court-room cleared.

Thomas still maintained his control, although cold perspiration was wilting his highly polished collar. "But after you were married he was cruel to you, was he not?" he asked.

"I should say he was!" The answer was accompanied by an emphatic nod of the head and again she flew onward, over his head, determined that she should tell the truth, the whole truth, and nothing but the truth.

"Why," she opened her left hand and enumerated the said Gerald Davis's shortcomings by pressing its fingers with the thumb and forefinger of her right hand, "he put his name on the bill in larger type than mine. He tried to strike me once—but he was a poor judge of distance. And—and—" she stopped. This time her appeal was directed to Thomas.

"He deserted you, did he not?" Thomas eagerly took up the thread, hoping to unravel the snarl she had worked with it.

"Well, we parted—"

"After he deserted you?"

Before Mrs. Davis could answer the last question, Townsend straightened the spectacles on his nose and entered the case. Slowly welling within him was a jealousy now overwhelming. His political ambitions alone had stood in the way of his descending from the bench and throwing Thomas out of the court-room. It was only by remaining silent that he had curbed his

temper. Now it broke away from him, and he turned, thundering, "So far, Mr. Thomas, the witness has not testified that her husband deserted her!"

"Oh—" Margaret Davis turned squarely in her chair, pursing her carmine lips into an irresistible moue. "Of course he deserted me! We were playing in Chicago, and I went West and he stayed there and—"

"That looks to me, madam, as if you deserted him. So far, your testimony has not brought out anything to substantiate your complaint."

Tears unrestrained burst forth at this moment. The thought that not only had she lost all chance of securing her freedom, but that Lemuel Townsend, whose attentions had helped to while away a six months which would otherwise have been dull to one accustomed to a barrage of suitors at the stage door, was more than she could bear. Pointing to Thomas, she sobbed into a purple silk handkerchief that smelled not faintly of patchouli. "That's because he told me to do nothing but answer his questions, and then he asked me all the wrong things—" Her emotion, out of bounds, spent itself in a cataract of tears. Unable to go on, she sat there, trying to stem the tears with a handkerchief inadequate for their volume.

Thomas tried to save his case. "Your Honor—I—"

He hesitated, Margaret Davis coming to his rescue. "Oh, I don't mean to blame you," she said to him, addressing the last of her remark to the judge. "He doesn't know anything about my case!"

What Lemuel Townsend would have liked to do at that moment was to have taken her in his arms and reassure her, as old fools are apt to do with naïve young creatures. But her apparent friendliness with Thomas and her deceitfulness in employing him for her attorney was more than he could condone. He would not relax his stern exterior, although his interior was softening. "Then, why," he asked, in measured tones, "is he appearing for you if he does not understand your case?"

Recognizing the opportunity for explanation, Margaret wiped her eyes, sniffed, and, went on: "My lawyer's sick, you see. And I wanted to tell you all about it, but Mr. Thomas explained that I couldn't see you. And he said he'd do everything for me, and you'd give me a divorce without any trouble at all."

Thomas whitened and turned to the table, where he fingered his brief-case nervously. He could not brave the glare which he knew Townsend was directing at him, nor the tirade he feared would follow.

"When did he tell you all that?" the judge asked, his nostrils quivering with rage, his voice strained to a tenor.

"Just now." Margaret grew happily voluble and she nodded her head back and forth like a child of six as she ogled the judge. "When I came into court he was here and I told him the trouble I was in. It's the only time I've seen him since you asked me not to."

Townsend was so relieved that he did not hear the last of her remark and the noisy delight of the spectators also escaped him. He was bent upon one purpose, that of chastising Thomas. "Why didn't you tell me this before?" he asked Margaret, in tender tones, forgetting, in his ardor, that there was such a thing as a court-room. He leaned far over the desk and beamed upon her. "There, there, don't let it upset you." He offered her a glass of water.

As she took it, Thomas stepped up to the bench again and tried to palliate the judge's wounded sensibilities. "If your Honor please, I was simply acting from a friendly standpoint and I thought—"

"No matter what your motives were, sir, you presumed when you told the plaintiff what the court's rulings would be." He turned abruptly from Thomas and leaned graciously toward the plaintiff. "Now, Mrs. Davis," he resumed, "let me question you. Why did you leave your husband in Chicago?"

Reassured, Margaret bridled coyly and answered, lifting her lids to the judge: "Because he didn't show up for a performance and I had to go on alone—and afterward the manager told him the act was better without him. And he sulked and stayed away from the theater all the rest of the week and on our next jump he refused to go with me." Her last words dwindled into a plaintive whine.

"And you were obliged to go without him?" Lem Townsend subtly gave a slight nod of his head which Margaret caught and interpreted into a vigorous acquiescence with her own curly blond head.

"Did you try to have him go with you?" Again the hint and again Margaret scored her point.

"Of course I did!" she responded. "I mean, yes—your Honor. But he said he'd show me how long I could go it on my own; but I showed *him*, for I've never seen him since. I only heard from him once and that was when I sent him money."

"Have you tried to see him?" Lem Townsend asked the last question grudgingly, but he felt that his own honor in the case was in danger of impeachment, and he was sure that his slight nod would be followed as it had before. He was right.

"Of course I did. Mr. Blackmore—he was our manager—gave me his sworn statement."

Townsend for the first time really saw the paper in front of him. He read it carefully, answering in tones of quick delight. "Yes, here it is and a deposition dated Chicago stating that Davis left you without warning and refused to dance with you again."

"Yes, your Honor," she cooed.

There was silence while Townsend scrutinized the papers in front of him. Margaret sat with her eyes anxiously fastened on him. With a nod of satisfaction he shoved the papers aside and, smiling down at her, announced in kindly tones, "Your decree is granted."

"Your Honor!" She arose from her chair and sat down in it again, a copious flow of tears making it impossible for her to leave the stand.

Townsend reached for the glass of water and held it toward her once again. "Please, please, Mrs. Davis," he endeavored to calm her, but his compassion only served to bring on another storm. "I'm so emotional," she sobbed, "I can't stop it!"

Townsend looked about helplessly. A sudden awakening to his own prerogative solved the dilemma. "Mr. Sheriff, announce a recess," he ordered. And leaving the bench, he went to Mrs. Davis and guided her into his chambers.

The crowd filed out of the court-room, while Thomas, weak with shame and disappointment, took his seat at the table again, impatiently toying with a paper-knife that had fallen from his pin-seal brief-case.

Blodgett went to him and leaned over with the intention of reassuring him, when there was a disturbance at the window which opened from a balcony a few feet above the street. Both of the men turned just in time to see John Marvin climb through the window and pull his suit-case in after him.

The sheriff stepped forward, hesitating as he realized his powers were negative in a court-room.

"Here, what you doing?" the clerk called out, getting up from his desk.

The sheriff glared and handled the manacles in his pocket with an intemperate disgust.

Marvin looked at him and laughed, answering the clerk. "I've got business in this court. I'm John Marvin and I'm appearing in the case the Pacific Railroad has brought against me." He did not deign to glance at Thomas, who had arisen, facing him, white from the blow to his hope of obtaining a judgment by default.

Marvin went calmly to the other end of the attorneys' table and opened up his shabby brown-canvas brief-case. He whistled to himself softly as he did so and glanced at Thomas, whose pallid mouth was drawn into a dogged sneer.

Blodgett went back to his seat just within the swinging gates that gave entrance behind the railing and sat glaring at Marvin. Quiet reigned in the court; then a faint shuffle of feet was heard beyond the door.

As Blodgett looked around, the door of the court-room opened gently and Bill Jones, clad in a Civil War veteran's uniform, faded from the sun, its brass buttons tarnished, and wearing his soldier's black soft hat with its gold cord cocked jauntily over one eye, sauntered down the aisle, holding out his hand to Marvin, who had jumped from his seat and bounded around the table to greet him.

"Hello, John!" Lightnin' drawled, grinning. "How's tricks? You look kinder legal this morning?"

CHAPTER XVI

As Bill made his way through the swinging gates, Blodgett put out a detaining arm, asking, with a scowl, "Here, what do *you* want?"

"Been arrestin' any one in California lately?" Bill slid past Blodgett, ignoring his attempt to stop him, the old twinkle in his eye as he touched what he knew to be the sheriff's sensitive spot.

"Well, Lightnin'," Marvin exclaimed, "how did you get here and what in the world have you come for?"

"Yer case ain't over yet, is it?"

Marvin shook his head, repeating his first question.

Bill did not reply at once. Not wanting Marvin to know that he and Zeb had been nearly two weeks getting there, and that they had come in much the same way they had gone, riding when they could get a lift on a train or a wagon, walking when they could not, he pretended to forget the young man's questions, asking one himself instead, "What time your case comin' up?"

"Two o'clock."

The sheriff sauntered up to them. Bill knew the purpose of his approach was to catch the drift of their conversation, so he turned abruptly, his hands in his back pockets, and grinned at Blodgett. Nodding toward Marvin, he drawled, "I'm a witness for him. I got to testify how you served a warrant on him."

The sheriff glared and slouched over to his chair, throwing himself into it as he pulled his black sombrero down over his eyes.

Marvin, his arm about Bill's shoulders, leaned over him, guiding him gently to the attorneys' table. "Well, Lightnin'," he questioned, in an indulgent voice, "how did you happen to show up here?"

"I promised you, didn't I?"

"But that was a long time ago. I supposed you'd forgotten all about it."

Bill glanced quickly at him and smiled. "I ain't never forgotten nothin' since I was four years old."

Marvin, happy to see the old Lightnin' behind the boast, smiled, asking him, "How did you know the trial was to-day?"

"That's easy," Bill replied, as he sat against the edge of the table, steadying himself with his hands. "I seen it in a Reno paper at the Home."

"But I told you the time I came to see you that you needn't bother about coming. I wouldn't have had you come all this long way for the world if I had known it." There was concern in Marvin's voice as he slowly dropped into a chair in front of Bill.

"That's why I didn't say nothin'."

"Where did the money come from?"

"I saved my pension." Bill glanced slyly at him. Catching his questioning eye, he stopped and looked through the window into the distance.

"You told me you sent your pension money to your wife!"

"I did—some of it. I sent mother six dollars, but I didn't get no answer." The laughter went from Bill and he leaned over, looking toward the far hills, strange, unreal purple against the clear, cold blue of the April sky.

Marvin watched him, asking, "Did you tell her you were in the Soldiers' Home?"

"No." Bill's voice was devoid of inflection.

"Then she probably didn't know where you were."

"Where else could I be?" His lips were puckered into a whistle, although they were quivering and no tune came. It was always this way when he thought of mother, so he straightened himself and stood by Marvin's chair, forcing a smile to his lips and jerking out, "And six dollars is six dollars."

The court-room was filling again, five minutes having elapsed since recess was declared. A side door opened and Townsend came into court. Blodgett stood up, pounded the desk with his gavel and announced the opening of the session. Bill and Marvin, rising to order, started and looked at each other as Thomas entered the room just behind the judge. Following him was Everett Hammond, who, when he saw Bill and Marvin together at the attorneys' table, began vigorous and anxious whispering in Thomas's ear as he took his place next to him on the other side of the table.

Margaret Davis entered from the judge's chambers. She was accompanied by Mrs. Jones and Millie.

Bill did not see them. His eyes were fastened on Hammond and Thomas in close conference.

But suddenly, as he turned to take in the rest of the people in the room, his eyes alighted on his wife. He arose and wandered toward her, exclaiming, as she came to meet him, "Why, mother, what are you doing here?" He stared at her and held out his hand.

Mrs. Jones was so surprised to see him that she could not speak and stood still, her hands in the air half-way between her waist and shoulder.

Millie was the first to answer him. "Oh, daddy—" She was going to put her arms around him, when Blodgett rapped upon the table for order.

Tears sprang to Mrs. Jones's eyes and Margaret Davis arose and led her to a chair next to hers and just at the foot of the platform, from which Townsend smiled happily upon them.

"Come along, Mr. Clerk!" There was cheer in Townsend's voice as he directed another saccharine shaft toward Margaret. "I've got an important engagement and I want to get through. Call the next case."

Bill, his eyes still on his wife, walked slowly to the table and sat down just behind Marvin.

"Jones *versus* Jones," read the clerk, standing at one side of the platform and unfolding the document he held in his hand.

Bill did not hear him. He was gazing at Mrs. Jones, an old tenderness in his eyes, a bitter longing in his heart. Drifting, living only for the hour, as was his nature, but one scar had remained unobliterated upon his memory, one hope alone flickered in the lonely sanctuary of a soul that had known no conflicts. His affection for his wife had been something deeper than emotion, something lighter than passion. It had been the lasting quantity in a life of fleeting concepts, and his six months at the Home had subdued it into a dull ache which found relief only when a faint optimism brought vague dreams of a remote reunion.

Her presence in court puzzled him. He felt that it must have something to do with the sale of the place, or, perhaps, with Marvin's case. And yet he was sure she knew nothing of the transaction between Mrs. Marvin and Thomas, or between Rodney Harper and Marvin. Whatever it was, it had brought a ray of expectancy to Bill, and he jumped as he was brought out of his reverie by Marvin's perplexed whisper: "Jones *versus* Jones. By Jove, Lightnin', I believe that's you!"

"Me?" Bill glanced around as if he were half awake and leaned far forward in his chair, putting his hand to his ear and straining to catch every word as the clerk read the complaint:

"To the people of the State of Nevada, Mary Jones, Plaintiff *versus* William Jones, Defendant. A civil action wherein the said plaintiff deposes and says she was lawfully married to the said defendant on the 14th day of June, eighteen hundred and ninety-six, in the state of Nevada. The said plaintiff prays this court for a permanent annulment of her marriage vows, the defendant, William Jones, having disregarded and broken all obligations of the marriage contract, thereby causing the plaintiff great suffering and mental agony and the said Mary Jones claims a final separation and divorce from the said William Jones on the grounds of failure to provide, habitual intoxication, and intolerable cruelty. Subscribed and sworn to me on the fifth day of April, nineteen hundred and seventeen. Alexander Bradshaw, Notary: Raymond Thomas, Attorney for the plaintiff."

When the clerk had finished Bill sent a beseeching glance toward his wife. Each word of the document had entered far into a mind little given to taking account. One by one he had tolled off the record against him, placing the

accusations in two files—the true and the false. That his wife had cause for anger against him he now, for the first time, fully realized. But he was bewildered, and when Bill was bewildered it was his habit to seek enlightenment.

After a moment, in which Mrs. Jones darted swift glances from beneath a brow bowed with regret, he turned to Marvin, who had arisen and was standing back of his chair, bending over him, and asked, simply, "Is that all about me?"

Blodgett tapped his sheriff's gavel.

Townsend caught Bill's question and asked, "What did you say?"

Marvin, knowing that Bill was inadequate to the test placed upon him, came quickly to the rescue. Standing in front of the judge, he explained: "Your Honor, Mr. Jones is the unconscious defendant in this case. It just happened that he came to court to-day to be a witness in another case. He has had no previous knowledge of this action."

Before he could go farther Raymond Thomas, upon whom the entire situation was reacting in swift, powerful threats to his cause, arose, his face drawn with the agony of frustration, his voice high pitched from the effort to subdue the feelings fast getting beyond his control. "The defendant's whereabouts were unknown to us, your Honor, and the court allowed us to serve notice by publication."

"Publication in what?" Marvin demanded, as he darted contempt at Thomas.

Townsend answered him. "Proper service was given, if the defendant could not be located." To Bill he addressed the next question, "Is that what you asked about?"

Still confused, and not yet quite getting the trend of the whole matter, he asked, in his quiet, disinterested way, "Who, me?"

"Yes," replied the judge. "You made some remark after the complaint was read."

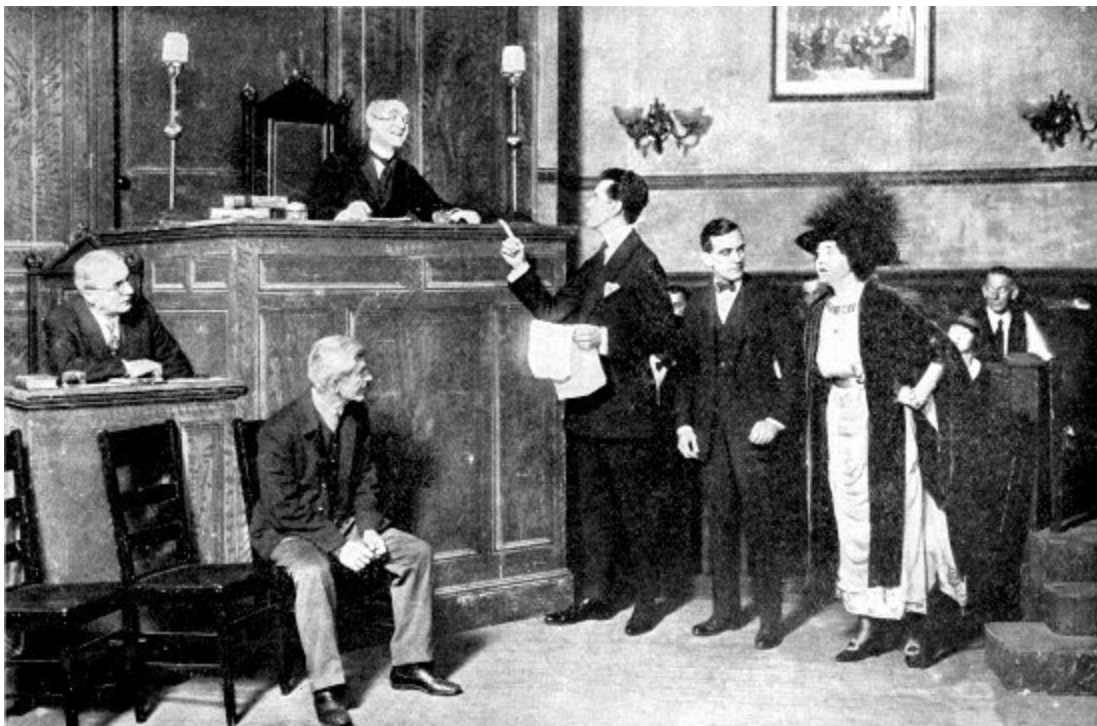
"I wasn't sure I'd got it straight," Bill said, looking ahead of him, mouth half open.

"You mean the grounds on which the action is based?" the judge persisted.

There was a pause, in which Bill looked first at Thomas, whose lids drooped under the old man's scrutiny, and then at his wife, who hung her head. "I guess so," he jerked, drumming his fingers softly on the table.

Townsend ordered the clerk to repeat that part of the complaint wherein the grounds for the suit were mentioned. The clerk repeated, "Failure to provide, habitual intoxication, and intolerable cruelty."

Bill listened attentively. As the clerk sat down, Bill looked up at the judge, asking, "Is that all?"



**LIGHTNIN', IN HIS FADED G. A. R. UNIFORM ...
LISTENED ATTENTIVELY**

"Don't you think it's enough?" There was admonition in his manner, but there was a certain gentleness in his voice and a smile of sympathy lurked at the corners of his mouth. It was difficult for Lemuel Townsend, who knew the lovable side of the careless old man, but he was determined to maintain the dignity and the integrity of the law, and he knew that he must remain unbiased, no matter how strong his feeling was that here there had been sad tampering with truth and the finer essences of happiness.

His severity did not touch Bill. His sense of humor, always close to the surface, asserted itself. A gleam that was half derision, half amusement, lighted his eyes as he grinned up at the judge. "Sounded as if there was more the first time."

Marvin again stood before the judge. He knew that Bill had no one to defend him and he had not felt the necessity of offering himself. He just took it for granted that Bill would turn to him in the dilemma and so he took the case in his hands. "I am counsel for the defendant, your Honor," he said, "and he is entering a general denial."

"Are you counsel for the defense?" Townsend's astonishment was evident in his long-drawn inflection. He had not heard of Marvin's admission to the bar. Neither had he seen the young man about lately, and the whole situation puzzled him.

Before Marvin could answer him, Bill was out of his seat, replying for him, "Yes, sir, he is my lawyer."

It was not the judge's way to admit himself baffled. Turning to Thomas, he instructed him to call his witnesses.

Marvin took a seat in front of Bill at the attorneys' table, while Bill on the edge of his chair leaned forward expectantly, his eyes fastened not on Thomas, but upon his wife, who sat with her head bowed and her eyes staring into her lap.

Thomas beckoned to Mrs. Jones, calling her name.

As she arose, Hammond, who sat next to Thomas on the other side of the table from Marvin and Bill, and who had appeared indifferent and bored so far in the proceedings, jumped to his feet, dismay written on every feature,

and hastened to whisper in his partner's ear: "Are you crazy? The most dangerous thing you can do, now that old Jones is in court, is to call her to the stand."

Thomas in his vaunted shrewdness had overlooked this possibility, but now that Hammond mentioned it to him he saw what disastrous complications Mrs. Jones's presence on the witness-stand might lead to. Nodding in answer to Hammond's counsel, he again turned to Mrs. Jones, saying, "I don't think it will be necessary for you to testify at all, Mrs. Jones." As she sat down, he smiled at Millie, addressing her, "Miss Buckley, will you take the stand, please?"

Millie had not expected to be called, and as she arose at his summons her face flushed with embarrassment. She stood still momentarily and her eyes met Marvin's for the first time since he had appeared in court. With an angry flash they quickly sought the witness-chair, and, although trembling at the ordeal before her, she made an effort to trip lightly to the stand. As she took her place and was sworn in by the clerk her replies were scarcely audible. Casting frightened glances up through her long lashes at Thomas, she was reassured by a smile. After the preliminary examination as to her adoption by Bill and Mrs. Jones and her residence with them since she was three years old, he began upon the intimate questions which he hoped would weave a web of incriminating evidence against Bill, evidence which would redound to his justification in the part he had played in bringing about the divorce.

"Miss Buckley," he asked, pulling nervously at his cuffs and bringing them down two or three inches below his sleeves, "Mrs. Jones has toiled early and late to provide for the family ever since you can remember, has she not?"

Millie nodded, gazing anxiously at Bill, who, far forward on his chair, was drinking in every word she said. There was a pitiful accusation behind the sadness in the eyes with which he returned her gaze.

As Thomas continued she, like her mother, concentrated her attention on her hands folded tight in her lap.

"Why did you leave home three years ago, Miss Buckley?"

"To earn my living, of course," was the reply, in low, reluctant tones.

"What did you do with your wages?"

Millie hesitated. After taking out barely enough to live on in meager fashion she had sent most of the remainder home, not because either Mrs. Jones or Bill had asked for help, but because she knew how difficult was their living during the long winter months when their only source of income was Bill's pension and the few mountain people who dropped in when passing back and forth and remain overnight and for a meal or so. Had she known that she was to be called as a witness she might even have refused to accompany Mrs. Jones to court, for Bill's derelictions could never outweigh the knowledge that it was he who had saved her from an orphanage. She swallowed the lump in her throat, but even this did not keep back her tears at the thought that her answer might be the betrayal of the old man who had been a father to her through all the years.

Thomas saw her disinclination and understood the condition of mind which prompted it. He knew he must call his persuasive powers to his aid, so he went very close to the witness-stand, and, leaning over her, spoke in his softest tones.

"I am sorry to have to ask these questions, Miss Buckley, because I know how you dread to testify in this case, but it is unavoidable. Will you answer my question? You sent the greater part of your wages home, did you not?" He spoke as if he, too, were distressed.

Millie, falling into the trap, sighed, "Yes, sir."

"And you really left home to earn money in order to help support the Jones family, didn't you?"

Again, overcome by the complications of the situation in which she found herself, she was unable to answer except with a reluctant nod.

"Did you ever see Mrs. Jones's husband drunk?"

As Thomas asked this question he looked toward Bill. Millie did not answer. The tears gathered in her eyes and she wiped them away, burying her face in the handkerchief she held in one of her hands.

Thomas insisted. "You have seen him in that condition hundreds of times, have you not?"

There was a malicious note in his voice this time, as well as in the look he directed at the old man at the table.

Millie caught it, and a slight antagonism crept into her voice as she straightened in her chair, answering, in surprise, "Why, I never counted."

Thomas was deriving a long-desired satisfaction in his prodding of Bill, and it threatened his shrewder self-control. "But he was in the habit of coming home drunk, wasn't he?" There was real glee in the question, but it escaped Millie this time. With a beseeching glance at Thomas, and one which pleaded for forgiveness toward Bill, she said, slowly, "Sometimes."

"And because of the poverty brought about by those bad habits you were obliged to leave—"

Here Millie broke in. Forgetting her embarrassment and the crowded courtroom in the realization that words were being put into her mouth, words which fell far short of the truth, she burst out, indignantly: "Why, I never said any such thing! I went away to work because there was no opportunity in Calivada to earn any money, and I thought as long as I was going at all I might just as well go to San Francisco where I could make a salary large enough to take care of myself and to help Mr. and Mrs. Jones, who have been very good to me."

Thomas saw that he had overstepped himself and he groped in his mind for new questions, until a scowl from Hammond reminded him that it might be better to stop rather than to bring out evidence which might turn against them and in favor of Bill. So he dismissed Millie from the stand.

She stood up while Thomas took his place next to Hammond at the table. But Marvin, after a few whispered words with Bill, took Thomas's place by the witness-chair, holding up a detaining hand and calling, "Miss Buckley!"

Millie glared at him, blushed deeply, and walked off the stand. She had not been able to forgive him for his advice to Bill and still held him responsible for Bill's leaving home, as she had felt that if Bill had not been prejudiced

against Thomas and Hammond the place would have been sold and they would have all been living together in comfort.

But she did not get very far. As she left the platform Townsend motioned her to return and, submerging his personal friendship for her beneath his judicial duties he exclaimed, severely:

"One moment, Miss Buckley. The counsel for the defense has asked you a question."

Millie turned her back on Marvin as she dropped into the chair again. A smile played on Marvin's lips, but it was a rueful one. To come thus face to face with her in a situation where he was compelled to be her antagonist in order to see that justice was done to his old friend was not a happy ordeal for him.

Townsend knew what was going on between the young people and he felt keenly for them, but it was a part of him to hold to his duty always and not to his own personal biases. His severity did not relax even when Millie pouted: "I don't want to answer *his* questions! Must I?"

The people in the court-room, interested and amused at the unusual dénouement, went into a peal of laughter which received swift check from the sheriff's gavel. She flushed violently and obeyed Judge Townsend's admonishment that she must answer all of Marvin's questions.

Marvin's first inquiry did not tend to make things any easier for her.

"Who employed you as a stenographer?" he asked. His back was turned to Thomas, but he could feel the latter shifting in his chair.

Finding no mercy in Townsend's manner, she succumbed to the inevitable, snapping, with a toss of her head, "Mr. Thomas!"

"*This* Mr. Thomas?" Marvin asked.

"Yes," said Millie. There had been nothing in her heart but deepest misery and shame at having to testify against Bill during her examination by Thomas. Now she was fired by a resentment against Marvin, Bill being forced out of the equation. Her answers came in a swift defiance that bespoke a determination to make it as difficult for him as possible. Marvin,

seeing at once that she and Mrs. Jones were still plastic in the hands of Thomas and Hammond, was tempted into battle.

"Did Mr. Thomas," he asked, "give you this position because you told him you wanted to be of financial assistance to the Jones family?"

Millie opened her mouth to reply, but Thomas was on his feet at once, objecting to the question.

Facing the judge, Marvin ignored Thomas, saying, "I am quite willing to withdraw it if it is found objectionable, your Honor."

Thomas stepped quickly to Marvin's side. He was a few inches the taller and he glared down at Marvin, who stared back, his jaw set in the resolution to stand firm against the man he knew to be a fraud.

That he was standing on thin ice Thomas knew, and he knew also that bluff was the only feasible strategy to employ against the unforeseen crisis wrought by Bill's sudden and unexpected arrival. "Don't flatter yourself that I mind any question you might ask," he emphasized, "only this one has no bearing on the case."

At this, Townsend sustained the objection. Marvin, resorting to a legal trick, changed the form of the question, for he was bound to prove his point. "Well, Miss Buckley," he asked, "Mr. Thomas has taken an interest in your affairs and given you advice?"

The insinuation was more than Millie could bear calmly. She turned quickly, meeting his eyes in anger as she flashed a significant smile toward Thomas.

"Mr. Thomas has been more than kind to me always. He has given me advice when I had no one else to turn to."

"And you have always followed his advice?"

Following his key, Millie replied, "Always, implicitly, in spite of what *others*—" and she paused long enough to send a pointed shaft Marvin's way—"have said against him."

Marvin grinned and continued, "Miss Buckley, you have never known Mr. Jones to be cruel or even unkind to his wife, have you?"

An objection from Thomas was overruled, the judge contending that cruelty was one of the grounds in the complaint. As he had forgotten how the question read, he asked the stenographer to repeat it. Millie answered in the negative and Marvin prodded her further, "You have never seen him unkind to any one or anything, have you?"

Gentleness had always been such an ever-present quality in Bill's treatment of Millie that she forgot her anger for the moment and hastened to reply, as she smiled sweetly at Bill, "Daddy has always been most kind to me and every one else."

This was an opportunity to lead her into an admission which might immediately quash all of the grounds of the complaint. Marvin saw it at once and took advantage of it. "Now, Miss Buckley," he argued, "the complaint asks for a divorce on the grounds of drunkenness, failure to provide and cruelty. In all honesty you know that not one of these is the real reason that Mrs. Jones has asked for a divorce, don't you?"

Unused to the ways of the law and its peculiar methods of arriving at conclusions, Millie was perplexed. The only excuse in her mind for the divorce had been that it would bring about the sale of the property and that Mrs. Jones would thereby have sufficient money with which to find Bill, which would mean happiness for the three of them. Had Thomas not intervened with an objection which the judge sustained, she would have given her answer, but as it was she remained silent.

Marvin, determined to prove Bill Jones's simple sweetness, so that he would at least be understood by the world, went to his purpose again.

"Miss Buckley, you know that Mr. Jones loved his wife, loved her devotedly, don't you?" he asked.

Townsend beamed in judicial humor upon Marvin and laughed. "How can she know that? That's not an astute question for a lawyer to ask, and I don't sanction such methods."

The question, however, had brought back a certain softness in Millie's attitude. Forgetting for the moment her dislike of Marvin, she smiled, but to regret it and to efface the smile with a frown.

His examination of Millie had been difficult for Marvin. Into his mind had crowded old memories—happy walks along the cliff in San Francisco, afternoons in Golden Gate Park, and days in the office when he had dared to hope that some day she might learn to care. His heart leaped at the thought of moonlight strolls in the mountain woods and along the shores of the lake. Those were days when she had interested herself in his plans and it all came back to him with desperate force as her unintentional smile awakened a poignant longing within him. A whirlwind of reminiscent emotion caught him in its teeth.

"If it please your Honor," he said, his eyes shining, "there is one thing that a woman does know, and that is whether a man loves her or not! She may believe a man to be a contemptible liar. She may say that she will hate and despise him always, but somehow down in her heart, if he really loves her, she knows it!"

Forgetting that there was such a place as a court-room, or that he was defending a divorce suit against Bill Jones, all he saw was the scorn in the eyes of the girl he loved. All he felt was that he was fighting single-handed against overwhelming odds for his own happiness. He leaned close to the witness-chair and looked into the girl's eyes, and she, seeing in his eyes the thing that she had tried to forget through all the long and sorrowful months, turned away from him, lest she should betray the longing that lurked in her own heart. But Marvin's fervid plea flamed higher and higher and he went on:

"If a woman is a man's ideal—if he would gladly lay down his life for her—she knows it and no matter what she says about him or what anybody else says about him the knowledge that he cares more for her than for anything else in the entire universe must count for something, and I contend, your Honor—"

He got no farther. The whole court-room was in roars of laughter and the sheriff's gavel was knocking loudly on his table. Millie, unable to bear the

situation any longer, was sobbing aloud. Townsend arose quickly and, leaning over his desk, shook a warning finger at Marvin.

"Hold on there!" he called, half in humor and half in anger. "Are you trying a divorce case or are you making love?"

The laughter in the court-room began again, but subsided, for there was something in the situation that struck deep into the hearts of the spectators and they knew that, grotesque as it might appear, shattered romance was stalking before them.

Marvin, himself once again, lowered his voice and pleaded, apologetically: "I beg your pardon, your Honor. I did not mean to go so far." Smiling sadly at Millie, he added, "That is all, Miss Buckley."

"I should say it is quite enough!" satirized the judge. "I think we had better get back to business."

Without looking at Marvin, Millie left the stand and took her seat beside her mother. Thomas called Everett Hammond as the next witness.

Hammond, although outwardly nonchalant, was inwardly ill at ease. Marvin's appearance in court followed so closely by Bill's arrival was a contact that puzzled him. Millie's hesitancy as a witness was another feature which he felt was not altogether in favor of the cause of the Golden Gate Land Company. During her testimony he had kept close watch of her mother, who several times wept audibly, burying her face in her handkerchief. He knew that he and Thomas were playing a close game and that the slightest contradiction in his testimony might set Mrs. Jones to thinking in the wrong direction; especially with Bill Jones in the court-room, his eyes divided between the witness-stand and his wife. He assumed an air of bravado as he took the stand, glaring down at Marvin, who was seated not far from him and who was smiling blandly upon him.

Preliminaries over, Thomas launched into Hammond's direct examination. "How long have you known Mr. and Mrs. Jones?" he asked.

"I met them first," Hammond answered, pausing to think, "about seven months ago."

"Kindly tell the court how you happened to meet them."

Hammond, looking at the judge, answered: "I was asked to consider the purchase of a piece of property belonging to Mrs. Jones. I had some other business near by and stopped off at the Joneses' place."

"What was the other business?" was Thomas's next question. He glanced at Marvin, who met his look with straightforward, unswerving eyes, which turned Thomas's attention to his witness.

"The Pacific Railroad," said Hammond, scowling at Marvin, "was being robbed of timber in that locality and they sent me with the sheriff," he nodded toward Blodgett, who flushed at the memory of that embarrassing incident, "to arrest the thief."

"Who was the thief?" There was triumph in Thomas's voice as he asked the question.

"His name is John Marvin."

"Since that time, you have had dealings with Mrs. Jones, have you not?"

"I have, and I have always found her to be an honest and splendid woman." Hammond smiled over at her.

"And Mr. Jones was a source of trouble and great embarrassment to her, wasn't he?"

This time Hammond made Bill the goal of his insulting focus. "Yes, sir, he was! He was shiftless and drinking, cruel and untruthful." With a malicious sneer he added, "Why, to my knowledge, he's the biggest liar in the county!"

All this time, without a word, Bill had been sitting on the edge of his chair, accepting the testimony against him in the same indifferent manner in which he met most of life's difficulties. Hammond's last remark proved to be the first telling blow at his equanimity. It was too much! This Hammond person had called him, Bill Jones, a liar! In Lightning's code, shrunken and old though he was, there could be but one answer. Calmly and quietly Bill stood up and began to draw his faded blue coat from his bent old shoulders.

CHAPTER XVII

Every eye in the court-room was on Bill. There was even a cheer, which the judge, half out of his chair, failed to reprove. Townsend knew that Bill was sore tried and had been brought to the point where his temper was not an impulse, but a last resort. His personal sympathies were with Lightnin's fistic intent. However, the order of his court must be observed and he signed to Blodgett, who raised his gavel. Before it was necessary to bring it down upon the table Marvin was quickly on his feet. He put a restraining hand on Bill's arm and with the other hand drew the coat back into its place on the bent shoulders.

In amused contempt, Thomas continued his examination.

"Did you ever see Mr. Jones drunk?" he asked.

"Yes, sir, I never saw him any other way." Hammond laughed lightly.

"And you saw him abuse his wife?"

"Yes, sir."

"You heard him tell lies?"

"I did indeed. Why, he broke the law by harboring a fugitive from justice in his house."

Thomas, having brought skilfully to the attention of the court the numerous charges that he hoped would result in securing Mrs. Jones a divorce, dismissed Hammond from the stand.

His experience as a witness had not been a joyous one to Hammond, and he prepared to take quick action on his dismissal, but Marvin had other intentions.

Standing between Hammond and his way of escape, Marvin exclaimed: "I am not through with the witness, Mr. Thomas! I also have some questions to ask him." With a scowl Hammond threw himself back into the chair.

"You say, Mr. Hammond, that you had business dealings with Mrs. Jones? Do you mind telling the court what that business was?"

"Not at all," said Hammond, defiantly. "I purchased three hundred and twenty-nine acres of land, including buildings, from Mrs. Jones for some clients of mine."

"Why didn't you consult Mr. Jones?" asked Marvin.

"Because Mrs. Jones was the sole owner," sneered Hammond.

Marvin looked him in the eye and said, slowly:

"You had seen the records?"

Hammond grunted in acquiescence and Marvin went on, each question bringing his victim nearer to an outburst of temper, which he hoped would lead to the self-contradictions he was sparring for.

"Now you testified that you first met Mr. and Mrs. Jones about seven months ago. Do you remember the exact date?"

"No, I don't recall the exact date. Perhaps you can," he emphasized, with a contemptuous twist of his black mustache. "It was the day I brought the sheriff there with a warrant for your arrest."

Marvin, undaunted by this attempt to slander him, took occasion to give a thrust at Blodgett, who had been glaring at him all through the case. "Possibly the sheriff will remember the date," he said, with a smile, while Blodgett squirmed in his chair. "And you also met Mr. Thomas on that same day, did you not?"

Hammond made no reply. It was his desire to make the court think that he and Thomas had never known each other previous to this transaction. He directed an imploring and searching squint toward Thomas. Receiving no help and seeing trouble in the gray pallor that had spread over Thomas's face, he floundered on, "Yes, I think that was the day I met Raymond Thomas—and Miss Buckley was there, too."

"Are you sure you had never met Miss Buckley or Mr. Thomas before? In his office in San Francisco, for instance?"

Hammond hesitated. He had been in Thomas's office several times while Millie was employed there, and, though he had not met her, it was more than likely that she had seen him. The moment was dangerous.

"No, I don't think I had ever met them before," he said, slowly.

"All right," said Marvin, nodding his head complacently and going closer to the witness-stand.

"Mr. Hammond," he went on, "you have told the court that Mr. Jones was a lawbreaker."

Hammond fairly jumped to this question. "Yes," he flared. "You were a fugitive from justice and Jones was harboring you in his house."

Marvin smiled. "Didn't you just testify that Mrs. Jones was the sole owner of that house? That being so, how could Mr. Jones harbor a fugitive in his house, if he didn't own a house?"

Caught in his own net, Hammond twisted angrily in his chair, reddening as the spectators laughed and the sheriff pounded for order.

"Well, I don't suppose he could," he blurted.

"Then you will withdraw the statement that he broke the law?"

"Yes, I withdraw it," Hammond drawled.

Bill got up smiling from his chair and went over to Marvin, patting him proudly on the shoulder; but a look from the judge and a snarl from Blodgett sent him back again.

Marvin continued. "Now, up to the time you met Mr. Jones you did not know anything about him, did you?"

Hammond shrugged, drawing his mouth into an angry curve. "Of course not, but it didn't take me long to find out about him."

Marvin gave the arm of the witness-chair two angry thumps. "I agree with you there, Mr. Hammond," he said. "Eight hours after you first saw Mr. Jones he was driven from his house and you have never set eyes on him

since. Yet you have testified that he is a drunkard, a loafer, a liar, and a lawbreaker!"

Hammond, startled at the swiftness with which Marvin had turned his testimony to profit, shrugged himself into a straight position. "Well, it didn't take me one hour to see what Jones was," he said.

Marvin nodded with half-closed eyes at Hammond and smiled reassuringly at Bill. "You also said he was cruel to his wife?"

Hammond nodded.

"In what way?"

Hammond hesitated, moving uneasily from side to side. "Well," he snarled, "his manner was insulting. He criticized the dress she was wearing before the other guests."

This amused the court-room, which in turn had to be quieted. "And do you think the claim of intolerable cruelty is substantiated by a husband's criticizing his wife's dress?" asked Marvin, smiling.

Thomas arose at once. "I object to that question," he said, his lips twitching and his face livid from disappointment and fear of what was coming next.

"I should think you would!" Marvin said, laughing.

The objection sustained, he went at his witness again. "You testified that Mr. Jones was a drunkard and that you had never seen him sober?"

"I never have," emphasized Hammond, insolently.

Going to the table, Marvin took Bill by the arm, assisted him to his feet and guided him into the middle of the court-room until he stood before the witness-stand. Then he asked of Hammond, motioning with his head toward Bill, "Is he drunk now?"

Bill stood quietly, a quizzical smile half closing his eyes, half opening his mouth.

Hammond, infuriated, swallowed in order to control himself, and then blurted with a disgusted shrug of his shoulders, "I don't know."

Having fulfilled Marvin's intention, Bill took his seat again and the cross-examination was resumed.

"If you don't know whether he is drunk or not now, how did you know the other time when you saw him?"

Hammond gazed fiercely into space, replying, finally, "Oh, it was plain enough then!"

Seeing that Hammond was ruffled and that he was also confused, Marvin felt that the time was now right to bring forth by a few swift, well-put questions the full purpose of Hammond and Thomas in bringing about the divorce between Bill and Mrs. Jones.

"It was not possible for you to get a good title to the property unless Mr. Jones signed the deed?" he asked.

At once Thomas was on his feet, objecting.

On Marvin's explanation that the complaint charged intoxication and that his question had a direct bearing on that point, the judge overruled the objection and Thomas took his seat again.

Not discerning the trap that Marvin had set for him, Hammond turned to the judge and said, in more even tones: "I don't mind answering in the least. The property belonged entirely to Mrs. Jones, but the husband's signature was wanted on the deed."

"And he refused to sign it?" Marvin's question came back.

"Yes," Hammond sneered, "after you told him not to."

Marvin once more challenged Hammond's soul with the searchlight of his own straightforward eye. "Was he drunk then?" he asked.

Hammond paused, then shrugged his shoulders. "Yes, I think he was."

"I am not asking you what you think," Marvin remarked. "You said under oath that you never saw him sober. Was he drunk when he refused to sign that deed?"

"Yes, he was!" Hammond reiterated, quickly.

"And you tried to induce him to sign such an important document as that when he was drunk?" Marvin asked the question in a slow, concise tone and looked up at the judge to gather the impression made by Hammond's evident duplicity.

The deep water into which Hammond had walked was making itself felt and he tried to wade toward shore.

"I never tried to get him to sign! He didn't sign it!" he snapped.

"No, he wasn't drunk enough for that! He wasn't drunk at all. He was as sober as he is at this moment!"

"You mean to call me a liar?" Hammond, his red neck swelling over the top of his collar, and his small, close-together black eyes flashing angrily, got up and made a threatening move toward his questioner.

Marvin, although much smaller, did not flinch. "No, I mean to *prove* it," he answered.

Judge Townsend made a quieting gesture to Hammond, who sat down in the witness-chair again as Marvin went on with his rapid-fire.

"Now you called Mr. Jones a liar, didn't you?"

"Yes," was Hammond's gruff reply. "And everybody who knows him says the same thing!"

"Oh," said Marvin, with a shake of his head. "So you testified that he was a liar because you heard others say so?"

"No," jerked Hammond, "he lied to me."

"What did he tell you that was untrue?"

"Everything," said Hammond.

"Can you repeat one lie that Mr. Jones told you?"

"Oh, he told me so many," was the impatient reply, "I can't recall them. Oh yes," after a pause, "he said he drove a swarm of bees across the plains in the dead of winter."

Bill, who was facing him, and who had not taken his eyes from him, burst into a loud laugh, the whole court-room, even to the judge, following suit, while Marvin raised his voice above the uproar to ask, "Now, how do you know that is a lie?"

"Why, I know the thing is impossible!" Hammond said, contemptuously.

"Why?"

"It's all nonsense," sneered Hammond, with an angry gesture.

"That is precisely what it is, Mr. Hammond, and that is just what Mr. Jones meant it to be! What else did he say?"

"What's the difference?" asked Hammond. "You admit it's all nonsense."

"Not all, Mr. Hammond." Marvin raised his voice and he looked searchingly at the judge. "He said at least one thing that was not nonsense. He said to his wife, 'Mother, these two men are trying to rob you.' Do you remember that, Mr. Hammond? You were all there. Do you remember that he said you and Mr. Thomas were trying to rob Mrs. Jones?"

In order to make his question more impressive, Marvin nodded at Hammond and pointed to Mr. Thomas, and then directed a glance toward Mrs. Jones. Her hands were still folded in her lap and her head bent toward them.

Everett Hammond, his face purple with rage, shouted at Marvin, "I don't propose to sit here and be insulted by a criminal like you!"

Thomas, too, had risen and come forward. Standing on the other side of Marvin and looking down upon him, he exclaimed, with quivering, blue lips: "This is insufferable, your Honor! This gentleman has come here to give disinterested testimony, as a favor, and he is subjected to the insults—"

Judge Townsend interrupted him calmly: "I think the defense has brought out quite clearly that this witness's testimony is not disinterested. This divorce has got to be obtained to give him a deed to the Jones property, hasn't it?"

Thomas grew conciliatory, endeavoring to impress upon the judge that the property sale had nothing to do, at all, with the testimony of Hammond.

"Well, I wouldn't call him exactly disinterested," responded Townsend, with a wise glance.

"Nevertheless, your Honor, I protest against this man's insulting manner," Thomas shouted. "How it is possible for such a person, a person who even now ought to be serving a jail sentence, to be admitted to the bar, I can't see!" He backed to his chair and sat down, taking up a book and slamming it back on the table.

Until now Marvin had been complete master of the situation, but Thomas's last words drove the blood from his face and he grew troubled as he looked up at the judge and then away and out through the window into space. There had been something on his mind, but he had been able to keep it in the background because of Bill's predicament. And now it came to the surface again.

Townsend studied Marvin intently for several moments and then he asked, quietly, "You are an attorney in good standing, are you not?"

At the judge's question, Thomas got up and looked down upon Marvin, in insolent inquiry.

Marvin did not answer at once; then he walked over to the judge's bench and with his head bowed said, "No, your Honor, I am not."

"Do you mean to say that you are not a member of the bar?" There was surprise and injured dignity and at the same time a strong savor of pity in Lem Townsend's voice.

Thomas and Hammond exchanged smiles of triumph, the former advancing to a place by Marvin's side in front of the judge.

The horror in Millie's face told Marvin that her last shred of consideration for him had been torn away.

Bill alone held faith, smiling encouragement at the lad who had been his only friend when his hour was at its worst.

With eyes on the ground, slowly, and in low voice, Marvin explained, "No, I have never been admitted to the bar, your Honor. But Mr. Jones had taken a long journey from the Soldiers' Home, on his own account and at his own expense, to testify in my case. When, without warning, this action for divorce was called, I knew it was a conspiracy." The injustice accorded Bill drew Marvin from himself again. Pointing at Hammond and Thomas, he raised his voice. "I knew that these two conspirators—"

Thomas interrupted him by jumping from his seat and making a menace with his right arm.

"Sit down, Mr. Thomas," Townsend commanded. "I will attend to this. You are making a very serious charge, Mr. Marvin, and if you believe you can substantiate it you will find the courts open to you. In the mean time you must be aware that you had no right whatever to undertake the trial of this case under the guise of being an attorney. You are guilty of a reprehensible act, and if I did not believe there were mitigating circumstances I would punish you most severely for contempt of court." He ordered the stenographer to strike out all of the cross-examination.

"Mr. Thomas," he asked, "have you finished with your witness?"

"If the cross-examination is to be stricken out, I will not take up the court's time with any redirect testimony. We have had enough," Thomas said.

Hammond got up and shook himself as if he were rid of a heavy burden; but as he walked from the stand Marvin made one more plea. "One moment, please, your Honor," he asked. "Before the witness is excused—"

Townsend interrupted him. "You have no standing in this court, young man. If you wish to remain, you may take a seat on the visitors' bench," and he pointed to a vacant seat just outside of the railing.

If there was one person in the court-room who was pleased at that moment, it was Blodgett. He arose, caressing his mustache, and opened the gate.

"This way," he called out, giving an overbearing wave of his hand.

As he came to the gate, Marvin stopped. He was thinking hard. It did not seem right that Bill should be left alone to fight his way with those two

keen schemers. He knew that Lem Townsend would look after Lightnin' in so far as he could justifiably do so, but the figure of the lonely old man, smiling complacently in the midst of his trouble, touched Marvin deeply, and he delved into his mind in an effort to find a way to help him.

Then, unexpectedly, Lightnin' solved the problem. Getting to his feet, he stood quietly before the bench, looking up at Townsend with an odd excitement in his eyes.

"Your Honor," he asked, in his usual drawl, "a defendant has the right to plead his own case, ain't he?"

"Yes, he has," Townsend replied, with a nod.

"Well," said Bill, "I guess I'll plead this case myself!"

Marvin hesitated. He had thought of this himself, of course, but had dismissed the idea, not feeling quite sure as to the advisability of it. Now, however, the deed was done. Quickly he put an arm over Bill's shoulder and led him beside the witness-stand, where Hammond still sat. Bill looked up at Townsend and smiled.

"It's all right, Judge," he remarked, with his humorous twinkle. "I was a lawyer once!"

CHAPTER XVIII

The court-room fairly seethed with interest. The crowd was smiling, amused; but, under the surface smile, every face reflected a strong sympathy for the quaint old figure standing there, about to fight his own battle. As Bill turned to conduct his case, Blodgett took Marvin by the arm.

"You come out here!" he commanded, roughly.

Marvin pulled his arm free and appealed to the judge.

"I am a witness for the defense, your Honor," he said.

"Then you may remain where you are," replied Townsend, with a nod. He looked at Lightnin'. "Examine your witness," he directed.

For a moment Lightnin' stood in front of the frowning man in the chair and silently inspected him with humorous interest, from the top of his sleek, pomaded head to the gleaming toes of his immaculate boots.

"Looks kinder all polished up, don't he?" Bill remarked.

The noise of the general laughter and the pounding of the sheriff's gavel seemed to distract Townsend's attention; anyway, he uttered no objection when Marvin slipped from his place among the witnesses and dropped into his former chair directly behind Bill. Looking up at Townsend, Lightnin' resumed:

"The things Marvin asked him were all right, your Honor," he said. Then, with a terse but rather humorous shrug, he addressed Hammond, "Answer 'em!"

"You mean the testimony he has already given will stand?" asked the judge.

"I got a right to ask 'em again, 'ain't I?" questioned Bill.

Townsend nodded. Hammond could much better stand the young and impatient manner of John Marvin than he could the wise humor of Bill. He

grew red and shifted in his chair angrily, asking the judge:

"Do I have to go all over that, your Honor?"

"Would your replies be the same?" Townsend's eyes as well as his question begged Hammond for the answer and he was not comfortable. But there was nothing else for him to do, and after a moment's hesitation, in which he lowered his lids to avoid the judge's scrutiny, he replied:

"Certainly."

The cross-examination reinstated, Hammond for the fourth time started to leave the stand. Bill held up his hand and snapped in a determined tone, but with a smile playing among the wrinkles of his face:

"Hold on! I got some more for you!"

His victim threw himself back into the chair with a shrug and a sneer as he gave his head an irate shake.

"Mr. Hammond," Bill went on, "when you went after Mr. Marvin with the sheriff, what was the charge against him?"

Hammond answered, with a ready enthusiasm, "Trespassing on the property of the Pacific Railroad Company."

Bill nodded his head and said:

"Uh, ha."

He assumed an air of wisdom and raised his voice to the pitch that it seldom knew, but to have the floor again after so many months was having its effect upon him and he was taking the task in the same way and with the same glee as if it were the opportunity for telling a good story.

"If he was on their property," he began—then he seemed to forget what it was he was going to ask. He turned to Marvin in whispered conference. The unusual character of his procedure did not affect Lemuel Townsend, who was anxious to give the old man his full chance.

His way evidently made clearer by Marvin's advice, Bill sauntered slowly back to Hammond.

"If he was on the railroad's property, what did you have to do with it?" he asked.

"Oh, that's easy enough!" said Hammond, nonchalantly crossing one leg over the other. "I went at the request of the president of the road."

Bill grinned. "You sold the railroad the land he was trespassing on, didn't you?"

Thomas broke in with an endeavor to show that the question was irrelevant, but Townsend, knowing Bill's natural acumen, felt that the question did have some real connection with the case.

"Mr. Thomas," he said, "you and your witness have been accused of conspiracy. If I were you, I would allow him to answer Mr. Jones."

Thomas knew that he was sparring for his life and he didn't intend to let the question get by if he could help it, so he tried another subterfuge.

"Your Honor," he deplored, his voice hoarse with anger, "I don't propose to defend the witness and myself from such a ridiculous charge at this time. We are not on trial. This is a divorce action." He glared at Marvin, pulling his cuffs angrily, in a way that he had, down over his wrists.

But the judge's opinion was unchanged. "If there is any conspiracy about this action, the court wants to know it. Answer the question."

With an insulting drawl, Hammond did as he was bid.

"I purchased the property for the railroad, acting as their agent."

"Who did you buy it from?" Bill snapped.

"Mr. Thomas."

"When did you buy it?" asked Bill.

"About ten months ago."

Bill's shoulders straightened at Hammond's reply and he drew himself together with a quick shrug, taking a swift step forward and peering into Hammond's face.

"That was three months before you bought mother's place?" he asked.

"Yes," jerked Hammond, sulkily.

"Then, why did you say you had never met him until you met him at the hotel?"

Hammond started, alarm in the quick glance that traveled from Bill to Raymond Thomas. He realized he had overstepped himself. Thinking the better plan would be to brave it out, he bellowed:

"Because I never did!"

Bill smiled at him and said, in his slow, gentle monotone:

"You bought all that land of him and never saw him about it?" He looked up at the judge and laughed. "And he called *me* a liar!"

Hammond got up, but Bill detained him. "Don't go away," he admonished, with a jaunty toss of his head. "We got some more for you, 'ain't we?" and he looked at Marvin, who smiled in approval. "I've got a good one for him!" Bill went on.

"You know the railroad company leased the waterfall on mother's place and put a power-plant there?"

"I believe they have," said Hammond, impatiently.

"And you know that the railroad pays you more for that lease in a month than you agreed to give mother in a year?"

It was a surprise to Hammond, and evidently to Marvin, too, that Bill should know anything of the details of either the lease of the railroad company or of what payment had been promised to Mrs. Jones. A great light flashed on Marvin—obviously Bill Jones had not been altogether wasting his time during his prolonged disappearance! Hammond, beginning to suspect that Bill knew more than he had been given credit for, decided that ignorance was the best stand to take.

"How should I know the petty details of the railroad's lease?" he said.

"How should *you* know?" echoed Bill, his voice raised, unwontedly clear and ringing. "Didn't the railroad lease the waterfall from a bum concern called the Golden Gate Land Company? Didn't you, actin' for the Golden Gate Company, put through the deal? Don't you know that the Golden Gate Land Company is controlled by yourself and Raymond Thomas—ain't you and Thomas the whole works o' that—"

Thomas was on his feet with an objection, but the judge had no opportunity to overrule it, for Bill had something to say and he was going to say it. He lifted his voice above that of Thomas, calling out and waving his arms violently in an excitement he had never known before.

"And all your stocks in the name of rummies?"

His eyes twinkled as Marvin came up to him and whispered. Again waving his arms, Bill shouted:

"Dummies, I mean—dummies!"

Thomas had been tried to the point of despair. There was a lump in his throat as he beseeched the judge:

"I protest against this!"

The judge interrupted him. "I am beginning to believe in this plot story."

"Then let him go on," was Bill's agreeable reply.

Hammond jumped up out of his chair and descended from the witness-stand.

"Your Honor," he said, in an angry tone, "I absolutely refuse to submit to this any longer—to stand here and be made to look like a criminal!"

Bill could not withstand the chance for another quip and he smiled at his antagonist. "Well, you look natural," he remarked.

"Do you expect me to stand for this?" Hammond stormed.

"Sit down, if you want to," said Bill, restored to his old nonchalance. "I'm through with you," and he turned his back on Hammond and went over to Marvin.

Thomas, keyed to a high pitch, knew that something must be done at once, for he saw that not only the Jones case was crumbling, but he sensed trouble ahead in his afternoon's venture, so he resorted to Everett Hammond's tactics of placing the matter in an absurd light.

"All this ridiculous testimony," he argued, "has no possible connection with the case in point, but I propose to prove that all the accusations against the witness and myself are not only groundless but absolutely malicious, and I shall do this at the first opportunity."

Unable to stand the situation any longer, he went back and took his seat.

Marvin had sat quiet all through this controversy. Now he forgot the judge's admonition as to his place in the case. He got up, stating to the judge:

"Your Honor, Mr. Thomas will have that opportunity at two o'clock this afternoon, when the Pacific Railroad's action against me comes before the court. At that time I will submit documentary proof that these men control the Golden Gate Land Company and have been buying up all the land wanted by the Pacific Railroad. I will submit to the court twenty cases where the Golden Gate Land Company has swindled innocent farmers out of their property and paid them with worthless stock. I will prove to the court—"

"Just a moment, Mr. Marvin," Townsend stopped him. "It will be most interesting for you to prove your statements at two o'clock; but in the mean time I must warn you again that you are not a party to this divorce action and have no standing as an attorney in this court."

Marvin bowed to the ruling and retired quietly to his seat. He stared calmly at Thomas, seeming to have no fear that he had prematurely revealed his own case and that his opponents might have an opportunity to take advantage of his statements.

"If the defense wishes you for a witness, Mr. Marvin," said Townsend, "you may be sworn."

Bill was on his feet again and, turning to the judge, said: "I don't need no witness! I didn't know nothing about it at all until I got here, but I've been thinking it over ever since and I have made up my mind that mother's right.

If mother can prove them things they read," and he nodded toward the clerk, "she could get a divorce, couldn't she?"

Townsend replied in the affirmative. Bill smiled sadly and, glancing at Mrs. Jones, who was crying as if her heart would break, he went on, "Well, I can prove them for her."

"You can prove them?" Townsend asked, in surprise.

"Oh yes," said Bill, with a flash of humor. "I used to be a judge."

He stood still in the middle of the floor and looked into space for a moment. He was a dejected figure as the humor that was his habit left him and he stood there deserted by all but Marvin. But it was not his way to remain an object of pity, either to himself or to anybody else, and with a slight shrug he straightened and looked the judge in the eye. Placing his hand in front of him, he tolled off the first count on the thumb of his right hand.

"Now, first it said," he began didactically, "that I got drunk," and he paused and thought about it, adding, with a nod, "Well, I can prove that! And then it said I was cruel to mother." He took a step forward and bent his shoulders a bit, as if he would look under the brim of his wife's hat and search her soul for the answer to his plea. "Well, I can—no, I can't prove that, 'cause it ain't true, judge, an' I don't believe mother ever said it."

A dramatic hush fell in the court-room. It was suddenly, pathetically clear to Marvin and to many others that, despite his unexpected knowledge on other counts, Bill did not fathom the real reason behind his wife's action for divorce. Plainly he thought she really wanted a divorce, and, in Lightnin's sensitive code, if mother wanted it she should have it.

"An' then it said that I failed to provide," he went on, while the court-room breathed softly, feeling the tug at the old man's heartstrings. "Well, that what's on my mind, judge. I have failed. I never thought anything about it before, and I don't see any chance of providing, now that I do think about it. Mother an' Millie could get along better without me. So you see, mother should get a divorce, judge—" and here Bill for the first time in his life broke down. Tears came into his eyes and he swallowed to keep them back. He hesitated and, with a last brave effort, he dashed in to complete his testimony against himself.

"I'm all right, judge. I can go back to the Home and stay there until"—he hesitated—"until—" and turning quickly away, "that's all, judge."

Before he could get to his seat Mrs. Jones had jumped up from hers and was standing before the judge's desk, wiping the tears from her eyes and sobbing loudly.

"No, please, judge, don't give me a divorce! I don't want one, judge! I can take care of Bill in our old age. They were just telling me lies, judge, and I was a fool not to have seen through it!"

Tears were in Townsend's eyes; also, Margaret Davis was sniffing audibly, and the spectators in the court-room were deeply touched. Thomas and Hammond gave one glance at each other and groaned, while Mrs. Jones rushed to Bill and held one of his hands in both of hers, pleading:

"Bill, I have done you a wrong—a great wrong, and I cannot blame you if you never look at me again, but I didn't mean to, Bill, I didn't mean to! And if you will forgive me and take me back I will try all my life to make up for it! Will you?"

Bill took her hands in his and patted them. His eyes were moist, and they blinked for a moment; then a slow, happy grin spread over his stubbled face.

"That's all right, mother," he said, easily. "Say, did you ever get the six dollars I sent you?"

CHAPTER XIX

Late that afternoon John Marvin and Bill Jones came out of the Reno courthouse together and sauntered down the street. There was a gleam of triumph in Marvin's eyes and a deep satisfaction in his manner. Lightnin's grin was equally expressive.

"You better come right back to Calivada with me, John!" he urged.

The triumph left Marvin's eyes and was replaced by a troubled expression.

"No, Bill," he said, quietly, "I don't think it is time for me to go there yet. Mother and Millie may still feel that my part in the whole scheme was not as kindly as it might have been, so I'll just drive over to my cabin and maybe later, perhaps to-morrow morning, come over and join you for a visit of an hour or two. It's a long time, old chap," he said, as he patted Bill on the shoulder, "since you have been home, and I think it is about time you were running along."

Bill knew what was deterring him. Tactfully he said nothing, but smiled. They walked along in silence for a block or two, until in a jeweler's window Bill saw something that appealed to his imagination. He put his hand in his pocket and withdrew it before it touched bottom, realizing that his last dime had gone for a cup of coffee for himself and Zeb at a lunch-counter early that morning. Zeb was waiting for him at the G. A. R. Hall up the street a ways, but he had a duty to perform and it seemed to him that that duty could best be done by the help of the object in the jeweler's window.

"John, will you lend me two dollars?" he asked.

"At your old tricks, Lightnin'? You bet I can lend you two dollars! You sure that's all you want?" Marvin laughed, taking the money from his pocket.

"Plenty," was Bill's brief reply, pocketing the two dollars. They walked to the corner of the street, where they said good-by to each other.

When Bill was satisfied that Marvin's back was well turned he sauntered into the jewelry-shop and up to the counter, where he purchased a sterling-silver ring, washed in gold, with a bright, shining piece of glass set in it.

The clerk in the store smiled at the old man as he pocketed the monstrosity and went happily out of the store.

How to get to Calivada from Reno had not entered his mind. It was a good seventy-five miles, but he knew that some way or other he would get home that night. With his mind made up to that issue, he wandered up the street and joined Zeb, who had been waiting for him all afternoon. The two old men, arm in arm, stood on the street corner and looked about. And just then Rodney Harper and his wife, who were interested spectators in the courtroom during the afternoon trial, turned the corner in their machine and stopped to say a good word to Bill.

"What you going to do, Lightnin'?" asked Harper, while his wife beamed at the two odd old souls.

"What you going to do?" was Bill's evasive answer.

"Why, we are motoring back to Calivada, where we have a room at the hotel," said Mrs. Harper.

"Well, then, I guess," said Bill, putting his foot on the step of the automobile, "that's just what me and Zeb is goin' to do."

The Harpers laughed and looked at each other. They were both agreed. Bill and Zeb climbed in and made a strange couple on the back seat of the car as it whirled through the streets of Reno and on up into the hills.

In the mean time the hotel at Calivada, true to its nature, was the scene of a new sensation.

After court that afternoon Margaret Davis and Judge Townsend, leaving Mrs. Jones and Millie to take the train home, went their own way. About eight o'clock that evening they arrived at the hotel, going to the desk where the sleek and dapper new clerk awaited them and came forward to welcome them. "Hello, Mrs. Davis!" he said, extending his hand.

"Good evening," Margaret replied, giggling and looking coyly back at the judge. "Will you give me my key, Mr. Peters?" she asked.

"Sure," he said, taking the key from the rack and handing it to her with a smirk.

"I didn't expect you back to-night." He smiled.

"Well, I wasn't expecting it myself." The annoyance evidenced by the frown on Lemuel Townsend's face immediately changed her tone. With a "Thank you" she turned to go, but the clerk had other plans.

"This has been a wonderful day, Mrs. Davis," he said, as he cast languishing glances at her. Townsend was not at all pleased with the attention Peters was showing her and he turned, asking, unctuously, "See here, have you got a suite?"

Peters stepped back and looked in surprise from one to the other.

"Got what?"

"Got a—?" repeated Townsend, but his question was broken into by Margaret, who exclaimed:

"Oh, Mr. Peters, we would like to see Miss Buckley and Mrs. Jones."

"All right," he said; "I will go up and tell them you are here," and he disappeared up the Nevada stairs.

"But, young man," Townsend was insisting as he put his foot on the first stair, "I want to get a—" he reiterated, but Margaret again placed a restraining hand on his arm. "Wait until he comes down," she simpered.

As the clerk disappeared behind the portières at the top of the stairs, Townsend turned to Margaret, putting his arm about her waist. "What's the matter, dear? Don't you want the clerk to know we are married?" he asked, in injured tones.

"I didn't want you to tell him right before me."

He looked into her eyes. "You are not ashamed of it, are you?"

"No," she drawled, in her usual giggle, "but it is embarrassing to leave here this morning to get rid of number one and come back this evening with number two." Townsend started, removing his arm from her waist. Putting it back, she pouted, "You are not angry, are you, dear?"

Indulgent, but not enthusiastically, he answered, "It is a little jarring to be referred to as number two."

"Oh, I didn't mean that!" she exclaimed, leaning coquettishly on his shoulder. "But I can't bear to have every one staring at us."

"But this isn't a secret marriage, Maggie," said the judge.

At this Margaret drew herself away from him, horror in her opened mouth and widening eyes. "Oh, don't say that!" she protested. "My name is Margaret," adding, sweetly, "I don't mind if they find out about it after we are gone, dear, but let's try to keep them from finding it out to-night."

"All right, my darling, just as you say," and he drew her to him again. Peters reappeared at the stairs.

"Mrs. Jones will be down in a minute," he announced, and was going to say more, but the sight of Margaret locked close in Lemuel Townsend's dignified arms permitted him no further expression than a prolonged and astonished "Oh!" which wrought a quick parting of the loving couple, while Margaret, blushing furiously, hastened to explain: "Judge Townsend is my husband, Mr. Peters. We were married this afternoon."

Peters had been having much of his own way since Mrs. Jones and Millie had retired from the actual management of the hotel, and his authority ran away with him at times, thrusting him into situations in which his assumption brought him quick rebuke. This was one of them. Obsequiously and with an easy laugh he extended a congratulatory hand to Townsend, while he remarked, "Quick work, eh, judge?"

Townsend stood back and withered Peters with a glance that did its full duty from head to foot.

Margaret, kind-hearted, and seeing Peters's embarrassment, hastened to be friendly. "We don't want you to say a word about it to anybody!"

"Oh, I can keep a secret. My congratulations. I hope this one turns out better than the other one did," Peters effused.

Margaret sighed. The judge shuddered. It was the fourth time since they were married that he had been reminded that he was number two.

"If you don't mind," he ordered, severely, "we won't discuss that question."

Margaret, anxious to prevent further repartee on the subject, went up-stairs, calling back, "When Mrs. Jones comes down, will you tell her I will be back in five minutes?"

When she had disappeared Townsend ordered Peters to get up a special supper for four, suggesting that the champagne he had brought with him, and which was in the basket on the floor, be put on ice. Peters disappeared to do his duty, but Townsend followed close behind him, desirous of directing the spreading of a good wedding supper for Mrs. Townsend, Mrs. Jones, and Millie.

He had been gone but a few minutes when Mrs. Jones came down the stairs. She looked around, expecting to find Margaret Davis awaiting her. Not seeing her, she returned to the floor above, when Mr. and Mrs. Harper came bursting in.

"How do you do? Don't you remember us?" Harper called out, as he held forth a welcoming hand.

"Surely!" cried Mrs. Jones. She came quickly down the stairs and shook hands with Harper, kissing his pretty wife.

"We just brought your husband and a friend of his over from Reno," said Harper.

"Oh, where are they?" Mrs. Jones asked, excitedly. She had been waiting all afternoon for Bill and was beginning to fear lest he had decided not to return home.

"Oh, Bill's out there telling his experiences as a lawyer," Harper laughed, and Mrs. Jones joined him, happy to know that Bill was back, the same lovable old boaster as before.

Margaret Townsend, hearing the voices, hurried to join the group, throwing her arms wildly around Mrs. Jones's neck and giggling like a school-girl.

"Who do you think drove me over?" she asked Mrs. Jones, answering herself. "Judge Townsend."

"My, but that was romantic!" exclaimed Mrs. Jones.

"Why, what do you know about it?" Margaret simpered, putting Mrs. Jones from her and looking into her eyes.

The dining-room door opened and Townsend burst in, going to his wife and exercising his new proprietorship by putting his arm about her. She drew away, blushing, and hastened to introduce the Harpers.

Townsend acknowledged the introduction; then he turned to Mrs. Jones. "I'm very glad to see you under more pleasant circumstances, mother," he said.

"Thank you, Lem!" she answered, tears gathering in her eyes. "Oh, what a mean fool I was! But, Lem, I 'ain't heard a word yet about how that fine young man made out—I'm just dyin' to know if John Marvin won his case!"

"Oh, you really haven't heard?" exclaimed Margaret. "I should say he certainly did win his case, my dear!"

"Thomas and Hammond were lucky to keep out of jail," said Townsend. "They gave up this place without a murmur."

"What?" Mrs. Jones gasped.

"Surely you know that the place is yours again?" Harper asked, while they all nodded eager confirmation.

"Ours again?" Mrs. Jones repeated, excitedly.

"Absolutely, my dear!" Margaret hastened to explain. "And the judge and I were married this afternoon!" Irrespective of Mrs. Jones's bewildered gasp, Margaret rushed on: "And, mother, you are to get all the money the railroad pays for the waterfall, and it's an awful lot! The Golden Gate Land Company is a fake concern! To keep out of jail, where they belong, those

two sharpers are making restitution at once to Mr. Marvin and to everybody else they can! And now you're going to have supper with us, mother! Mr. and Mrs. Harper are going to join us—and you, too, Millie dear," she added, turning to the girl, who had joined the group and stood there listening, her cheeks flushed with a conflict of emotions.

"Oh!" Millie gasped. "Oh—then what—"

What Millie was going to say was lost in a general chorus of delighted exclamations.

"Oh, Lem," cried Mrs. Jones, "won't you let me do the cooking? I'm just dyin' to get back into that kitchen again!"

"Well, I know what your cooking is like, mother," replied Townsend, smiling; "and if you really want to go out there and cook that supper, I say it would be a crime to stop you!"

"Let's all help!" exclaimed little Mrs. Harper, who looked as if she would not have the faintest idea what to do in a kitchen.

"Fine!" echoed her amused husband. "Come on, folks!"

Mrs. Jones led the way, and they all went out through the dining-room and into the kitchen, bent on making a home of the place for the first time since the new regime went into effect.

CHAPTER XX

The dapper Peters was left alone at his desk, but not for long. In a few minutes the street door opened and Bill Jones, with a certain air about him—one might even say with a certain flourish in his manner—sauntered in. He ambled up to the desk.

"Who might you be?" he asked, casually, his half-shut eyes making an inventory of Peters.

"I'm the manager!" Peters snapped.

"No, you ain't," said Bill, grinning.

"What's the reason I ain't?" inquired Peters.

"Because you're fired," said Bill, calmly, turning his back and putting his hands in his pockets. He gazed slowly around from floor to ceiling, and then at the walls. Peters came from behind the desk and stood close to him.

"Say, Mrs. Jones pulled something like that on me," he said, "but I ain't taking no orders from you people! I take my orders from Mr. Hammond!"

"Is that so?" asked Bill, nonchalantly. Drawing a letter from his pocket, he handed it to the clerk. "Well, here they are!" he said.

Peters opened the letter and read it.

"Well, if I'm fired," he sighed, "I suppose I can go back to my old job."

A stealthy foot on the floor made Bill turn around to greet Zeb, who had put his head in the door.

"Got a segar for me, Bill?" Zeb whispered.

Bill went over to the drawer in the California desk, where he knew there was a box of cigars. He took one, extending it to Zeb. But the latter, looking toward the dining-room, saw Millie coming, and in spite of the fact that he

wanted that cigar as desperately as he had ever wanted anything, force of habit sent him scuttling out of the room as he warned Bill, hoarsely, "Look out!"

Bill called him back. "What you 'fraid of? It's only Millie."

"Well," said Zeb, intrepid enough to grab the cigar, but not brave enough to stay, "I'll see you to-morrow, when the women-folks is working. It's safer then."

Millie rushed over and took Bill in her arms, kissing him again and again, while Bill, unused to such demonstration, tried to disengage himself.

"Did you just get here, daddy?" she asked, gazing fondly at him.

"Yes," was his reply, as he sat down in the chair in front of the table.

"Have you seen mother?" she asked, standing very close to him.

Bill, remembering the old days when his return home meant a searching examination as to soberness, grinned, and then he breathed deeply toward her. "I 'ain't had a drink in a month," he informed her.

She laughed and was silent for a moment. Looking down at the floor, she asked, "Did you come alone, daddy?"

"Yes," he answered, slowly scrutinizing her. "Why didn't you speak to John before you left the court to-day?" he asked, after a moment in which he gazed at her intently.

Tears came into her eyes and she leaned her head on his shoulder. "I just couldn't, daddy, that was all."

Bill placed a reassuring hand on her hair.

"Well, it's all right. I fixed it for you," he said, slowly. Millie stepped back aghast, blushing violently. "You did *what*?"

But Bill was unabashed. "I got him to promise he would come over here and see you." Bill had done no such thing, but the one flaw to a perfect happiness for him was the thought that John Marvin and Millie might not make up.

"You asked him to come over and see me?" Millie asked, in dismay.

"No," said Bill, with a quiet grin; "I just told him you were crazy to see him. You would have lost him if it hadn't been for me. Every girl in Reno is crazy about John, but I got him so he's willing to marry you."

"Oh, daddy, I don't know what I am going to do with you!" Millie was almost in tears and leaned dejectedly on a shoulder indifferent through habit and not will.

"You don't mean to say you asked John Marvin to marry me?" she pouted.

"Sure I did," said Bill, untouched by any thought of having done what was not right. "It was a tough job after the way you treated him," he admonished, dropping into the chair and tipping it back while he clasped his hands behind his head and whistled. "I told him," he went on, "that you had made a fool of yourself, but that most women did that now and then, and not to mind it. After he's been married awhile he'll get used to it. I asked him, if you would own up that you were wrong like mother did, would he give you another chance?" Bill looked up at her, adding, complacently, "'Ain't I done a good piece of business?"

Millie gave one shriek and ran up the stairs. Bill, unmoved by any sense of his own iniquity, followed her to the foot of the staircase, calling after her, "Now, if you beg his pardon when he comes—"

She stopped at the top step and looked back. "Beg his pardon!" she exclaimed, defiantly. "I don't even intend to see him when he comes!"

Bill held out one hand toward her in a deprecating gesture.

"Oh, come along down-stairs again." Taking a little square box from his pocket, he opened it and held it up to view, saying, "If you don't see him, what is he going to do with this?"

"What is it?" she asked, her curiosity getting the better of her anger as she came slowly back down the stairs. Bill showed her his prize in its nest of bright purple velvet. "He got it for you. He sent me out to buy it while he was in court!"

Mildred looked at the thing, and with one long "Oh!" of disgust she turned and went through the door into the dining-room.

Alone once more, Bill walked slowly, going to the desk and looking at the register. Then he went back of the desk, examining familiar objects. Suddenly his eyes rested on the electric-light switchboard. He played with the lights for several seconds, turning them out finally. With a start he grunted, "Now I broke 'em." Pushing the button again, the lights came on, revealing Mrs. Jones, who had tiptoed in from the dining-room when Millie told her Bill was there. When he saw her he came out from behind the desk and she hurried toward him with outstretched arms.

"Are you all right, Bill?" she asked, tenderly. And Bill, smiling, leaned over her and breathed so that she could see that he was all right. But she had been through so much lately and where Bill was concerned there was more tenderness than humor in her attitude.

"Aren't you all tired out, dear?" she asked.

Bill grinned sheepishly. It was a long time since his wife had shown such affection for him. "No," was his quick reply.

But her conscience bade her make sure that he was comfortable. She drew a big arm-chair from the corner and placed it in the center of the room, taking a pillow from the sofa and putting it on the back of the chair. Gently she sat Bill down in it.

He didn't know what to make of it all and he looked up at her, asking, with a chuckle:

"What's the matter, mother, you sick?"

She laughed. "No, Bill, I ain't sick. I'm just thinkin'."

Bill looked straight ahead of him.

She took her rocking-chair and placed it next to him. Clasping one of his hands, she leaned forward.

"You've forgiven me, 'ain't you, Bill?"

"Yep," chirped Bill, without so much as a glance.

Her attempt to make love to Bill was not meeting with the success she had hoped, but she was bound to make up to him for all the sorrow of the last few months, and so she did not notice his apparent indifference.

"Just think," she exclaimed, enthusiastically, "the place is ours again!"

"You mean it's yours again," said Bill, slowly.

"No," She shook her head emphatically. "*Ours*, after this, Bill."

"All right," Bill replied, again not moving.

Mrs. Jones, seeing that her attempts to be affectionate were falling upon unfertile ground, dropped his hand.

"How did Mr. Marvin manage to get it away from them?" she asked.

For the first time Bill took interest.

"I fixed it," he said, sitting up straight in his chair. "Do you want me to tell you how much money you get out of the waterfall?"

"Yes, Bill. But please say *we* get it."

"You mean I get half of it?"

Mrs. Jones nodded.

"And you're going to keep it for me?" he went on.

She smiled at him and nodded again.

"How did you know about my getting the place back?" he asked.

"Lem Townsend told me," she informed him. "Did you know that he and Mrs. Davis were married to-day?"

Bill didn't know it, but he didn't intend that his wife should know this. Playing up to form, he smiled indulgently upon her as he stated, glibly, "Yes, I fixed it!"

They smiled wisely upon each other and Mrs. Jones once again took her husband's hand.

"We won't have any more divorce people here, will we, Bill?"

"Then you will have to close up," was his answer.

"I want to close up, Bill." Her voice was full of deep tenderness. "I want to have a home again."

"All right," Bill said, getting up from the chair. Display of affection always embarrassed him. His attitude amused and at the same time hurt Mrs. Jones, so she changed her subject to one that she felt might interest him.

"We are all going to have some supper soon, Bill. I have been cooking it," she said.

Bill patted her tenderly on the hand. "Mother, I found out one thing when I was at the Home. I found that you were a good cook."

She smiled happily, put her arms around his neck, and kissed him. Bill looked at her a moment in surprise; then he laughed.

A shadow crossed her face and she gazed into his eyes. "You don't mind my doing that, do you, Bill?" she asked.

There was a pause for a moment. Bill shifted awkwardly from side to side as he stood up.

"No, I guess I don't," he said.

Mrs. Jones walked toward the dining-room, pausing half-way across the room.

"Bill," she said, glancing down at the floor, "would you kiss me?"

Bill gaped at her in surprise.

"Yes," he said, slowly walking to her. Mrs. Jones saw his hesitation, and, realizing the humor of the situation, laughed heartily.

"Oh, never mind, Bill! You can kiss me later."

"Now, mother, I was going to." He grinned and followed her to the door, but she was through it before he could reach her. He stood still and was about to reopen the door when Marvin burst in, out of breath, but a new radiance in his eyes.

"Why, John," Bill remarked, "I thought you were going over to the cabin!"

"Well, I was," said Marvin. "But I heard about Lem and Mrs. Davis being married, and I knew that everybody would be over there having a good time. I didn't mean to be out of it. Where's your wife?"

"Oh, she's all right. She's cooking supper," Bill replied.

Marvin hesitated a moment. He went to a window and looked out; then he came back, putting his arm through Bill's.

"Is Millie—?"

He could get no farther, for Bill interrupted him.

"Oh yes, she's waiting for you. She's afraid you're not going to forgive her."

"Well, I think I can convince her of my forgiveness," said Marvin.

Delving into his pocket Bill brought forth the ring.

"When you see her just give her this," he said.

Marvin smiled. "Now I know why you borrowed that two dollars this afternoon!"

"Sure! You can find her. She's around some place. After you give it to her come in to the party."

"What party?"

Bill nodded toward the dining-room door. "Lem and his wife are giving a party and we want you to come. But you can't come until you get Millie," said Bill.

Marvin turned and walked toward the stairs, wondering where Millie was. His thought brought his wish, for she parted the curtains and came slowly

down. She stopped when she saw him, but there was a look in his eyes that she could not mistake and her heart was beating as it had not done for many months, ever since she and Marvin had walked on the shores of Lake Tahoe many months ago.

"Daddy has told you what I should say to you, hasn't he?" she asked, coming slowly down the stairs. Marvin went half-way up.

"What is it?" he asked.

"Well, I have made a fool of myself and I am ashamed of myself and I beg you to forgive me!"

Pausing on the stairs, she lowered her eyes, coloring deeply. Marvin could not help laughing, and there was a dimple of amusement in Millie's cheek. He put an arm around her and led her down into the lobby.

"I could tell you something better than that to say," he stated, seeing that her eyes were at last answering his, "you might say, for example, 'John, dearest, I know that you love me always,' because that is something a woman must know!"

They both laughed delightedly at this repetition of the words he had used in the court-room.

"And I suppose I should say"—but here Millie turned her head away—"please marry me!"

"Exactly!" Marvin cried. "And my answer is, Yes, Millie—if you will have me!"

Suddenly he remembered the horrible ring Bill had bought. He took it from his pocket, saying, with mock tenderness, "Millie, I want to show you something, and—"



**... HE TOOK IT FROM HIS POCKET, SAYING, "MILLIE, I
WANT TO SHOW YOU SOMETHING"**

"I have seen it!" she interrupted, laughing softly, glancing down at the object in its gaudy setting.

"Well, we mustn't disappoint Lightnin'," said Marvin. "Put it on your finger, dear, for the old fellow's sake and let him see it. It will show him that his

efforts were not in vain—no ring could be more beautiful in thought than this one!"

"You're right, John!" she said, with shining eyes, as she slipped the thing on her finger and raised her face for a kiss.

At that psychological moment Bill stuck his head in the door. He withdrew, of course, but only to return in an instant with the whole party at his heels.

Bill was leading his wife by the hand. Gesturing toward Marvin and Millie, his shrewd old eyes fairly snapping with whimsical happiness, Lightnin' exclaimed:

"Mother—look! I fixed that!"

THE END

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This is the record of a trip which the author took with Buffalo Jones, known as the preserver of the American bison, across the Arizona desert and of a hunt in "that wonderful country of deep canons and giant pines."

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A lovely girl, who has been reared among Mormons, learns to love a young New Englander. The Mormon religion, however, demands that the girl shall become the second wife of one of the Mormons—Well, that's the problem of this great story.

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Joan Randle, in a spirit of anger, sent Jim Cleve out to a lawless Western mining camp, to prove his mettle. Then realizing that she loved him—she followed him out. On her way, she is captured by a bandit band, and trouble begins when she shoots Kells, the leader—and nurses him to health again. Here enters another romance—when Joan, disguised as an outlaw, observes Jim, in the throes of dissipation. A gold strike, a thrilling robbery—gambling and gun play carry you along breathlessly.

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By Helen Cody Wetmore and Zane Grey

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